Martin's Funerals

Module 1

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Martin's Funerals South Africa
1-1-2026

ACKNOWLEDGEMENT OF RECEIPT

I hereby acknowledge receipt of the *Martin's Funerals Operations Manual* and confirm that I understand and accept the confidentiality obligations relating to the Martin's Funerals brand, trademarks, trade secrets, copyright, operational know-how, and goodwill, whether currently existing or arising in the future.

Name: _______________________________
Signature: ___________________________
Date: ________________________________

Editions and Copyright

Editions:
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No provision of this Manual, nor any conduct taken in terms of it, shall be interpreted as limiting, waiving, or excluding any right or protection afforded to a consumer, franchisee, or other protected person under the Consumer Protection Act, 68 of 2008, or any other applicable South African legislation.

All discretionary powers exercised under this Manual shall be applied reasonably, proportionately, and in good faith, and—except where immediate action or objectively necessary is objectively required to prevent serious harm, illegality, or regulatory breach—only after written notice and a reasonable opportunity to remedy, in accordance with section 48 of the Consumer Protection Act, 68 of 2008.

Where technical or legal language is used, it must be interpreted in a manner that is understandable to a reasonable franchisee or consumer, and any ambiguity shall be resolved in favour of fairness, transparency, and consumer protection.

MASTER OPERATIONS MANUAL
Applies to all Franchise Holders, Branch Managers and Employees
Jurisdiction: Republic of South Africa

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Unauthorised deviation from this manual is prohibited unless approved in writing by Head Office.

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PURPOSE AND GOVERNANCE

This Master Operations Manual establishes uniform operational, ethical, legal and hygiene standards across the Martin's Funerals Group. It preserves the founding values of dignity, service excellence and accountability while ensuring full compliance with South African law.

All franchise holders, managers and employees are bound by this manual as a **condition of association, employment and operation**.

LEGAL FRAMEWORK (SOUTH AFRICA)

Operations under this manual align with, but are not limited to: - National Health Act, 2003 - Regulations Relating to the Management of Human Remains, 2013 - Basic Conditions of Employment Act - Labour Relations Act - Occupational Health and Safety Act - National Road Traffic Act - Protection of Personal Information Act (POPIA) - Applicable municipal by-laws

Where older regulations or terminology are referenced, current legislation and municipal interpretation prevail.

BUSINESS HOURS AND PUBLIC SERVICE STANDARDS

Martin's Funerals operates as a **24-hour essential service**. No family requiring assistance may be turned away.

Official Office Hours: - Monday–Friday: 08h00–17h00 - Saturday: 08h00–13h00

After-hours services operate on an on-call basis in compliance with labour legislation.

Punctuality, availability and compassion are non-negotiable standards.

DRESS CODE AND PERSONAL PRESENTATION

All employees must present a neat, dignified and professional appearance at all times.

Corporate colours: **Black, White and Purple**
The Martin's Funerals logo must be visible on approved attire.

Modesty, hygiene and cultural sensitivity are mandatory. Detailed dress standards for men and women apply as issued in this manual.

TELEPHONE ETIQUETTE AND CLIENT COMMUNICATION

Telephones must be answered within three rings using an approved greeting. Communication must be clear, respectful and accurate.

Pricing and contractual commitments may only be discussed during authorised arrangement processes.

CONFIDENTIALITY AND PERSONAL INFORMATION (POPIA)

All personal, medical and identity information is confidential. Disclosure is limited strictly to authorised persons and lawful purposes.

Breach of confidentiality constitutes serious misconduct.

FUNERAL UNDERTAKERS' PREMISES COMPLIANCE
No preparation or storage of human remains may occur without a valid **Certificate of Competence** issued by the relevant municipality.

Premises must comply with approved plans, inspection requirements and hygiene standards at all times.

MORTUARY, HYGIENE AND HUMAN REMAINS MANAGEMENT
Strict hygiene, PPE usage, refrigeration control and waste management are mandatory.

Failure to comply may result in immediate suspension or closure by authorities.

ADMINISTRATION, DOCUMENTATION AND RECORD KEEPING
All documentation must be accurate, complete and signed where required.

Original documents may not leave the premises without authorisation. Copies must be retained securely.

BOOKKEEPING, FINANCIAL CONTROLS AND REPORTING
Daily bookkeeping is mandatory. Monthly summaries must be submitted to Regional Management within prescribed timelines.

Financial records must be retained in accordance with SARS and internal policy requirements.

COMPANY VEHICLES – POLICY AND FLEET CONTROL
Company vehicles are for authorised business use only. Private use is strictly prohibited.

Vehicles must be licensed, insured, roadworthy and correctly branded. Drivers must be authorised and appropriately licensed.

Passenger transport is prohibited unless expressly approved and indemnified.

INTERNET, EMAIL AND DIGITAL CONDUCT
Company digital systems are business tools. Professional, lawful and respectful conduct is mandatory at all times.

EMPLOYEE WELFARE (GUIDANCE)
Participation in pension funds and medical aid schemes is encouraged but not compulsory unless stipulated by contract.

INSPECTIONS, ENFORCEMENT AND DISCIPLINE
Non-compliance with this manual may result in: - disciplinary action; - suspension of operational authority; - termination of contracts; and/or - legal action.

APPENDICES
A. Passenger Indemnity Form B. Motor Vehicle Use Agreement C. Vehicle Logbook Template D. Premises Inspection Checklist E. Hygiene and PPE Checklist

DECLARATION OF ACKNOWLEDGEMENT
I confirm that I have read, understood and agree to comply with the Martin's Funerals Master Operations Manual.

Name: ______________________________
Signature: _________________________
Date: _______________________________

MARTIN'S FUNERALS – WHO WE ARE

Something old, something new—a landmark on the horizon; a beacon of light in the darkest night.

Martin's Funerals was founded on 1 November 1989 by Martin and Annalize Piek, together with their two children, Martilize (now Du Preez) and Wjm. What began as a courageous step into the unknown soon became a life's calling—serving families with dignity, compassion, and unwavering commitment during their most difficult moments.

The early days were defined by determination and ingenuity. After months of perseverance, the family received their first funeral service—only to realise they had no hearse. Undeterred, Martin took initiative and converted a second-hand trailer into what became the first hearse of its kind. The family's sole vehicle at the time, a brick-coloured Mercedes-Benz 230, doubled as both family car and support vehicle. From these humble beginnings, a vision was born.

Guided by empathy and respect, Martin's Funerals began walking alongside families in grief. What started as a one-man operation steadily grew into a purpose-driven organisation, shaped by Martin's dream to build not only the best funeral service, but a leading name in the industry—one that would share opportunity and excellence with others.

By the end of 1998, this vision expanded into franchising. Martin's Funerals went on to become the **first successful franchised funeral business in the world**, setting a new benchmark for the profession.

In 2008, Martin was invited by the International NFDA (National Funeral Directors' Association, USA) to attend their Asian Expo in Macau, Hong Kong, as a special guest speaker and ambassador for the South African funeral industry—an honour that recognised both his leadership and the reputation of Martin's Funerals on a global stage.

Today, Martin's Funerals comprises more than **108 outlets across South Africa**. Our branches provide comprehensive services, including preliminary arrangements, funeral services, funeral insurance facilitation, repatriations, exhumations, and aftercare services—ensuring continuity of care from the first call to long after the service has concluded.

Regulatory & Professional Commitment (South Africa)
Martin's Funerals operates within the applicable **South African legal and regulatory framework** and upholds the highest standards of professional conduct. Our services align with:

Municipal and provincial by-laws governing funeral undertakers and mortuary services.
Health and environmental regulations, including requirements relating to human remains, exhumations, and repatriations.
Insurance and financial services legislation, where applicable, including compliance with the **Financial Advisory and Intermediary Services (FAIS) Act** and oversight by the **Financial Sector Conduct Authority (FSCA)** for funeral insurance–related activities.
Ethical standards and best practices recognised within the South African funeral industry.

Through ongoing training, governance, and accountability, we ensure that every family is served with integrity, transparency, and respect.

"Action springs not from thought, but from a readiness for responsibility."
— Dietrich Bonhoeffer

Consumer Protection Act Alignment
This Manual must be interpreted and applied in a manner consistent with the Consumer Protection Act, 68 of 2008, and its regulations. In the event of any ambiguity, interpretation shall favour fairness, transparency, proportionality, and lawful enforcement. Nothing in this Manual limits or excludes any right or protection afforded under the Consumer Protection Act or other applicable legislation.

MISSION STATEMENT

To serve every family with compassion, dignity, and professionalism, while upholding the highest ethical, spiritual, and operational standards in the funeral industry.

CODE OF CONDUCT

At Martin's Funerals, we acknowledge our responsibility before God, our Father, and commit ourselves to upholding the highest standards of ethical, professional, and personal conduct. Our Code of Conduct reflects the values that guide our daily actions and long-term relationships.

Integrity and Accountability
We commit to conducting all business activities with honesty, integrity, and accountability, maintaining the highest professional and personal standards at all times.

Confidentiality and Trust
We respect and safeguard the confidentiality and trust placed in us by our clients, their families, and members of the public.

Equality and Respect
We treat every client with equal courtesy, fairness, and care, without discrimination on the basis of race, colour, creed, culture, or social standing.

Cultural and Religious Sensitivity
We honour the personal choices of our clients and show full respect for the diversity of religious, cultural, and traditional practices entrusted to our care.

Dignity of the Deceased
We treat every deceased person entrusted to us with the utmost dignity, respect, and professionalism.

Honest Communication
We provide clear, accurate, and complete information regarding the goods and services we offer, enabling families to make informed decisions.

Professional Service Delivery
We ensure that we are consistently capable of delivering the services and products required by the communities we serve, in a reliable and professional manner.

Legal Compliance
We strictly comply with all applicable laws, regulations, and by-laws governing funeral services and related activities in South Africa.

Ethical Advertising
We ensure that all advertising and promotional activities are conducted in good taste, with the primary purpose of informing and educating the public.

Professional Relationships
We maintain respectful and cooperative relationships with other funeral service providers and actively strive, together with them, to enhance the standards of the funeral profession.

People and Development
We recruit, develop, and train suitable staff, recognising that our people are essential to our continued success, reputation, and service excellence within the community.

WELCOME TO THE MARTIN'S FUNERALS FAMILY

"Now faith is the substance of things hoped for, the evidence of things not seen."
— *Hebrews 11:1*

As members of the Martin's Funerals family, we are reminded that our service is founded on faith. We hold firmly to Jesus Christ, who is the Head of this service. When each of us fulfils our responsibilities with diligence and integrity, we trust that He will do His part in full.
Our work is more than a profession—it is a calling to serve others with compassion, humility, and excellence.

PURPOSE OF THIS MANUAL
This manual is a **business and operational guide**, compiled from years of practical experience within the funeral industry. It serves as a reference framework to support consistency, professionalism, and best practice across Martin's Funerals.

While every effort has been made to ensure accuracy, this manual should be regarded as a **guiding document**. It may contain omissions, errors, or areas requiring clarification. Should any uncertainty arise, all questions must be referred without delay to the compiler of the manual, **Annalize Piek**, through the official contact details provided.
This manual is a practical operational guide, developed through decades of experience. It must be read together with the Franchise Agreement. Amendments, directives, and memoranda issued by the Franchisor form an integral part of this manual and must be filed promptly.
Confidentiality is paramount. No operational, commercial, or client information may be disclosed to any external party without prior written consent from the Franchisor.
Please note that the original author is Afrikaans-speaking, and although care has been taken in the use of English, absolute linguistic precision cannot always be guaranteed.

FRANCHISE HOLDER RESPONSIBILITIES
Franchise holders are required to read their Franchise Agreement and this Manual as a single, integrated set of obligations.

From time to time, additions, updates, or corrections will be issued. These must be inserted into the manual at the appropriate sections as instructed. Compliance with updated documentation is mandatory.

CONFIDENTIALITY
Confidentiality is of **paramount importance** within Martin's Funerals.

No information—whether direct or indirect—may be disclosed to any individual or organisation outside the **Martin's Funerals Group**, whether verbally, in writing, electronically, or by any other means, without the **prior written consent of the Franchisor**.

This obligation applies to all operational, client, financial, strategic, and internal information and remains binding in accordance with South African confidentiality and data protection principles.

DIRECTIVES AND MEMORANDA
From time to time, it may be necessary to issue additions or amendments to this manual. These will be communicated **in writing** in the form of either a **Directive** or a **Memo**.
Supplements: Must be noted and filed in the relevant section of the manual.
Amendments: The outdated page must be removed and replaced with the revised version.

It is the responsibility of each franchise holder and manager to ensure that their manual remains **current and complete**, as directed by Regional Management.

No directive, memorandum, supplement, or amendment shall impose a material financial burden, penalty, or obligation on a franchisee unless such obligation has been disclosed in advance in accordance with the Franchise Disclosure Document and applicable provisions of the Consumer Protection Act, 68 of 2008.

No directive, memorandum, supplement, or amendment issued in terms of this Manual shall introduce any new fee, penalty, material financial obligation, or ongoing cost unless such obligation has been disclosed in advance in the Franchise Disclosure Document, or expressly agreed to in writing by the Franchisee, in accordance with the Consumer Protection Act, 68 of 2008 and the Franchise Regulations.

Numbering of Directives
Directives will be numbered as follows:

MD004C/13/03/2007
Where:
MFF = Martin's Funerals Franchising
004 = Directive number
13/03/2007 = Date of issue

Memoranda will not be numbered.
Example: **MFF/Petrol/13/03/2007**

CPA Clarification
Any directive, memorandum, supplement, or amendment issued in terms of this manual shall be reasonable, operationally necessary, and consistent with the Consumer Protection Act, 68 of 2008. No amendment shall impose a material financial burden, penalty, or obligation on a franchisee without prior disclosure as required by applicable franchise regulations and the Franchise Disclosure Document.

CONTINUOUS IMPROVEMENT
Should you identify any errors, inconsistencies, or opportunities for improvement within this manual, or if you have constructive ideas to share, you are encouraged to contact **Martin's Funerals Franchising**.

Through collaboration, accountability, and shared purpose, we will continue to strengthen our organisation and uphold our position as leaders in the funeral industry.

NATIONAL HEALTH ACT, 61 OF 2003

1. Purpose of the OHSA

The Act aims to:

Provide for the **health and safety of persons at work**

Protect people **other than employees** (e.g., visitors, contractors, public)

Establish **legal duties** for employers, employees, manufacturers, and others

Create enforcement mechanisms through the Department of Employment and Labour

2. Key Responsibilities

A. Employer Duties (Section 8)

Employers must:

Provide and maintain a **safe working environment**

Identify hazards and conduct **risk assessments**

Implement **control measures**

Provide **safe systems of work**

Supply appropriate **PPE (Personal Protective Equipment)**

Provide **information, instruction, training, and supervision**

Ensure machinery and equipment are safe

Enforce health and safety rules

Employers must do what is **"reasonably practicable"** to ensure safety.

B. Employee Duties (Section 14)

Employees must:

Take reasonable care of their own health and safety

Take care of others affected by their actions

Obey safety rules and procedures

Use PPE correctly

Report unsafe conditions

C. Other Duty Holders

The Act also places responsibilities on:

Designers

Manufacturers

Importers

Suppliers of machinery or substances

Contractors and self-employed persons

3. Important Provisions

Health and Safety Representatives (Sections 17–19)

Required in workplaces with **20+ employees**

Represent employees in health and safety matters

Participate in inspections and investigations

Health and Safety Committees

Required where there are **2 or more safety representatives**

Meet regularly to discuss safety issues

Incident Reporting (Section 24)

Employers must report:

Fatalities

Serious injuries

Dangerous occurrences

4. Enforcement

Inspectors from the Department of Employment and Labour may:

Enter workplaces

Conduct inspections

Issue **Improvement Notices**

Issue **Prohibition Notices**
Investigate incidents

5. Penalties
Failure to comply can result in:
Fines
Imprisonment
Criminal liability
Personal liability of company directors in certain cases

6. Regulations Under the OHSA
The Act is supported by various regulations, including:
General Safety Regulations
Construction Regulations
Hazardous Chemical Agents Regulations
Driven Machinery Regulations
Electrical Installation Regulations
Environmental Regulations for Workplaces

REGULATIONS RELATING TO THE MANAGEMENT OF HUMAN REMAINS (2013)
(Issued under the National Health Act, 61 of 2003 – South Africa)

1. Purpose of the Regulations
These regulations provide rules for the:
Handling
Storage
Transportation
Burial or cremation
Exhumation
Disposal
of human remains in a **lawful, hygienic, and dignified** manner.
They aim to:
Protect **public health**
Ensure **respect and dignity** of the deceased
Prevent the spread of disease
Regulate funeral undertakers and mortuary practices

2. Key Definitions
The regulations define important terms such as:
Human remains – the body of a deceased person, including body parts.
Corpse – a dead human body.
Funeral undertaker – a person or business handling preparation and burial/cremation.
Mortuary – a facility where bodies are stored or prepared.
Burial order – official authorization for burial or cremation.

3. Certification of Death
Before burial or cremation:
A **medical practitioner** must issue a **Notice of Death (DHA-1663 form)**.
In cases of unnatural death, the matter must be referred to:
The **South African Police Service (SAPS)**
A **forensic pathology service**
No burial may take place without proper documentation.

4. Handling and Preparation of Human Remains
The regulations require that:
Bodies must be handled in a **dignified and sanitary manner**.
Protective clothing (PPE) must be used.
Bodies with infectious diseases must be properly managed.
Embalming must follow health standards.
Preparation areas must meet hygiene requirements.

5. Storage of Human Remains
Bodies must be stored in approved **mortuary facilities**.
Refrigeration requirements must be met.
Facilities must comply with municipal and health standards.
Records must be kept for identification and tracking.

6. Transportation of Human Remains
Vehicles used must be:
Dedicated for transporting human remains
Clean and sanitary
Cross-border transport requires:
Official permits
Compliance with international health requirements

7. Burial and Cremation

Burial or cremation may only take place:
After a valid **burial order** has been issued.
At an approved cemetery or crematorium.
In accordance with municipal by-laws.
Special provisions apply for:
Stillbirths
Pauper burials
Unclaimed bodies

8. Exhumation
Exhumation requires:
Written permission from the relevant authority.
Compliance with public health requirements.
Presence of authorised officials in some cases.

9. Unclaimed and Indigent Bodies
If a body is unclaimed:
The state may arrange burial.
A waiting period may apply before disposal.
Proper records must be maintained.

10. Offences and Penalties
It is an offence to:
Bury or cremate without authorization.
Mishandle human remains.
Fail to comply with health standards.
Operate without proper registration (where required).
Penalties may include:
Fines
Imprisonment
Closure of facilities

Importance in Occupational Health & Public Health
These regulations are particularly relevant to:
Funeral undertakers
Mortuary workers
Forensic pathology services
Municipal health services
Environmental health practitioners
They ensure:
Infection control
Workplace safety
Legal compliance
Protection of public health

BIRTHS AND DEATHS REGISTRATION ACT, 51 OF 1992
(South Africa)

1. Purpose of the Act
The Act provides for the:
Registration of births
Registration of deaths
Issuing of **birth and death certificates**
Maintenance of the **National Population Register**
It ensures that all vital events are officially recorded by the **Department of Home Affairs (DHA)**.

2. Registration of Births
A. Compulsory Registration
Every birth in South Africa must be registered.
Registration must occur within the prescribed period (currently **within 30 days**).
B. Notice of Birth
A completed **Notice of Birth form (DHA-24)** must be submitted.
Usually completed by:
A parent
Guardian
Hospital or health facility (in some cases)
C. Late Registration of Birth (LRB)
If registration occurs after 30 days:
Additional documentation is required.
Affidavits and supporting evidence may be needed.
Stricter verification applies for registrations after one year.

3. Registration of Deaths
A. Compulsory Registration
Every death must be reported and registered.
B. Notice of Death
A **medical practitioner** completes the medical portion of the death notification form.
In cases of unnatural death:
The matter is referred to **SAPS**
A forensic post-mortem may be required
C. Issuing of Death Certificate
Once registered, the DHA issues an **official death certificate**.
Required for:
Burial or cremation
Estate administration
Insurance claims
Pension and benefit claims

4. Stillbirths
Stillbirths must also be registered.
A specific form is completed for stillborn children.
A stillbirth certificate is issued.

5. Alteration of Particulars
The Act regulates:
Change of name
Correction of errors
Alteration of sex description (subject to applicable legislation)
Re-registration in cases of adoption
Court orders may be required in certain cases.

6. Duties and Responsibilities

Parents / Informants
Must ensure timely registration of birth or death.
Must provide accurate information.
Medical Practitioners
Must correctly complete the medical cause of death.
Must report unnatural deaths.
Department of Home Affairs
Maintains records.
Issues certificates.
Manages the National Population Register.

7. Offences and Penalties
It is an offence to:
Provide false information.
Fail to register a birth or death.
Falsify documents.
Unlawfully alter official records.
Penalties may include:
Fines
Imprisonment

Relationship to Other Legislation
The Act works together with:
National Health Act, 61 of 2003
Regulations Relating to the Management of Human Remains (2013)
Inquest Act, 58 of 1959
Occupational Health and Safety Act, 85 of 1993
It is particularly important for:
Funeral undertakers
Hospitals
Forensic pathology services
Estate administrators

Importance in Practice
This Act ensures:
Legal identity from birth
Accurate population statistics
Proper administration of estates
Prevention of fraud
Lawful burial or cremation

OCCUPATIONAL HEALTH AND SAFETY ACT, 85 OF 1993
(Republic of South Africa)

1. Purpose of the Act
The OHSA aims to:
Ensure the **health and safety of employees** at work
Protect **persons other than employees** (e.g., visitors, contractors, the public)
Establish duties for employers, employees, manufacturers, and others
Provide for enforcement by the **Department of Employment and Labour**
The standard applied is what is **"reasonably practicable."**

2. Duties of Employers (Section 8)
Employers must:
Provide and maintain a **safe and healthy working environment**
Identify hazards and conduct **risk assessments**
Implement appropriate **control measures**
Provide safe **plant, machinery, and systems of work**
Ensure proper **use of Personal Protective Equipment (PPE)**
Provide **training, instruction, information, and supervision**
Enforce compliance with safety rules
Failure to do so can result in legal liability.

3. Duties of Employees (Section 14)
Employees must:
Take reasonable care of their own health and safety
Take care of others affected by their actions
Obey lawful safety instructions
Use PPE correctly
Report unsafe conditions

4. Health and Safety Representatives (Sections 17–19)
Required in workplaces with **20 or more employees**.
Responsibilities include:
Inspecting the workplace
Investigating complaints
Participating in incident investigations
Attending health and safety committee meetings

5. Health and Safety Committees
Required where there are **two or more safety representatives**.
The committee:
Reviews safety measures
Makes recommendations to the employer
Discusses incidents and risk control

6. Incident Reporting (Section 24)
Employers must report to the Department of Employment and Labour:
Fatalities
Serious injuries
Dangerous occurrences
Failure to report is an offence.

7. Powers of Inspectors
Inspectors may:
Enter and inspect workplaces
Question employees
Issue **Improvement Notices**

Issue **Prohibition Notices** (stop unsafe work)
Conduct investigations

8. Offences and Penalties

Non-compliance may result in:
Fines
Imprisonment
Criminal liability
Possible personal liability of directors in certain cases

9. Regulations Under the OHSA

Important regulations include:
General Safety Regulations
Construction Regulations
Hazardous Chemical Agents Regulations
Environmental Regulations for Workplaces
Driven Machinery Regulations
Electrical Installation Regulations

Importance in Practice

The Act promotes:
Accident prevention
Occupational disease prevention
Legal compliance
Safe work culture
Protection of both workers and the public

CONSUMER PROTECTION ACT, 68 OF 2008
(Republic of South Africa)

1. Purpose of the Act
The Consumer Protection Act aims to:
Promote a **fair, accessible, and sustainable marketplace**
Protect consumers from **unfair, unreasonable, or unjust practices**
Improve **consumer information and rights**
Provide effective **redress mechanisms**
It applies to most transactions for the **supply of goods and services** in South Africa.

2. Who is a Consumer?
A **consumer** includes:
A person who buys goods or services
A user or beneficiary of goods or services
A franchisee
The Act generally applies to transactions where the consumer is an individual or a small juristic person (below the financial threshold set by regulation).

3. Key Consumer Rights
The CPA provides several fundamental rights:
A. Right to Equality in the Consumer Market
Protection against unfair discrimination.
B. Right to Privacy
Protection against unwanted direct marketing.
Right to opt out of marketing communications.
C. Right to Choose
Fixed-term agreements may be cancelled (subject to reasonable penalties).
Cooling-off period for certain transactions (e.g., direct marketing).
D. Right to Disclosure and Information
Clear and understandable language.
Transparent pricing.
No hidden costs.
E. Right to Fair and Responsible Marketing
No misleading or deceptive representations.
No false advertising.
No bait marketing.
F. Right to Fair and Honest Dealing
Protection against unconscionable conduct.
No coercion or undue pressure.
No unfair contract terms.
G. Right to Fair, Just and Reasonable Terms and Conditions
Contracts must not be excessively one-sided.
Consumers must be alerted to risk clauses or indemnities.
H. Right to Fair Value, Good Quality and Safety
Includes:
Goods must be safe and of good quality.
Goods must be reasonably suitable for intended purpose.
Services must be performed with reasonable care and skill.

4. Implied Warranty of Quality (Section 56)
Consumers have a **6-month implied warranty**.
If goods fail to meet standards, the consumer may choose:
Repair
Replacement
Refund
After repair, a further 3-month warranty applies to that repair.

5. Product Liability (Section 61)

Producers, importers, distributors, and retailers can be held **strictly liable** for:

Injury

Death

Illness

Damage caused by defective goods

Liability applies even without proving negligence.

6. Returns and Cooling-Off

5 business days cooling-off for direct marketing transactions.

Certain goods may be returned if not suitable (subject to conditions).

7. Enforcement Bodies

The Act is enforced by:

National Consumer Commission (NCC)

National Consumer Tribunal (NCT)

Consumer Courts

Provincial consumer protection offices

Consumers may also approach civil courts.

8. Offences and Penalties

Non-compliance may result in:

Administrative fines (up to 10% of annual turnover or R1 million)

Compliance notices

Civil claims

Criminal prosecution (in some cases)

Importance in Practice

The CPA affects:

Retail businesses

Service providers

Funeral services

Manufacturing and distribution businesses

Online businesses

It ensures:

Transparency

Accountability

Consumer fairness

Product safety

PROTECTION OF PERSONAL INFORMATION ACT, 4 OF 2013 (POPIA)
(Republic of South Africa)

1. Purpose of POPIA
POPIA aims to:
Promote the **protection of personal information**
Give effect to the constitutional right to **privacy**
Regulate how personal information is **collected, processed, stored, and shared**
Establish the **Information Regulator**

2. Who Must Comply?
POPIA applies to:
Public bodies (e.g., government departments)
Private bodies (e.g., companies, NGOs, funeral homes, schools, hospitals)
Any person or organisation that processes personal information in South Africa
The party responsible for compliance is called the **Responsible Party**.

3. What is Personal Information?
Personal information includes any information relating to an identifiable person, such as:
Name and surname
ID number
Contact details
Email address
Physical address
Medical information
Financial information
Biometric information
Photographs

4. Special Personal Information
Stronger protection applies to:
Religious or philosophical beliefs
Race or ethnic origin
Trade union membership
Political persuasion
Health or sex life
Biometric information
Criminal records
Processing this information is generally prohibited unless specific legal grounds apply.

5. The 8 Conditions for Lawful Processing
POPIA sets out 8 key conditions:

1. Accountability
The responsible party must ensure compliance.

2. Processing Limitation
Information must be:
Processed lawfully and reasonably
Collected for a specific purpose
With consent or another legal justification

3. Purpose Specification
Information must be collected for a **specific, explicitly defined purpose**.

4. Further Processing Limitation
Further processing must be compatible with the original purpose.

5. Information Quality
Information must be accurate, complete, and updated.

6. Openness
Data subjects must be informed about:
What information is collected
Why it is collected
Who will receive it

7. Security Safeguards
Responsible parties must:
Secure personal information
Prevent loss, damage, or unauthorised access
Report data breaches

8. Data Subject Participation
Individuals have the right to:
Access their personal information
Correct or delete inaccurate data

6. Consent
Consent must be:
Voluntary
Specific
Informed
Consent is not always required if another lawful ground exists (e.g., contractual necessity or legal obligation).

7. Direct Marketing
Electronic direct marketing requires **prior consent**.
Individuals have the right to opt out.

8. Data Breaches
If there is a security compromise:
The **Information Regulator** must be notified.
Affected individuals must also be informed.

9. Information Officer
Every organisation must:
Appoint an **Information Officer**
Register with the Information Regulator
Ensure internal compliance

10. Penalties for Non-Compliance
Failure to comply may result in:
Administrative fines (up to R10 million)
Civil claims
Criminal prosecution
Imprisonment (in serious cases)

Importance in Practice
POPIA affects:
Employers (employee data)
Healthcare providers (medical records)
Funeral homes (family and deceased records)
Businesses handling customer information
Schools and universities
It ensures:

Privacy protection
Responsible data handling
Secure record-keeping
Legal accountability

NATIONAL ENVIRONMENTAL MANAGEMENT: WASTE ACT, 59 OF 2008
(Republic of South Africa)

1. Purpose of the Act
The Waste Act aims to:
Protect **health and the environment**
Provide measures for **waste management**
Prevent pollution and ecological degradation
Promote **waste minimisation, reuse, recycling, and recovery**
Regulate waste disposal in a responsible manner
It forms part of South Africa's broader environmental legislation under the **National Environmental Management Act (NEMA), 107 of 1998**.

2. Objectives of the Act
The Act seeks to:
Avoid and minimise waste generation
Reduce, reuse, recycle, and recover waste
Treat and safely dispose of waste as a last resort
Manage hazardous waste strictly
Ensure compliance and enforcement
This approach follows the **waste management hierarchy**.

3. Waste Management Hierarchy
The Act promotes the following order of priority:
Avoid waste generation
Reduce waste
Reuse
Recycle
Recover
Treat and dispose (last option)

4. Definition of Waste
Waste includes:
Any substance or material that is discarded, rejected, or abandoned
Hazardous waste (e.g., medical waste, chemical waste)
General waste
Certain exclusions apply (e.g., mining residue regulated separately).

5. Duties of Waste Generators
Any person who generates waste must:
Avoid generating waste where possible
Minimise the amount and toxicity of waste
Ensure waste is reused, recycled, or recovered where possible
Dispose of waste safely and lawfully
This is known as the **"Duty of Care"** principle.

6. Licensing of Waste Activities
Certain waste management activities require a **Waste Management Licence**, including:
Waste treatment
Waste storage
Hazardous waste disposal
Operation of waste disposal facilities
Licences are issued by environmental authorities.

7. Extended Producer Responsibility (EPR)
Producers may be required to:
Take responsibility for products after use
Support recycling systems

Finance waste management programmes
This applies to industries such as packaging, electronics, and plastics.

8. Contaminated Land
The Act provides for:
Identification of contaminated land
Investigation and remediation
Liability of responsible parties

9. Compliance and Enforcement
Environmental Management Inspectors (Green Scorpions) may:
Conduct inspections
Issue compliance notices
Investigate environmental offences

10. Offences and Penalties
Offences include:
Illegal dumping
Operating without a waste licence
Failure to comply with licence conditions
Causing environmental pollution
Penalties may include:
Heavy fines
Imprisonment
Criminal liability

Importance in Practice
The Waste Act is particularly relevant to:
Municipalities
Healthcare facilities (medical waste)
Funeral homes and mortuaries
Industrial businesses
Waste management companies
It ensures:
Proper waste disposal
Protection of public health
Environmental sustainability
Legal accountability

NATIONAL ROAD TRAFFIC ACT, 93 OF 1996 (NRTA)
(Republic of South Africa)

1. Purpose of the Act
The National Road Traffic Act aims to:
Promote **road safety**
Regulate **road traffic matters**
Provide for the **registration and licensing of vehicles and drivers**
Prescribe rules of the road
Reduce road accidents and fatalities

2. Application of the Act
The Act applies to:
All public roads in South Africa
Drivers of motor vehicles
Vehicle owners
Operators of public and private transport

3. Driver Licensing
The Act provides for:
Learner's licences
Driver's licences (for different vehicle categories)
Professional Driving Permits (PrDP) for certain drivers (e.g., transport of goods or passengers)
Testing procedures and requirements
Driving without a valid licence is an offence.

4. Vehicle Registration and Licensing
Every motor vehicle must:
Be **registered** with the appropriate authority
Display valid **licence discs**
Have number plates complying with regulations
Undergo roadworthy testing where required
Operating an unlicensed or unroadworthy vehicle is illegal.

5. Rules of the Road
The Act regulates:
Speed limits
Overtaking
Road signs and markings
Alcohol limits (driving under the influence is prohibited)
Seatbelt use
Use of mobile phones while driving

6. Roadworthiness
Vehicles must:
Be maintained in a safe and roadworthy condition
Have functional brakes, lights, tyres, steering, etc.
Pass roadworthy tests when required (e.g., change of ownership)

7. Duties of Drivers
Drivers must:
Obey traffic laws and road signs
Drive with due care and attention
Not drive under the influence of alcohol or drugs
Stop and report accidents when required
Failure to stop after an accident is a serious offence.

8. Offences and Penalties

Offences include:

Reckless or negligent driving

Driving under the influence

Driving without a valid licence

Operating an unroadworthy vehicle

Penalties may include:

Fines

Demerit points (under AARTO system, where applicable)

Suspension or cancellation of licence

Imprisonment

9. Relevance to Funeral Services

For funeral undertakers and businesses transporting human remains, the Act is important because:

Vehicles must be licensed and roadworthy

Drivers may require a Professional Driving Permit (PrDP)

Traffic laws must be strictly followed

Accident reporting requirements apply

Importance of the NRTA

The Act ensures:

Safer roads

Responsible driving

Proper vehicle regulation

Legal accountability

REGULATORY COMPLIANCE & PROVINCIAL ALIGNMENT (SOUTH AFRICA)

Purpose

This section translates applicable legislation and health regulations into clear, practical operational requirements. It is designed to support lawful operation, successful inspections, and the protection of public health, while remaining consistent with the compassionate ethos of Martin's Funerals.

National Legislative Framework (Applicable to All Provinces)

All franchise operations must comply with national legislation, including but not limited to:

- **National Health Act, 61 of 2003**
- **Regulations Relating to the Management of Human Remains (2013)**
- **Births and Deaths Registration Act, 51 of 1992**
- **Occupational Health and Safety Act, 85 of 1993**
- **Consumer Protection Act, 68 of 2008**
- **Protection of Personal Information Act, 4 of 2013 (POPIA)**
- **National Environmental Management: Waste Act, 59 of 2008**

Compliance with these instruments is mandatory and non-negotiable.

Environmental Health Oversight

Environmental Health Practitioners (EHPs), acting on behalf of local authorities or provincial departments, are authorised to:

Inspect funeral premises and vehicles;

Assess hygiene, infection control, and cold-storage compliance;

Review statutory and mortuary records;

Issue compliance notices or directives;

Recommend suspension or revocation of Certificates of Competence where required.

Inspections may be announced or unannounced.

Certificate of Competence – Operational Requirements

A valid Certificate of Competence must be obtained before commencing operations;

Certificates are premises-specific and non-transferable;

Any structural alterations or relocation require re-inspection and approval;

Certificates must be displayed prominently;

Failure to maintain standards may result in suspension or withdrawal.

Statutory Documentation and Record-Keeping

Each franchise must maintain accurate and accessible records, including:

Mortuary admission and release registers;

Death notifications and Home Affairs documentation;

Removal authorisations;

Cold-room temperature logs;

Cleaning, disinfection, and maintenance records;

Incident and injury reports;

Waste disposal records.

Records must be retained for the period prescribed by law and made available to authorised officials on request.

Infection Prevention and Control (IPC)

All premises must implement a written IPC programme that includes:

Risk assessment procedures;

PPE provision and usage;

Hand hygiene protocols;

Cleaning and disinfection schedules;

Safe handling of sharps and contaminated materials;

Management of notifiable diseases.

Staff training in IPC is mandatory.

Provincial Regulatory Alignment

Gauteng Province

In addition to national legislation, operations must comply with:
Provincial health regulations issued under the National Health Act;
Metropolitan and local municipal health by-laws;
Enhanced EHP inspection frequency in metropolitan areas.

Particular emphasis is placed on: - Cold-chain integrity; - Record accuracy; - Waste management contracts; - Vehicle hygiene and storage.

Western Cape

Operations are subject to:
Western Cape Department of Health and Wellness requirements;
Municipal Environmental Health Services enforcement;
Strict application of infection control and facility design standards.

The Western Cape applies heightened scrutiny to: - Mortuary workflow design; - Separation of clean and contaminated areas; - Staff training records; - Written IPC and SOP documentation.

KwaZulu-Natal

In KwaZulu-Natal, compliance includes:
Provincial health regulations;
District and local municipal by-laws;
Regular district-level inspections.

Focus areas commonly assessed include: - Rural access and response protocols; - Body storage capacity; - Documentation consistency; - Community and cultural engagement compliance.

Application of the Highest Standard

Where provincial or municipal requirements exceed national minimum standards**, the higher standard shall apply.**

Franchisees are responsible for familiarising themselves with local requirements and implementing them without delay.

Interaction with Inspectors and Authorities

During inspections, staff must:
Cooperate fully and respectfully;
Provide requested documentation promptly;
Avoid confrontation or obstruction;
Record any directives issued;
Notify the Franchisor immediately of material findings or notices.

REGULATIONS RELATING TO FUNERAL UNDERTAKERS' PREMISES (SOUTH AFRICA)

All Martin's Funerals premises must comply with national legislation, provincial health regulations, and local municipal by-laws applicable in South Africa, as amended from time to time.

Key Legislative Framework
Operations must comply with, inter alia:

- **National Health Act, 61 of 2003**
- **Regulations Relating to the Management of Human Remains (2013)**
- **Occupational Health and Safety Act, 85 of 1993**
- **Consumer Protection Act, 68 of 2008**
- **Local Municipal Health By-laws**
- **Environmental Health Regulations** enforced by authorised Environmental Health Practitioners (EHPs)

Certificate of Competence
Every funeral undertaker's premises must hold a valid Certificate of Competence issued by the relevant local authority.
Certificates are premises-specific and may not be transferred without written approval.
Provisional certificates may be issued at the discretion of the local authority, subject to compliance inspections.
Certificates must be displayed prominently at the business premises.

Duties of the Certificate Holder
The holder is responsible for:
Ensuring continuous compliance with health, safety, and hygiene standards;
Allowing inspections by authorised officials;
Maintaining accurate mortuary and statutory records;
Ensuring staff are appropriately trained and equipped;
Reporting any notifiable health risks or incidents immediately.

Premises Requirements
Funeral premises must:
Be structurally sound and appropriately zoned;
Provide separate, clearly designated areas for reception, administration, preparation, and storage;
Include cold-storage facilities capable of maintaining legally required temperatures;
Prevent cross-contamination through suitable workflow design;
Provide secure access control to mortuary areas;
Comply with fire safety and emergency evacuation regulations.

Hygiene and Infection Control
Strict infection prevention and control measures must be implemented;
Adequate hand-washing facilities, disinfectants, and PPE must be provided;
Waste disposal must comply with municipal and environmental health regulations;
Vehicles and equipment must be cleaned and disinfected after each use;
Bodies must be handled with respect and in accordance with public health guidelines.

Suspension or Revocation
A Certificate of Competence may be suspended or revoked if:
Premises fail to meet prescribed standards;
Public health risks are identified;
False information was supplied during application;
Conditions of operation are breached.

Closing Statement
Martin's Funerals is built on faith, integrity, discipline, and service excellence. Every franchise holder and employee is a custodian of this legacy. Compliance with this manual is not optional—it is fundamental to maintaining the trust placed in us by the families and communities we serve.

Confidentiality remains the golden rule.

Context note (important): The text provided is **Government Notice No. 237 of 8 February 1985**, made under the former **Health Act, 1977 (Act 63 of 1977)**. In practice, the modern national framework governing funeral undertaker premises and mortuaries is found under the **National Health Act, 2003 (Act 61 of 2003)**, notably the **Regulations Relating to the Management of Human Remains, 2013 (GN R363).**

Many municipalities still reference older terminology in by-laws and local processes, but operational compliance should be aligned to the **current national regulations and the relevant municipal by-laws**.

A) Definitions (Plain-language)
For purposes of these requirements:
Approved means approved by the **relevant local government/municipality** or the competent health authority for that area.
Certificate of Competence (CoC) means the municipal certificate authorising **approved funeral undertaker premises or a mortuary** for the **preparation and/or storage** of human remains.
Preparation includes actions required to ready a body for burial, cremation, transport, export or other lawful disposition (including embalming where permitted).
Funeral undertaker's premises refers to premises used for the **preparation and/or storage** of human remains (as regulated).

B) Where human remains may be prepared or stored
General rule
No person may **prepare or store human remains** except on **approved funeral undertaker premises or an approved mortuary** for which a valid **Certificate of Competence** has been issued and is in force.

Municipal intervention where a nuisance/health hazard exists
Where the municipality is satisfied that a **health nuisance** exists, it may direct that activities be stopped until the nuisance is remedied, consistent with municipal enforcement powers under the current framework.

C) Exemptions (limited and controlled)
A municipality may grant a written exemption from compliance with all or part of the requirements **only where non-compliance will not create a health nuisance**, and subject to conditions and time limits set out in the exemption certificate.

D) Scope: what these premises regulations apply to (and what they don't)
These premises requirements generally **do not apply** to:
State/provincial mortuaries and hospitals under government control (where other rules apply); and
A private individual who does **not** operate as an undertaker and who only performs limited preparation **not on fixed dedicated premises** and **excluding embalming/incisions** (historical wording—always confirm current municipal interpretation).

E) Applying for (or transferring) a Certificate of Competence

1) Public notice (where required by the municipality)
Where municipal process requires it, the applicant must publish a notice that:
A CoC application will be lodged with the municipality; and
Interested/affected persons may lodge written objections within a stated period (commonly **21 days** in the older framework).
Municipal practice may differ—follow the municipality's current application pack and by-law process.

2) Submission requirements (typical minimum set)
A written application to the municipality is generally accompanied by:
A description and location of the premises;
A floor plan (often at **1:100** scale);
A site/block plan showing boundaries, north, and surrounding land use; and
Details of who will prepare human remains on site (including non-employees, if applicable).

3) Inspection prior to a decision
A municipality will not finalise a CoC decision without an inspection and report (typically by an Environmental Health Practitioner/health inspector or equivalent).

F) Issuing, validity, transfer, provisional approval
Issuing / Transfer
A CoC may be issued or transferred where the municipality is satisfied that the premises:

comply with the applicable requirements,
are suitable for preparation/storage, and
will not be offensive or create a nuisance in the immediate vicinity.

Validity & transferability
A CoC remains valid until suspended or revoked and may be transferable subject to municipal endorsement/approval.

Provisional CoC (time-limited)
A provisional certificate may be issued (historically up to **36 months**) to allow alterations so the premises can be brought into full compliance, provided no nuisance will be created. Municipalities may still use phased approvals in practice—confirm local conditions.

G) Ongoing duties of the certificate holder
The holder must **promptly notify the issuing authority in writing** of changes to key particulars provided in the application (e.g., premises changes, operational changes).

H) Suspension or revocation (due process + urgent suspension)
Grounds
A municipality may act where premises are:
hazardous to health / creating a health nuisance; or
operated contrary to legal requirements or certificate conditions.

Notice and inquiry
The holder is typically given written notice and an opportunity to be heard (in person, via a representative, or via written submissions). A record of proceedings is kept and may be accessible to the holder under conditions.

Immediate suspension (urgent cases)
Pending an inquiry, the municipality may suspend immediately where an inspection report recommends urgent action due to a nuisance/health hazard.

Effect of suspension/revocation
Once effective:
no preparation may occur on the premises,
no remains may be received for preparation, and
remains must be moved to an approved mortuary or other approved premises, unless suitable refrigeration allows temporary preservation under municipal direction.

I) Minimum premises requirements (modernised wording)
The premises must provide, at minimum:
Preparation room dedicated to preparation activities.
Change rooms (separate by sex) for employees, with adequate ablutions.
Refrigeration facilities suitable for the safe storage of human remains.
Internal washing/cleansing facilities for utensils and equipment.
Vehicle cleansing area on site, properly drained into an approved system.
Screened loading/unloading area for human remains, out of public view, with proper drainage.
Rodent-proofing and general pest control measures.

Preparation room (key build/fit-out standards)
Separated from other rooms; must not open directly onto public office/sales areas (or must be screened/concealed where legacy layouts exist).
Adequate ventilation, lighting, and odour control.
Waterproof, smooth, non-slip floors with suitable falls to an approved drainage system; hygienic wall/ceiling finishes.
Approved preparation table(s) with water supply and proper drainage; hand basins with hot/cold water, soap, nail brush, and disposable towels.
Door openings sized to allow safe movement of remains and equipment.

Refrigeration temperature control (operational standard)
The older text specifies temperature targets for remains during storage and preparation. Where your municipality still enforces these exact numbers, comply. Otherwise, follow current municipal guidance and the national human remains framework and inspection requirements.

J) Hygiene, PPE, cleaning, waste

Waste control

Solid waste must be stored in corrosion-resistant, lidded containers and disposed of per municipal requirements.

Protective clothing (PPE)

Provide and enforce use of PPE appropriate to tasks (gloves, masks, aprons, gumboots, etc.), and ensure PPE is cleaned/disinfected as required.

Cleaning and disinfection

Clean preparation surfaces immediately after each case.
Disinfect instruments/equipment after use.
Disinfect vehicles after transport where required.

LEGISLATIVE FRAMEWORK (SOUTH AFRICA)

This annexure provides a plain-language summary of the key South African legislation underpinning the Company Vehicle Policy. It is intended to assist franchisees, managers, and drivers in understanding their legal obligations.

1. National Road Traffic Act, 93 of 1996 (NRTA)

Purpose: Regulates the operation of vehicles and conduct of drivers on public roads.

Key obligations relevant to this policy:

- **Section 3:** All persons must comply with road traffic laws.
- **Sections 17 & 21:** Responsibility for vehicle compliance rests with the owner/operator.
- **Section 50:** Prohibits operating vehicles that are unroadworthy or improperly identified.
- **Section 59:** Prohibits reckless or negligent driving.
- **Section 65:** Regulates the conveyance of passengers and imposes duties regarding safety.
- **Section 89:** Creates offences for contraventions of the Act.

Practical implication: Franchisees and managers remain legally responsible for the condition, use, and lawful operation of Company vehicles, regardless of who is driving.

2. National Road Traffic Regulations, 2000

Purpose: Provides detailed operational rules under the NRTA.

Key obligations:

Valid vehicle licensing and registration.
Mandatory roadworthiness standards.
Seatbelt and passenger restrictions.
Public Driving Permit (PrDP) requirements for drivers transporting goods or persons as part of business operations.
Operator and record-keeping duties (logbooks, trip records).

Practical implication: Failure to comply can invalidate insurance cover and expose the Company and franchisee to criminal and civil liability.

3. Occupational Health and Safety Act, 85 of 1993 (OHSA)

Purpose: Protects the health and safety of employees and the public.

Key obligations:

Section 8: Employers must provide and maintain a working environment that is safe and without risk.
Section 13: Employers must ensure employees are informed, trained, and supervised.

Practical implication: Company vehicles form part of the workplace. Employers must ensure vehicles are safe, drivers are competent, and risks are actively managed.

4. Road Accident Fund Act, 56 of 1996 (RAF Act)

Purpose: Provides compensation to persons injured or killed in road accidents.

Key considerations:

Claims may be brought against the RAF, but this does not remove exposure to civil claims where negligence or unlawful conduct is proven.
Employer and operator conduct is scrutinised in serious accidents.

Practical implication: Non-compliance with vehicle and driver regulations increases the likelihood of adverse findings and recovery actions.

5. Prescription Act, 68 of 1969

Purpose: Regulates time limits for legal claims.

Key provision:

Section 11: Most civil claims prescribe after **three (3) years**.

Practical implication: Liability arising from accidents or incidents involving Company vehicles can remain enforceable for up to three years after the event.

6. Basic Conditions of Employment Act, 75 of 1997 (BCEA)
Purpose: Regulates minimum employment conditions.

Key considerations:
Lawful deductions from remuneration (with written consent).
Fair treatment of employees.

Practical implication: Written vehicle-use agreements allow lawful recovery of insurance excesses and fines.

7. Labour Relations Act, 66 of 1995 (LRA)
Purpose: Governs fair discipline and dismissal.

Practical implication: Clear vehicle policies and signed acknowledgements support fair disciplinary action for misuse, negligence, or non-compliance.

8. Consumer Protection Act, 68 of 2008 (CPA)
Purpose: Protects the public against misleading or harmful business practices.

Practical implication: Company branding and conduct of drivers must not mislead, offend, or bring the Company into disrepute when interacting with the public.

Note: This annexure is provided for guidance only and does not constitute legal advice. Franchisees are encouraged to obtain independent legal advice where necessary.

LEGAL DISCLAIMER AND INTERPRETATION CLAUSE

1. Status of this Document
This Company Vehicle Policy, including all annexures and related forms, forms an integral part of the Martin's Funerals Franchise Manual and/or conditions of employment, as applicable.

Compliance with this policy is mandatory for all franchisees, managers, employees, and authorised drivers.

2. No Limitation of Legal Duties
Nothing contained in this policy shall be interpreted as limiting, reducing, or replacing any statutory obligation imposed by South African law, including but not limited to obligations arising under the National Road Traffic Act, the Occupational Health and Safety Act, labour legislation, or common law.

3. Interpretation
3.1 This policy must be interpreted:
in a manner consistent with South African legislation;
in favour of safety, legality, and protection of the Company's reputation;
as imposing responsibility on the franchisee or operator where discretion exists.

3.2 Headings are included for convenience only and do not affect interpretation.
3.3 Where a conflict exists between this policy and any minimum legal requirement, the stricter provision shall apply.

4. Amendments and Updates
The Company reserves the right to amend, update, or replace this policy at any time, subject to reasonable notice. Continued use of Company vehicles constitutes acceptance of such amendments.

Operational amendments shall not materially increase the franchisee's cost, risk, or obligations unless disclosed and agreed as required by the Franchise Regulations.

5. Severability
Should any provision of this policy be found to be unlawful or unenforceable, such provision shall be severed, and the remaining provisions shall remain in full force and effect.

REGULATORY FRAMEWORK REFERENCES
(South Africa)

1. Protection of Personal Information Act (POPIA) – Act 4 of 2013
Relevance to Stock, Suppliers, and Sales
Franchisees handle sensitive personal information, particularly relating to:
Deceased persons' families
Customers
Suppliers
Employees

Key POPIA Obligations
Personal information must be collected **lawfully and for a defined purpose**.
Information must be **adequate, relevant, and not excessive**.
Records (orders, invoices, delivery notes, proof of payment, daily reports) must be **secured against loss, unauthorised access, or misuse**.
Supplier and customer information may **not be shared** without lawful reason or consent.
Records must only be retained for as long as **legally or operationally required**.

Operational Application
Store order forms, invoices, and supplier details securely (locked cabinets or password-protected systems).
Do not disclose customer or supplier information to unauthorised third parties.
Dispose of old records securely (shredding or secure deletion).

2. Companies Act – Act 71 of 2008
Relevance to Franchise Operations
The Companies Act governs:
Proper financial record keeping
Accountability of directors, franchise holders, and managers
Transparency in business transactions

Key Obligations
Maintain **accurate, complete, and verifiable financial records**.
All transactions must be **truthfully recorded**.
No false, misleading, or concealed transactions are permitted.
Records must be retained for the **prescribed statutory period** (minimum 7 years for financial records).

Operational Application
All income and expenses must be recorded in the Daily Report.
No parallel, informal, or "off-book" records may exist.
Purchase orders, invoices, and proof of payment must align.
Franchise holders are accountable for compliance, even if duties are delegated.

3. Value-Added Tax Act (VAT Act) – Act 89 of 1991
Relevance to Suppliers and Orders
VAT compliance affects:
Supplier selection
Pricing
Claiming of input VAT
SARS audits

Key Obligations
Only VAT-registered suppliers may charge VAT.
A valid **tax invoice** is required to claim input VAT.
VAT records must be accurate and auditable.
False or unsupported VAT claims constitute a criminal offence.

Operational Application

Confirm supplier VAT registration with SARS.
Ensure tax invoices reflect:
Supplier name and VAT number
Invoice number and date
Description of goods/services
VAT amount charged
Retain VAT documentation for at least **5 years** as required by SARS.

POPIA BREACH REPORTING WORKFLOW
Martin's Funerals – South Africa
(In accordance with the Protection of Personal Information Act, 4 of 2013)

1. Purpose
This workflow sets out the mandatory steps to be followed by all Martin's Funerals franchisees and authorised staff in the event of a **suspected or confirmed breach of personal information**, in order to:
Limit harm to affected persons,
Comply with POPIA legal obligations,
Protect the Martin's Funerals brand and franchise network.

2. What Constitutes a POPIA Breach
A data breach includes, but is not limited to:
Lost, stolen, or misplaced MF files
Theft or loss of laptops, phones, USB drives, or hard drives containing personal information
Emails or WhatsApp messages sent to the wrong recipient
Unauthorised access to filing cabinets, systems, or vehicles
Disclosure of client or deceased information to unauthorised persons
Any situation where personal information may have been accessed, altered, or destroyed unlawfully

If in doubt, treat the incident as a breach and report it.

3. Immediate Actions or objectively necessary (First Response)
Step 1: Contain the Breach (Immediately)
Stop further unauthorised access or sharing
Retrieve documents or devices where possible
Disable compromised email or system access

Step 2: Preserve Evidence
Do not delete emails, messages, or logs
Record what happened, when, where, and how

4. Internal Reporting (Within 24 Hours)
Step 3: Report Internally
The franchisee or staff member must report the breach **as soon as possible**, but no later than **24 hours**, to:
The relevant franchise owner, and
The designated Martin's Funerals POPIA / Compliance Contact (if applicable)

The report must include:
Description of the incident
Date and time of occurrence and discovery
Type of personal information involved
Number of persons potentially affected
Immediate actions or objectively necessary taken

5. Risk Assessment
Step 4: Assess Severity
The franchisee must assess:
Whether the information relates to living persons (e.g. next of kin)
Sensitivity of the information (ID numbers, contact details, medical info)
Likelihood of harm (fraud, emotional distress, reputational damage)

6. Notification Obligations
Step 5: Notify Where Required
Where there is a reasonable belief that personal information of a data subject has been accessed or acquired by an unauthorised person:
The affected data subject(s) must be notified **as soon as reasonably possible**
The Information Regulator must be notified where legally required

Notifications must:
Be factual and clear
Describe the nature of the breach
Advise on steps the data subject can take to protect themselves
Avoid speculation or admission of fault

7. Client Communication Principles
Communication must be respectful, calm, and empathetic
Only confirmed facts may be shared
Clients must never be burdened with internal franchise disputes
All communication should preferably be done by a senior franchise representative

8. Corrective and Preventative Measures
Step 6: Prevent Recurrence
After the breach:
Review internal procedures
Improve physical and electronic security
Retrain staff where necessary
Update access controls or passwords

All corrective actions must be documented.

9. Record Keeping
All breaches, including near misses, must be recorded in a **POPIA Incident Register**, including:
Incident details
Decisions taken
Notifications made
Corrective actions implemented

10. Non-Compliance
Failure to report or properly manage a POPIA breach:
Exposes the franchisee and the group to legal penalties
Constitutes a serious breach of Martin's Funerals policy
May result in disciplinary or contractual action

11. Key Principles to Remember
Act quickly
Report early
Document everything
Protect the family's dignity
When unsure — escalate

This workflow is mandatory and forms part of the Martin's Funerals POPIA compliance framework.

GOVERNANCE, FRANCHISE STRUCTURE & ETHICAL FRAMEWORK

Purpose and Application
This Operations Manual serves as the authoritative operational and ethical guide for all Martin's Funerals franchise operations. It balances regulatory compliance with the pastoral values, compassion, and dignity that define the Martin's Funerals brand.

This manual must be read and applied together with the Franchise Agreement, all Standard Operating Procedures (SOPs), and any Directives or Memoranda issued by the Franchisor.

This Master Operations Manual establishes uniform operational, ethical, legal and hygiene standards across the Martin's Funerals Group. It preserves the founding values of dignity, service excellence and accountability while ensuring full compliance with South African law.

All franchise holders, managers and employees are bound by this manual as a **condition of association, employment and operation**.
Governance Structure

Role of the Franchisor
Martin's Funerals Franchising (Pty) Ltd is responsible for:
- Protecting and developing the Martin's Funerals brand;
- Establishing operational, ethical, and service standards;
- Issuing policies, SOPs, and directives;
- Monitoring compliance across the franchise network;

Providing guidance, training, and operational support.

The Franchisor does not interfere in the daily financial management of franchisees but retains the right to enforce compliance with brand, legal, and operational standards.

Role of the Franchisee
Each franchisee is an independent business operator and is responsible for:
- Day-to-day operations of the franchise;
- Full compliance with South African law, this manual, and the Franchise Agreement;
- Staff management, training, and conduct;
- Financial management, statutory registrations, and reporting;
- Maintaining facilities, vehicles, and equipment to required standards;

Upholding the dignity of the deceased and the wellbeing of families served.

Authority and Decision-Making
Operational authority within each franchise rests with the franchisee or a formally appointed manager. Certain matters require prior written approval from the Franchisor, including but not limited to:
- Use or modification of the Martin's Funerals brand or logo;
- Advertising and public communications;
- Structural alterations to premises;
- Appointment or removal of key management staff;

Changes affecting compliance or public perception.

Ethical Framework
Core Values
Martin's Funerals is guided by the following principles:
- Dignity: Every deceased person is treated with reverence and respect.
- Compassion: Families are supported with empathy and patience.
- Integrity: Honesty and transparency underpin all interactions.
- Accountability: Every action is taken responsibly and lawfully.
- Faith and Respect: Spiritual values are honoured while respecting cultural and religious diversity.

Professional Boundaries
While pastoral care forms part of the Martin's Funerals identity, staff must:
Avoid coercion, undue influence, or canvassing;

- Respect the emotional vulnerability of families;
- Provide clear information without pressure or manipulation;

Maintain professional distance while remaining compassionate.

Confidentiality and Information Protection

All client, operational, financial, and proprietary information is strictly confidential.

Franchisees and staff shall:

- Protect personal and sensitive information in terms of the Protection of Personal Information Act (POPIA);
- Limit information access to authorised persons only;
- Refrain from discussing cases in public or informal settings;

Secure physical and electronic records appropriately.

Breach of confidentiality constitutes serious misconduct and may result in disciplinary action, termination of agreements, and legal proceedings.

Code of Conduct (Operationalised)

All employees and franchise representatives are required to:

- Act professionally at all times;
- Communicate respectfully with families, officials, and colleagues;
- Refrain from discriminatory behaviour;
- Comply with lawful instructions and procedures;

Report unethical, unsafe, or unlawful conduct without fear of retaliation.

Relationship with Authorities and Communities

Martin's Funerals maintains cooperative and respectful relationships with:

- Environmental Health Practitioners;
- Home Affairs officials;
- SAPS and forensic services;
- Municipal authorities;

Religious and community leaders.

Staff must conduct themselves in a manner that reflects positively on the brand and the profession at all times.

BRAND, MARKETING & PUBLIC INTERFACE

Purpose
This section safeguards the Martin's Funerals brand by setting clear standards for marketing, public communication, signage, and community interaction. It ensures compliance with the Consumer Protection Act, ethical advertising principles, and the values of dignity and respect associated with the profession.

Brand Identity and Corporate Image
Use of the Martin's Funerals Name and Logo
- The trade name MARTIN'S FUNERALS must be used exactly as prescribed by the Franchisor;
- Logos, colours, fonts, and layouts may not be altered or adapted without written approval;
- Only approved branding materials and suppliers may be used;

Outdated or unauthorised branding must be removed immediately upon instruction.

The brand is a protected asset and must be treated accordingly.

Advertising and Marketing Standards
All advertising and promotional activities must:
- Be factual, truthful, and verifiable;
- Comply with the Consumer Protection Act, 68 of 2008;
- Avoid misleading claims, guarantees, or comparisons;
- Refrain from exploiting grief, fear, or vulnerability;

Maintain good taste and professional dignity.

No advertising may be published without prior approval where required by the Franchisor.

Canvassing and Ethical Boundaries
- Canvassing at hospitals, mortuaries, accident scenes, or homes is strictly prohibited;
- Inducements, commissions, or gifts intended to secure business are forbidden;
- Staff must not approach families before lawful engagement is established;

Any breach may result in disciplinary action or termination of franchise rights.

Signage and Public Displays
- Signage must comply with approved corporate standards;
- Local municipal signage by-laws must be adhered to;
- Statutory certificates must be displayed prominently;

Premises must present a dignified and professional appearance at all times.

Digital Presence and Communication
Websites and Social Media
- Online content must reflect professionalism and respect;
- Client confidentiality must never be compromised;
- Complaints or sensitive matters must not be addressed publicly;

Social media use must align with brand and ethical standards.

Interaction with Media and the Public
- Only authorised representatives may engage with media;
- Public statements must be factual and measured;

Crisis or complaint-related media enquiries must be escalated immediately to the Franchisor.

Complaints, Reputation and Brand Protection
- All complaints must be logged and managed professionally;
- Prompt resolution and transparent communication are essential;
- Patterns of complaints must be reported to the Franchisor;

Reputational risks must be addressed proactively.

Community Engagement

Martin’s Funerals encourages respectful participation in community and faith-based initiatives, provided that:

- Activities align with brand values;
- No exploitation or undue influence occurs;

Participation remains voluntary and ethical.

Final Provisions

Compliance and Enforcement

Failure to comply with this manual, SOPs, or directives may result in:

- Corrective action;
- Suspension of certain rights;
- Termination of the Franchise Agreement;

Legal action where warranted.

Manual Control and Versioning

- This manual is a controlled document;
- Updates will be issued by the Franchisor;
- Only the most recent version may be used;

Obsolete versions must be removed from circulation.

MARTIN'S FUNERALS TRADE NAME, ADVERTISING MATERIAL AND PRINTING – PART 1

TRADE NAME

Our registered trade name is **MARTIN'S FUNERALS**, irrespective of any close corporation, company, or entity name used for tax or administrative purposes.

WHAT MARTIN'S FUNERALS REPRESENTS

The name **Martin's Funerals** is more than a brand—it is the foundation of our identity.
It is our **trade name**.
It reflects our **creed and values**.
Martin is the name of our **Franchisor**.

The **cross (†)** is the most significant element of our logo. Positioned at the centre of the name, it symbolises Jesus Christ, who must be central to our lives and our service. He died on the cross for us, conquered death, and ascended into heaven, where He sits at the right hand of God our Father. The **star (★)** above the "i" symbolises **life**, reflecting victory over death.

The colour **purple** represents the final phase on God's colour wheel and symbolises royalty—the colour of a King worthy of all praise.

CORPORATE IDENTITY STANDARDS

The **colour scheme, font, and layout** of the Martin's Funerals name and logo must **always** comply strictly with the specifications prescribed by the Franchisor.

The size of lettering on signage and advertising material may only differ from the standard where physical space limitations apply, and **only with the prior written consent of the Franchisor**.

LOGO USAGE

The official Martin's Funerals logo, as authorised by the Franchisor, **must appear on all**:
Advertising and promotional material
Printed matter
Business stationery
All premises
All company vehicles and trailers

The logo must be **clearly visible at all times** and may **not be altered, modified, or adapted** for any purpose.
Where the background colour interferes with logo visibility, a **white background panel** must be placed behind the logo, in accordance with official logo usage guidelines.

The marketing logo may be used in a **transparent format**, provided legibility and brand integrity are maintained.

Clothing and Embroidery Standards

Signage on clothing or embroidered items must be produced using the following thread colours only:
Yellow – *Star Gold* (1009)
Light Purple – *Jacaranda* (1077)
Dark Purple – *Regal Purple* (1083)
Black

VEHICLE SIGNAGE
STANDARD VEHICLE LOGO:
Size: **675 mm × 295 mm**
Letter height: **20 mm**

This is the **only logo format** in which the **town name and telephone number** may be included inside the logo.

SANDBLAST WINDOW STICKERS:
Size: **900 mm × 380 mm**
Letter height: **30 mm**

SIGNBOARDS
NAME BOARD – TWO CONTACT NUMBERS:
Signboard: **2450 mm × 1225 mm**
Logo: **1500 mm × 650 mm**
Address text height: **90 mm**
Telephone number height: **100 mm**
24-Hour emblem diameter: **210 mm**

NAME BOARD – THREE CONTACT NUMBERS:
Signboard: **2450 mm × 1225 mm**
Logo: **1500 mm × 650 mm**
Address text height: **77 mm**
Telephone number height: **105 mm**
24-Hour emblem diameter: **210 mm**

A-FRAME BOARDS (DOUBLE-SIDED)

TWO CONTACT NUMBERS:
Board size: **820 mm × 1225 mm**
Logo: **755 mm × 330 mm**
Name text height: **100 mm**
Address text height: **40 mm**
Telephone number height: **80 mm**
24-Hour emblem diameter: **235 mm**

THREE CONTACT NUMBERS:
Board size: **820 mm × 1225 mm**
Logo: **755 mm × 330 mm**
Name text height: **100 mm**
Address text height: **40 mm**
Telephone number height: **75 mm**
24-Hour emblem diameter: **235 mm**

No additional information may be placed inside the logo on signboards or A-frame boards.

BUSINESS HOURS SIGNAGE
Size: **400 mm × 200 mm**
Letter height: **30 mm**

REPLACEMENT OF OLD LOGOS
All outdated logos must be replaced with the current approved logo—as prescribed by the Franchisor and in cooperation with authorised suppliers—**within three (3) months** of either:
The outlet's opening date, or
The date of formal notification by the Franchisor.

ADVERTISING AND PRINTING RESTRICTIONS
No advertising material, stationery, or business cards may be produced using any trade name other than **MARTIN'S FUNERALS**.
No deviations in colour, font, size, or layout are permitted unless **approved in writing by the Franchisor**.

The Franchisor may, from time to time, require the inclusion of **standard or legally required notices** on advertising material, stationery, business cards, signage, or on the Martin's Funerals premises.

MANDATORY LEGAL NOTICES
The following notice **must be displayed at all entrances** to Martin's Funerals premises:

"**MARTIN'S FUNERALS {Outlet/Town Name} CC, {CC Registration Number}, is an independent franchise holder of the Martin's Funerals Group and Martin's Funerals Franchising (Pty) Ltd. Each franchise is individually owned and operated.**"

The following disclaimer must appear on all printed and handwritten materials:
The Franchisor accepts no responsibility whatsoever **to the extent permitted by law**, and nothing in this disclaimer limits, excludes, or purports to waive any rights or remedies available under the Consumer Protection Act, 68 of 2008, or any other applicable legislation.

Consumer Protection Act Clarification
Nothing in this disclaimer limits, excludes, or purports to waive any rights that a consumer may have under the Consumer Protection Act, 68 of 2008, or any other applicable legislation.

CERTIFICATES AND DISPLAY REQUIREMENTS
The following documents **must be framed and displayed** prominently in all offices:
Certificate of Compliance (Competency) issued by the local Health Department
Insurance Certificate in terms of **Act 37 of 2002**
Mission Statement
Relevant Association memberships

ALSO READ:
Trade Name and Signs – Part 2
*The Small Guidelines Manual in connection with signage **ANNEXURE "A"***

MARTIN'S FUNERALS TRADE NAME, ADVERTISING MATERIAL AND PRINTING – PART 2

This section must be read in conjunction with:
Trade Name and Advertising Material – Part 1
Annexure A

MANDATORY CERTIFICATES AND DISPLAYS
The following certificates and documents **must be framed and prominently displayed** in all Martin's Funerals offices, where applicable:
A valid **FSB / FSCA certificate**, reflecting the outlet's designation number
A certificate issued by the **Department of Home Affairs**, clearly indicating the designation number
A framed certificate confirming **membership of an Employers' Organisation or Union**, where applicable

The **bronze head of the Franchisor**, where provided, may be displayed in the reception area. No additions, alterations, or embellishments may be made by staff or management.

SAFETY AND INFORMATION SIGNAGE
All premises must display **clear and visible safety signage**, including but not limited to:
Steps and slopes
Emergency exits
First-aid points
Fire extinguishers

Approved **pull-up banners** may be displayed inside offices or at designated locations.

Approved **teardrop banners** may be used outside offices, at funerals, and during authorised advertising or promotional campaigns.

Please note that all reference images provided are **not drawn to scale**.

COMPLIANCE AND ENFORCEMENT
Failure by Regional Management or the Franchisor to immediately enforce any requirement, rule, or regulation shall be **without prejudice** to the rights of the Franchisor or Martin's Funerals.

Any **unauthorised use** of the name *Martin's Funerals* or the proprietary knowledge of the Franchisor shall be regarded as a **serious offence**, whether proven or not at the time of discovery.

Any **abuse or misuse** of the Martin's Funerals name may result in the **immediate termination** except where immediate action is objectively necessary and reasonably required to prevent serious harm, illegality, regulatory non-compliance, or material risk to the public, consumers, or the Martin's Funerals brand, no termination, suspension, or enforcement action shall occur without prior written notice and a reasonable opportunity to remedy the breach, in accordance with the Franchise Agreement and section 48 of the Consumer Protection Act, 68 of 2008, of all agreements and contracts, without notice. All associated legal costs shall be for the account of the offending party.

Procedural Fairness and Proportionality
Except where immediate action is objectively necessary and reasonably required to prevent serious harm, illegality, regulatory non-compliance, or material risk to the public, consumers, or the Martin's Funerals brand, all enforcement actions shall follow the deficiency correction, escalation, and notice procedures provided for in the Franchise Agreement and Operations Manual, applied reasonably and proportionately in accordance with section 48 of the Consumer Protection Act, 68 of 2008.

Procedural Fairness
Except where immediate action is objectively necessary and required to prevent serious harm to the public, the brand, or regulatory compliance, enforcement actions shall follow the deficiency correction and escalation procedures provided for in the Franchise Agreement and Operations Manual, in accordance with the principles of fairness and proportionality required by the Consumer Protection Act.

CONFIDENTIALITY

Confidentiality remains the golden and non-negotiable rule within the Martin's Funerals Group.

TRADEMARKS AND CORPORATE IDENTITY PROTECTION

The Martin's Funerals corporate colours and logo are **registered trademarks**, including:
2001/15949
2001/15950
2011/22713
2011/22708
2011/22711
2011/22710
Unauthorised reproduction or variation is strictly prohibited.

BUILDING COLOURS AND EXTERIOR STANDARDS
All exterior walls of Martin's Funerals properties—whether owned or rented (subject to approval from Martin's Funerals Franchising (Pty) Ltd where lease agreements require)—must be painted in the approved corporate colours and can be mixed at your local Universal Paints Shop:
Dark Purple – **3735-R55B** *ZVB=1Y+2.00 ZVE=2Y+44.00 ZVM=14Y+38.00 ZVK=20.00 ALLCOTE-SHEEN TINT B DEEP (20L)*: used for edging, accents, and highlights
Lilac (main exterior colour) – **LIGHT LILAC** *ZVJ=2Y+14.00 ZVM=1Y+32.00 ALLCOTE-SHEEN TINT B WHITE (20L)*: one shade darker than light purple
Light Purple (reception areas) – – **LIGHT LILAC** *ZVJ=2Y+14.00 ZVM=1Y+32.00 ALLCOTE-SHEEN TINT B WHITE (20L)*
Roofing – *Grecian Grey* (D174-3771, Plascon), mixed with Weatherguard

PRINTING AND LOGO COLOUR SPECIFICATIONS
All printing and logo reproduction must be produced **only through authorised suppliers**, using the prescribed fonts, sizes, and colour codes:
Logo outline: **Dark Purple (C78.M94.Y0.K0)**
Letters **M**, **T**, and internal logo line: **Light Purple (C36.M50.Y0.K0)**
Letters **A, R, I, N, 'S**: **Black (C100.M100.Y100.K100)**
Star symbol: ★ **Yellow (C7.M2.Y100.K0)**

COFFIN DISPLAY STANDARDS
The sequence of coffins on display stands must strictly follow the order below:
Flat Lid – top position
ROF (Raised Open Face) – below the Flat Lid
Three-Tier – below the ROF
Casket – bottom position or displayed on a separate stand

BRAND STANDARDS AND CONTINUOUS IMPROVEMENT
Martin's Funerals is built on **authentic standards, strong values, and high moral principles**, which have contributed to the group's nationwide success in funeral services and insurance offerings.

Franchise holders are expected to be **proud custodians of the brand** and active brand builders.

Continuous improvement must be maintained across:
Funeral services provided
Funeral equipment used (or not used)
Company vehicles
Office environments
Mortuary facilities

APPROVED SUB-BRAND REFERENCES
The following sub-brand references may be used **only with the correct colour codes and prior approval**, where applicable:
Martin's Transport Services
Martin's Memorial Services
Martin's 24-Hour Services
Martin's Black Empowerment Funeral Services

Also consult:
Guidelines Manual in Connection with Signage ***ANNEXURE "A"***

FRANCHISE GLOSSARY

Making an investment in a franchise can be a complex process. To assist franchisees and prospective franchisees, the following glossary sets out commonly used franchising terms together with their meanings. These definitions are intended to promote clarity and shared understanding across the Martin's Funerals Franchise System.

Advertising Fee
A contribution payable by franchisees to the network's advertising or marketing fund, usually administered by the Franchisor. This fund is used for national or regional advertising and marketing initiatives. The fee may be calculated as a percentage of turnover (typically 3%) or as a fixed monthly amount. Where applicable, details are set out in the Disclosure Document and the Franchise Agreement.

Approved Supplier
A supplier accredited in writing by the Franchisor to provide goods or services required for the daily operation of the franchised business. Approved suppliers are often appointed to ensure consistency, quality, and favourable pricing across the network.

Black Empowered Company
A company that is more than 25% owned and controlled by Black people, with meaningful participation by Black people in management and control.

B-BBEE Owned Company
A juristic person that is B-BBEE controlled, in which Black participants hold at least 51% of the economic interest, measured in accordance with the Flow-Through Principle.

Business Format Franchising
A franchising arrangement in which the Franchisor grants the Franchisee the right to operate a business under the franchise brand, using the Franchisor's systems, products, and procedures. The Franchisee makes a significant capital investment and operates the business in strict accordance with prescribed standards. The Franchisor provides initial and ongoing support and enforces compliance.

In such a system, the success of the Franchisor and Franchisee is interdependent—*a chain is only as strong as its weakest link*.

Business Plan
A document outlining the objectives of the business and the strategies for achieving them, including marketing plans and financial projections. Financial institutions generally require a comprehensive business plan when considering funding applications.

Company-Owned Unit
An outlet operating under the franchise brand but owned by the Franchisor. Such units are commonly used to pilot new systems, services, or products before implementation across the franchise network.

Consumer Protection Act (CPA)
The Consumer Protection Act No. 68 of 2008, together with its regulations, as amended from time to time.

Supremacy of the Consumer Protection Act
In the event of any conflict, inconsistency, or ambiguity between the provisions of this Manual and the Consumer Protection Act, 68 of 2008 ("the CPA"), the provisions of the CPA shall prevail to the extent of such conflict.
Nothing contained in this Manual shall be construed as limiting, excluding, or purporting to waive any right, remedy, or protection afforded to a franchisee in terms of the CPA.

Non-Retaliation
The Franchisor shall not directly or indirectly penalise, retaliate against, or subject a Franchisee to any detriment as a result of the Franchisee exercising, asserting, or seeking to enforce any right or remedy available to the Franchisee in terms of the Consumer Protection Act.
For the avoidance of doubt, such prohibited conduct includes, without limitation, termination or non-renewal of the Franchise Agreement, suspension of rights, discriminatory treatment, reduction of support or services, or any other adverse operational or commercial action linked to the exercise of rights under the CPA.

Conversion Franchise
A franchise arrangement where an existing, independent operator is invited to join the franchise network. The Franchisor gains access to an established business, while the Franchisee benefits from brand recognition, bulk purchasing, and network marketing.

Cooling-Off Period
A required period during which a prospective Franchisee has the opportunity to reconsider the franchise investment. Under applicable industry standards and legislation, a minimum disclosure period of 14 days before signing, or a cooling-off period of 10 business days after signing, must pass after the Disclosure Document is received before the Franchise Agreement may be signed or any fees paid.

Cooling-Off Period – Your Right to Cancel
You have the right to **cancel this agreement without giving a reason** within **5 business days**.

This 10-day period starts on the day:
you sign this agreement, **or**
you receive the goods (if they are delivered later).

To cancel, you must **tell us in writing** (by email or letter) within the 10-day period.
If you cancel in time, we will **refund any money you have paid**.
If goods have already been delivered, you may be responsible only for the **reasonable cost of returning them**, as allowed by law.

Copyright
All existing and future copyright (including moral rights) relating to the Franchise System, including but not limited to:

Franchise and Operations Manuals
Know-How, systems, procedures, and documentation
Corporate Identity materials
Customer databases
Supplier lists and product catalogues
Marketing materials
Business systems and licensed software

Customer
Any person residing, employed, or conducting business within the authorised area, or who enters into a contract with the Franchisee for the provision of services as described in this Operations Manual.

Disclosure Document
A document providing prospective Franchisees and their professional advisers with sufficient information to assess the franchise opportunity. It contains confidential information and may require a confidentiality undertaking prior to disclosure.

Exclusive Territory
Martin's Funerals does not grant exclusive territories. Such arrangements may contravene competition legislation and are therefore limited in enforceability.

Franchise
The right granted by the Franchisor to the Franchisee to offer specified products or services under the franchise brand, for a defined period and subject to the Franchise Agreement.

Franchise Agreement
The legally binding agreement defining the rights and obligations of the Franchisor and Franchisee, including fees, training, operational standards, and termination provisions.

Franchise Association of Southern Africa (FASA)
A non-profit organisation established in 1979 to promote ethical franchising in South Africa. FASA's Code of Ethics is widely regarded as among the most progressive internationally.

Franchise System
The complete franchise operation controlled by the Franchisor, including all franchised outlets operating under the Business System and Intellectual Property.

Franchisee / Area Developer
The individual or entity granted the right to operate a franchised business. An Area Developer may be authorised to establish multiple outlets within a defined geographical area.

Franchisee Representative Council (FRC)
A representative body elected by Franchisees to facilitate structured communication between the Franchisees and the Franchisor, and to contribute to the strategic development of the network.

Franchisor
The owner of the franchise brand, systems, and intellectual property, who grants Franchisees the right to operate under the brand in exchange for agreed fees.

Goodwill
The goodwill generated through the operation of the Franchise System and the use of the Intellectual Property, including goodwill associated with the premises.

Intellectual Property
Includes Know-How, Copyright, Goodwill, Trade Dress, Trademarks, and Trade Secrets.

Know-How
All confidential technical, operational, and commercial information relating to the Franchise System, whether recorded or unrecorded.

Management Services Fee / Royalty
An ongoing fee payable by the Franchisee to the Franchisor, usually calculated as a percentage of turnover, in exchange for ongoing operational support and system maintenance.

Operations / Franchise Manual
The Franchisor's comprehensive manual detailing the Business System, operational standards, procedures, and compliance requirements, as amended from time to time.

Penalty
An amount payable by the Franchisee to the Franchisor upon termination due to breach or other qualifying circumstances, as defined in the Franchise Agreement and Annexure "A".

Premises
The approved location from which the Franchisee operates the franchised business.

Renewal Rights
The contractual right of a Franchisee to renew the Franchise Agreement, subject to compliance with specified conditions.

Restraint of Trade
A contractual restriction preventing the Franchisee from competing with the franchise network for a reasonable period and within reasonable geographic limits.

Trade Dress
The overall visual appearance of the franchise, including signage, décor, uniforms, packaging, and vehicles.

Trademarks
All registered and unregistered trademarks owned or controlled by the Franchisor and used within the Franchise System.

Up-Front Fee
A non-refundable fee payable upon signing the Franchise Agreement, covering the right to use the franchise brand and systems and initial support provided by the Franchisor.

Working Capital
Funds required to finance the day-to-day operation of the business, including start-up costs and operational expenses until the business becomes cash-flow positive.

GENERAL OPERATIONS STANDARDS (SOUTH AFRICA)

This document preserves the original intent—service excellence, dignity, discipline, and consistency—while aligning key sections with South African workplace and regulatory requirements.

Business Hours and Availability
Martin's Funerals operates as a **24-hour essential service**. No family requiring assistance may be turned away.

Official Office Hours
Monday to Friday: 08h00 – 17h00
Saturday: 08h00 – 13h00

After-Hours Service (On Call)
Monday to Sunday: 24 hours (After-hours services operate on an on-call basis in compliance with labour legislation.)

Punctuality, availability and compassion are non-negotiable standards.

Working time compliance (South Africa)
When scheduling shifts, standby, overtime, Sunday work, and public holidays, managers must ensure compliance with the **Basic Conditions of Employment Act (BCEA)** on ordinary hours of work, overtime, rest periods, meal intervals, Sunday and night work.

Operational needs do not remove legal obligations—plan rosters and standby arrangements accordingly.

Punctuality
Punctuality is a core professional standard.

Rule of thumb: rather be early than late—especially for removals, arrangements, and services.

DRESS CODE AND PERSONAL PRESENTATION
All employees must present a neat, dignified and professional appearance at all times.

Modesty, hygiene and cultural sensitivity are mandatory. Detailed dress standards for men and women apply as issued in this manual.

Corporate identity
The **Martin's Funerals logo must be visible on approved attire**.
Corporate colours: **Black, White, Purple**.

General standards (all employees)
Ensure correct sizing before ordering uniform items.
Maintain garments per manufacturer instructions.
Clothing must be clean, pressed, and in good repair.

Not permitted
Shorts
Low-cut, see-through, or overly casual tops
Mini skirts/dresses (shorter than approximately four fingers above the knee)

Women – recommended standards
Hosiery: flesh-toned or black (keep a spare pair available).
Shoes: professional, with heels **no higher than ~8 cm**.
Hair: neat, secured away from the face; conservative accessories preferred.
Undergarments: must not be visible; neutral colours recommended.
Jewellery: simple and professional; avoid excessive items.
Permanent employees should have at least one suitable jacket/blazer for services.
Skirt/dress length: professional (around knee length to mid-calf).

Men – recommended standards

Hair and grooming: neat; nails clean.

Belts and shoes: matching colours.

Socks: darker than trousers.

Use conservative accessories (e.g., tie clips) where needed.

Men – not permitted

Earrings at work (unless specifically approved for cultural/religious reasons and aligned with uniform standards)

Bright/coloured vests or T-shirts under dress shirts

Novelty or pastel socks with formal wear

TELEPHONE ETIQUETTE AND CALL HANDLING

Answering standard

Telephones must be answered **within three rings** using an approved greeting. Communication must be clear, respectful and accurate.

Suggested greeting (adapt as appropriate):
"Martin's Funerals, good morning/afternoon. Goeie môre/middag. Dumela."
Where suitable, greet in the predominant local language.

Call conduct

Speak clearly, calmly, and respectfully.
Take complete messages and confirm details by repeating them back.

Record at minimum:
Full names
Address/location
Contact numbers
Clear directions / landmarks

Pricing and information

To protect families, ensure accuracy, and prevent misuse of incomplete information:
Do not provide detailed quotations or itemised pricing over the phone until:
the correct decision-maker is confirmed, and
the required information is verified, and
the deceased is in our care (or a formal arrangement appointment is in place).

Pricing and contractual commitments may only be discussed during authorised arrangement processes.

Professional tone

Maintain kindness and composure at all times. Families remember how we made them feel.

Confidentiality and Personal Information (POPIA)

We handle highly sensitive personal information (identity details, family contacts, death documentation, medical-related cause-of-death information where applicable). All staff must comply with the **Protection of Personal Information Act (POPIA)** and related privacy duties.

All personal, medical and identity information is confidential. Disclosure is limited strictly to authorised persons and lawful purposes.

Breach of confidentiality constitutes serious misconduct.

Key expectations:
Collect and share personal information **only for lawful operational purposes**.
Share information **only with the authorised family representative/negotiator**, unless legally required.
Secure files (physical and digital) against loss, unauthorised access, or disclosure.
Discuss case details only in appropriate settings—never casually or publicly.

Business Insurance and Security

Insurance and security are the responsibility of each branch/franchise holder:
Ensure assets and property are insured at appropriate values.
Consider cover for cash on premises/in transit where operationally necessary.
Ensure premises, vehicles, and mortuary security are adequate and maintained.

Mortuary and human remain security is critical and must be treated as a priority.

Mortuary and Human Remains Compliance (South Africa)

All branches must comply with South African requirements relating to the preparation, storage, and handling of human remains, including the need for approved premises and applicable local authority controls. The **National Health Act regulations on the management of human remains** govern key requirements for funeral undertaker premises, mortuaries, transportation, cremation, and related controls.

Operational rule:
No preparation or storage of human remains may occur without a valid Certificate of Competence issued by the relevant municipality.
Premises must comply with approved plans, inspection requirements and hygiene standards at all times.

Mortuary, hygiene and human remains management
Strict hygiene, PPE usage, refrigeration control and waste management are mandatory.
Failure to comply may result in immediate suspension or closure by authorities.

Administration, documentation and record keeping
All documentation must be accurate, complete and signed where required.
Original documents may not leave the premises without authorisation. Copies must be retained securely.

BOOKKEEPING, FINANCIAL REPORTING, AND RECORD KEEPING

Daily bookkeeping

Bookkeeping must be done consistently and preferably **daily**, using the agreed internal reporting method (e.g., Daily Report).
Daily bookkeeping is mandatory. Monthly summaries must be submitted to Regional Management within prescribed timelines.
Financial records must be retained in accordance with SARS and internal policy requirements.

Accountant and compliance

Use a reputable accountant.
Confirm critical submissions in writing.
Register and monitor activity via **SARS eFiling** where applicable.

SARS record retention (South Africa)

SARS requires taxpayers to keep records to support tax compliance under the **Tax Administration Act**, and SARS provides record-keeping guidance and retention expectations.

Keep financial records securely and accessibly for the required retention periods. Where internal policy requires longer retention for operational or legal protection, follow the stricter standard.

ADMINISTRATION AND DOCUMENTATION STANDARDS

Accuracy and completeness

Keep work neat, clear, and complete.
If a field is not applicable, mark it clearly (e.g., "N/A").
Do not rely on verbal information—verify from official documents (ID and Home Affairs forms where applicable).

The authorised family representative ("Negotiator")

To avoid confusion and conflict:
The family must appoint **one primary negotiator** to finalise arrangements.
A secondary negotiator may be appointed **in writing** by the primary negotiator.

Authorisations and signatures

A signed authorisation must be obtained when removing a deceased person.
The negotiator must sign key documents (file confirmations, invoices, amendments).
Any changes must be confirmed and signed by both parties (branch representative and negotiator).

Document control

No original documents may leave the office unless properly signed out and acknowledged on a copy.
Keep copies filed and traceable at all times.

Monthly Operational Reporting (Internal)

Submit required system monthly totals to the Regional Manager **by the 1st**, and **no later than the 3rd** of the month, including totals for:

- Cash
- Sales
- Insurance
- Insurance joinings
- Society
- Society joinings
- Funerals

This supports group oversight, forecasting, and operational support.

Telephony, After-Hours Calls, and Availability

Branches are responsible for:
Installation, contracts, call costs, and usage control (Telkom or another provider).
Ensuring management and the Regional Manager have up to date **24-hour contact numbers**.

Operational expectation:
If a call cannot be answered/returned promptly, business may be redirected to the nearest branch to ensure families are served.

Premises, Hygiene, and Public-Facing Standards

Before renting or buying premises:

Confirm with the local Health Department/municipality that the premises comply with legal requirements for funeral operations, including mortuary requirements where applicable.

Premises must be:

Clean, hygienic, and presentable.

Free from offensive items, unsafe conditions, or odours.

Branded consistently with corporate colours and clear signage where possible.

COMMUNICATION TEMPLATES

Fax Cover Sheet and Confidentiality Notice

All correspondence should include a cover page stating:

- Sender
- Recipient
- Reason for communication
- Action required

Confidentiality notices remain appropriate but must also align with POPIA (privacy and lawful processing).

Letterhead and Business Correspondence

All official correspondence must use the authorised Martin's Funerals letterhead and include:
Correct logo
Company/CC registration details
Franchisee name
Physical and postal addresses
Contact numbers

Writing standards:
Date every letter/email.
Address a specific person where possible.
Use a clear subject line (e.g., "Re: …").
Keep formatting clean and consistent.
Sign correspondence to personalise it.

Letterhead and Email signature notice

This email and any attachments are sent by an independent franchisee and are intended solely for the named recipient(s). The contents may contain confidential and/or personal information protected under applicable laws, including the Protection of Personal Information Act (POPIA).
Any views or information expressed in this communication are those of the sender and do not necessarily represent those of the franchisor.
The franchisor, including its directors, members, and employees, accepts no liability for any loss or damage arising from reliance on this email, unless caused by gross negligence or unlawful conduct.
If you have received this email in error, please notify the sender immediately and delete it from your system. Unauthorized use, disclosure, or copying of this communication is prohibited.

EMPLOYEE BENEFITS (OPTIONAL GUIDANCE)

Pension/Retirement funding

There is no compulsory group pension fund. Branches may offer or facilitate retirement contributions as part of retention and employee wellbeing.

Participation in pension funds and medical aid schemes is encouraged but not compulsory unless stipulated by contract.

Medical aid

Medical aid participation is generally voluntary and employee-driven, unless a branch implements a contribution policy.

Internet, Email, and Digital Conduct

Company digital systems are business tools. Professional, lawful and respectful conduct is mandatory at all times.
Digital communications must be professional and compliant:
Company email and systems are business tools and may be monitored in line with policy and law.
Never send racist, discriminatory, defamatory, or obscene content.
Avoid ALL CAPS, excessive exclamation marks, or messaging that can be interpreted as aggressive.
Proofread: grammar and spelling reflect professionalism.
Keep threads intact for context.

This section supports POPIA-aligned confidentiality and secure handling of client and employee information.

Standardised Systems and Reporting

Franchisees must use the franchisor's prescribed systems and web-based reporting processes unless written approval is given to deviate.

Appendix: Phonetic Alphabet (Operational Use)

A – Alfa | B – Bravo | C – Charlie | D – Delta | E – Echo | F – Foxtrot | G – Golf | H – Hotel | I – India | J – Juliet | K – Kilo | L – Lima | M – Mike | N – November | O – Oscar | P – Papa | Q – Quebec | R – Romeo | S – Sierra | T – Tango | U – Uniform | V – Victor | W – Whiskey | X – X-ray | Y – Yankee | Z – Zulu

FACILITIES, MORTUARIES, VEHICLES & EQUIPMENT

Purpose

This section sets out the minimum physical, operational, and hygiene standards for facilities, mortuaries, vehicles, and equipment. These standards are designed to protect public health, ensure dignity of the deceased, support staff safety, and meet inspection and licensing requirements across South Africa.

Funeral Premises – General Requirements

All Martin's Funerals premises must:

- Be correctly zoned and approved for funeral undertaker operations;
- Be structurally sound, well maintained, and fit for purpose;
- Allow for privacy, dignity, and orderly movement of families and staff;

Comply with municipal building, fire, and safety regulations.

Premises must be kept in a clean, orderly, and professional condition at all times.

Functional Area Separation

To prevent contamination and ensure operational efficiency, premises must provide clearly defined and separated areas for:

- Public reception and consultation;
- Administrative offices;
- Body admission and preparation;
- Cold storage (mortuary refrigeration);
- Storage of equipment, PPE, and cleaning materials.

Public areas must not provide direct visibility into mortuary or preparation areas.

Mortuary Facilities

Cold Storage Requirements

- Refrigeration units must be capable of maintaining legally prescribed temperatures;
- Temperature monitoring must be conducted and recorded daily;
- Backup power or contingency plans must be in place to protect the cold chain;
- Overcrowding of refrigeration units is prohibited.

Mortuary Design and Workflow

Mortuaries must:

- Support a one-directional workflow from admission to release;
- Prevent cross-contamination between clean and contaminated areas;
- Be constructed of non-porous, washable materials;
- Provide adequate ventilation and lighting.

Hygiene and Infection Control (Facilities)

- Hand-washing facilities with running water, soap, and sanitiser must be available;
- Approved disinfectants must be used according to manufacturer instructions;
- Cleaning schedules must be documented and followed;
- Sharps and contaminated waste must be disposed of safely and legally;
- Linen and reusable materials must be handled hygienically.

Vehicles – Hearses and Removal Units

Vehicle Standards

All vehicles used for removals or transport of deceased persons must:

- Be licensed, roadworthy, and insured;
- Be dedicated for funeral use only;
- Have interiors constructed of cleanable, non-absorbent materials;
- Prevent visibility of the deceased during transport.

Cleaning and Disinfection

- Vehicles must be cleaned and disinfected after each removal;
- Cleaning logs must be maintained;
- Spill kits and PPE must be carried in vehicles.

Equipment and PPE

Equipment Standards

- All equipment must be fit for purpose and maintained in good condition;
- Maintenance and service records must be kept;
- Faulty equipment must be removed from service immediately.

Personal Protective Equipment (PPE)

Appropriate PPE must be provided and used, including:

- Gloves;
- Gowns or protective clothing;
- Masks and eye protection where required;
- Aprons and footwear protection.

PPE training is mandatory.

Storage and Waste Management

- Cleaning chemicals and hazardous substances must be stored securely;
- Medical and biological waste must be disposed of through approved service providers;
- Waste disposal contracts and manifests must be retained;
- General waste areas must be clean and pest-free.

Fire Safety and Emergency Preparedness

Premises must:

- Comply with fire safety regulations;
- Maintain fire extinguishers and emergency exits;
- Display evacuation procedures;
- Train staff in emergency response.

Inspection Readiness – Common Findings

To remain inspection-ready, franchises must avoid:

- Missing or incomplete temperature logs;
- Poor vehicle hygiene records;
- Inadequate separation of clean and dirty areas;
- Expired or missing waste contracts;
- Untrained or improperly equipped staff.

OPERATIONAL PROCEDURES & SOP ALIGNMENT

Purpose
This section sets out the standard operational procedures governing the day-to-day delivery of services by Martin's Funerals. It aligns compassion, professionalism, and legal compliance, ensuring that families are supported with dignity while all statutory and franchise requirements are met.

Admission of the Deceased
Authorisation
No removal or admission of a deceased person may take place without proper authorisation. This includes:
- Written or verbal authorisation from a next of kin or authorised representative;
- SAPS or forensic authorisation where required;
- Compliance with medico-legal requirements in cases of unnatural death.

All authorisations must be documented and retained in the official case file.

Removal Procedures
Removals must be conducted:
- Promptly and respectfully;
- Using appropriate vehicles and equipment;
- By trained staff wearing suitable PPE;
- In a manner that preserves dignity and privacy.

Staff must introduce themselves clearly, explain procedures to families, and avoid unnecessary discussion or speculation regarding cause of death.

Mortuary Admission and Identification
Upon admission:
- The deceased must be positively identified;
- Identification tags must be securely attached;
- Admission details must be recorded in the mortuary register;
- Personal effects must be documented and secured.

Any discrepancies must be reported immediately to management.

Documentation and Statutory Records
Each case file must contain, where applicable:
- Death notification forms (DHA-1663);
- Removal authorisation;
- SAPS documentation (where applicable);
- Burial or cremation orders;
- Family authorisations and instructions;
- Invoices and receipts.

Documentation must be completed accurately and legibly.

Engagement with Families
Professional Conduct
Staff must:
- Communicate clearly and compassionately;
- Allow families adequate time to make decisions;
- Avoid pressure, canvassing, or inducements;
- Respect cultural, religious, and personal preferences.

Information must be honest and transparent, with costs explained clearly once lawful possession of the deceased has been established.

Funeral Services and Ceremonies
Funeral services must be:
- Conducted in accordance with family instructions;
- Coordinated respectfully with clergy, officials, and service providers;
- Executed punctually and professionally;
- Supported by appropriate staff attire and behaviour.

Any changes to arrangements must be confirmed in writing.

Cremations and Burials
Cremations and burials must comply with:
- Applicable legislation and municipal requirements;
- Written family authorisations;
- Additional approvals in cases of unnatural death.

Documentation must be verified prior to proceeding.

Repatriations and Transfers
Where repatriation or long-distance transfer is required:
- Legal documentation must be verified;
- Transport arrangements must preserve dignity and safety;
- Coordination with authorities and receiving facilities is mandatory.

After-Care and Follow-Up
After services, franchises should:
- Ensure completion of outstanding documentation;
- Provide families with guidance on certificates and processes;
- Handle complaints promptly and respectfully;
- Maintain records for future reference.

Complaints and Incident Management
All complaints or incidents must:
- Be recorded formally;
- Be investigated promptly;
- Be escalated to the Franchisor where necessary;
- Be resolved with transparency and professionalism.

SOP Integration
This manual establishes the framework for operations. Detailed SOPs provide step-by-step instructions and must be followed at all times. Where SOPs are updated, the most recent approved version shall apply.

HAZARDOUS BIOLOGICAL MATERIALS
UNIVERSAL PRECAUTIONS – MORTUARY AND FUNERAL OPERATIONS

1. STATUS OF THIS POLICY
This Policy forms part of the **Operations Manual** as defined in Clause 23 of the Franchise Agreement
Franchise Agreement
and is binding upon the Franchisee in terms of:

- Clause 13.1 – Strict adherence to the Business System
- Clause 13.3.3 – Compliance with all applicable laws

Franchise Agreement

- Clause 13.10 – Compliance with national, provincial and municipal enactments

Franchise Agreement
Failure to comply constitutes:

- A material breach of the Franchise Agreement (Clause 33)

Franchise Agreement

- Exposure to indemnity claims in terms of Clause 13.17

Franchise Agreement

- A statutory contravention under OHSA

2. LEGAL FRAMEWORK
2.1 Occupational Health and Safety Act 85 of 1993
Section 8(1) provides:
"Every employer shall provide and maintain, as far as is reasonably practicable, a working environment that is safe and without risk to the health of his employees."
Section 8(2)(b) further requires the employer to:
"eliminate or mitigate any hazard or potential hazard to the safety or health of employees."
Each Franchisee is the "employer" for purposes of OHSA and bears full statutory responsibility.

2.2 Hazardous Biological Agents Regulations, 2022
Handling human remains constitutes exposure to a **Hazardous Biological Agent (HBA).**

Regulation 6 – Risk Assessment
Employers must conduct a risk assessment where employees may be exposed to HBAs.

Regulation 8 – Control Measures
Employers must:
"prevent exposure where reasonably practicable; or where not reasonably practicable, adequately control exposure."
Universal precautions are mandatory control measures.

2.3 National Health Act 61 of 2003
Handling of human remains must comply with:

- **Section 3(1)** – Right of access to health services
- **Section 10** – Control of communicable diseases

Funeral establishments are part of the broader public health chain.

2.4 POPIA 4 of 2013
Medical information (HIV, HBV status, cause of death) constitutes:

- **Special Personal Information (Section 26)**

Processing is lawful only if:

- Required for compliance with law (Section 27(1)(b))
- Necessary for occupational health and safety

Universal precautions ensure compliance by:

- Avoiding discriminatory disclosure
- Protecting privacy (Constitution Section 14)

2.5 Constitution of the Republic of South Africa
Relevant rights:

- Section 10 – Human Dignity

- Section 14 – Privacy
- Section 9 – Equality

All deceased persons must be treated:

- With dignity
- Without discrimination
- Without unnecessary disclosure of medical status

3. UNIVERSAL PRECAUTIONS POLICY

3.1 Core Principle

All human remains shall be treated as potentially infectious.
No distinction shall be made based on:

- Known HIV status
- Hepatitis status
- Cause of death
- Rumour or assumption

Prevention is superior to cure.

4. BIOLOGICAL MATERIALS COVERED

4.1 Primary Risk Material

Blood is the single most significant source of blood-borne pathogen transmission in a mortuary setting.

Infection control must prioritise:

- Prevention of exposure to blood
- Immediate decontamination
- Hepatitis B immunisation of exposed employees

4.2 Additional Body Fluids Requiring Universal Precautions

Universal precautions apply to:

- Semen
- Vaginal secretions
- Cerebrospinal fluid
- Synovial fluid
- Pleural fluid
- Peritoneal fluid
- Pericardial fluid
- Amniotic fluid

Although statistically lower risk than blood, transmission cannot be excluded.

5. PERSONAL PROTECTIVE EQUIPMENT (PPE)

5.1 Statutory Basis

Under OHSA Section 8(2)(d), employers must provide:
"information, instructions, training and supervision necessary."
Under HBA Regulations Regulation 9, PPE is mandatory where exposure risk exists.

5.2 Mandatory PPE for Mortuary Operations

The following PPE is compulsory during handling of human remains:

- Disposable gloves (latex or nitrile)
- Protective gown or apron
- Face mask
- Protective eye-wear or face shield
- Gumboots or impermeable footwear

PPE must be:

- Procedure appropriate
- Single use (where disposable)
- Disposed of as medical waste

6. SAFE HANDLING PROCEDURES

6.1 Sharps Control

Employees must:

- Exercise extreme care with needles and sharp instruments.
- Never recap, bend, or break needles by hand.
- Dispose immediately into an approved sharps container.

Failure to comply constitutes a breach of:

- OHSA Section 8
- Franchise Agreement Clause 13.3.3

Franchise Agreement

6.2 Hand Hygiene Protocol

Employees must:

- Immediately wash contaminated skin with soap and running water.
- Rinse contaminated gloves under running water before removal.
- Remove gloves by turning them inside out without touching contaminated surfaces.

Hands must be washed:

- After every body handling
- After glove removal
- Before eating or drinking

6.3 Prohibition on Glove Reuse

Disposable examination gloves:

- Need not be sterile for mortuary use.
- Must never be reused.
- Must never be washed or disinfected for reuse.

Under no circumstances may disposable gloves be reused.

This is a mandatory safety standard of the Franchise System.

7. MEDICAL WASTE MANAGEMENT

All contaminated waste must be:

- Placed in approved biohazard containers.
- Collected by authorised medical waste contractors.
- Disposed of in compliance with:
  - National Environmental Management: Waste Act 59 of 2008
  - Municipal by-laws

Improper disposal exposes the Franchisee to:

- Criminal liability
- Civil liability
- Franchise termination (Clause 33)

Franchise Agreement

8. TRAINING REQUIREMENTS

In terms of:

- OHSA Section 13
- Franchise Agreement Clause 12 (Training)

Franchise Agreement

Each Franchisee must ensure:

- Initial induction training on universal precautions
- Annual refresher training
- Documented attendance records
- Signed acknowledgment of this policy

9. INCIDENT REPORTING

Any exposure incident must be:

1. Immediately reported to management.
2. Recorded in an Incident Register.
3. Evaluated for post-exposure prophylaxis.
4. Managed confidentially in compliance with POPIA.

Failure to report constitutes serious misconduct.

10. ENFORCEMENT

Non-compliance may result in:

- Disciplinary action
- Financial penalties (see Annexure A.1 Item 15 – Fines)

Franchise Agreement

- Indemnity exposure (Clause 13.17)

Franchise Agreement

- Termination (Clause 33)

Franchise Agreement

CONCLUSION

The safe handling of human remains is:

- A statutory obligation,
- A contractual obligation,
- A constitutional duty,
- A moral responsibility.

Every MARTIN'S FUNERALS Franchisee must implement universal precautions without exception to:

- Protect employees,
- Protect the public,
- Preserve dignity,
- Protect the brand,
- Maintain Franchise System integrity.

OCCUPATIONAL EXPOSURE TO BLOOD OR BODY FLUIDS
(Funeral Services – Infection Control & Legal Compliance)

1. PURPOSE
This Policy establishes the mandatory procedure to be followed in the event of occupational exposure to blood or body fluids within a Martin's Funerals Franchised Business.
This policy forms part of the **Operations Manual** as contemplated in Clause 23 of the Franchise Agreement
Franchise Agreement
and is binding upon the Franchisee in terms of Clause 13.1 (strict adherence to the Business System and Operations Manual)
Franchise Agreement.

2. LEGAL FRAMEWORK
This policy gives effect to:
2.1 Occupational Health and Safety Act 85 of 1993

- **Section 8(1)** – Employer must provide and maintain, as far as reasonably practicable, a working environment that is safe and without risk to the health of employees.
- **Section 8(2)(d)** – Provision of safe systems of work.
- **Section 8(2)(e)** – Provision of information, instructions, training and supervision.
- **General Safety Regulations** – Prevention of exposure to hazardous biological agents.

2.2 Compensation for Occupational Injuries and Diseases Act 130 of 1993 (COIDA)

- **Section 22** – Right to compensation for occupational injury.
- **Section 38** – Employer duty to report accidents.
- **Section 39** – Submission of prescribed forms.

2.3 Protection of Personal Information Act 4 of 2013 (POPIA)

- **Section 26** – Processing of special personal information (health data).
- **Section 19** – Security safeguards.

2.4 Constitution of the Republic of South Africa, 1996

- **Section 23(1)** – Right to fair labour practices.
- **Section 24(a)** – Right to an environment not harmful to health or wellbeing.

2.5 Franchise Agreement Obligations
In terms of:

- Clause 13.3.3 – Franchisee must comply with all applicable laws

Franchise Agreement

- Clause 13.10 – Franchisee must comply with national and municipal enactments

Franchise Agreement

- Clause 13.1 – Strict adherence to Operations Manual

Franchise Agreement
Compliance with this policy is mandatory.
Failure to comply constitutes:

- A breach under Clause 33 (Termination by the Franchisor)

Franchise Agreement

- Grounds for Deficiency Correction under Clause 32

Franchise Agreement

3. SCOPE
This policy applies to:

- Removal of remains
- Embalming procedures
- Body preparation
- Handling of contaminated instruments
- Cleaning and sanitation
- Transportation of remains
- Any incident involving sharp objects or bodily fluids

4. DEFINITION OF EXPOSURE

Exposure includes but is not limited to:

1. Needle stick or sharp object puncture
2. Contact of blood or bodily fluids with:
    - Broken skin
    - Eyes
    - Mouth
    - Other mucous membranes

5. IMMEDIATE RESPONSE PROCEDURE

5.1 Sharp Object Injury (Percutaneous Exposure)

Immediately:

1. Allow the wound to bleed freely.
2. Apply gentle pressure to encourage bleeding.
3. Wash thoroughly with soap and running water.
4. Disinfect appropriately.
5. Apply sterile dressing.
6. Report immediately (see Section 6).

⚠ The wound must not be sucked. Caustic substances must not be applied.

5.2 Eye Exposure

1. Irrigate immediately with clean running water or sterile saline.
2. Continue flushing for several minutes.
3. Remove contact lenses if applicable.
4. Seek urgent medical assessment.

5.3 Mouth or Mucous Membrane Exposure

1. Rinse mouth thoroughly with running water.
2. Do not swallow.
3. Repeat rinsing.
4. Report immediately.

6. MANDATORY REPORTING

6.1 Immediate Reporting to Franchisee

The Employee must report the incident immediately to:

- The Franchisee; or
- The designated Health & Safety Officer.

Failure to report may prejudice a COIDA claim.

6.2 Franchisee Duties (Employer Obligations)

In terms of OHSA Section 8 and COIDA Sections 38–39, the Franchisee must:

1. Record the incident in the Incident Register.
2. Investigate the cause.
3. Arrange immediate medical assessment.
4. Complete prescribed COIDA documentation.
5. Submit forms within statutory timeframes.
6. Retain copies of all documents.

Failure to do so constitutes:

- Statutory non-compliance
- Breach of Clause 13.3.3

Franchise Agreement

- Potential grounds for termination under Clause 33

Franchise Agreement

7. MEDICAL MANAGEMENT

The exposed Employee must:

- Be taken immediately to a hospital or medical practitioner capable of administering Post-Exposure Prophylaxis (PEP).
- Ensure completion of all COIDA forms.
- Follow the attending doctor's protocol strictly.

The Franchisee must adhere to all medical instructions provided.

8. RECORD KEEPING & POPIA COMPLIANCE

8.1 Record Retention

All exposure documentation must be:

- Accurate
- Complete
- Kept at Franchise premises
- Stored securely

8.2 Confidentiality

Medical information is "Special Personal Information" under POPIA Section 26.
Accordingly:

- Access must be restricted.
- Records must be securely stored.
- Disclosure only permitted where legally required.
- Electronic data must comply with security safeguards (POPIA Section 19).

Breach of confidentiality constitutes:

- Statutory violation
- Breach of Clause 24 (Confidentiality)

Franchise Agreement

9. PREVENTATIVE MEASURES (FUNERAL INDUSTRY RISK CONTROLS)

In compliance with OHSA Section 8(2)(b):
The Franchisee must ensure:

- Use of appropriate PPE (gloves, masks, eye protection).
- Approved sharps containers.
- Proper disposal of contaminated waste.
- Annual infection control training.
- Universal precautions at all times.

Non-compliance may result in:

- Deficiency correction under Clause 32

Franchise Agreement

- Termination under Clause 33

Franchise Agreement

- Regulatory penalties

10. DISCIPLINARY CONSEQUENCES

Employees who fail to comply with safety procedures may face disciplinary action under:

- HR policies in the Operations Manual
- Clause 13 (Franchisee Obligations)

Franchise Agreement

11. FRANCHISE SYSTEM PROTECTION

The Franchisee acknowledges in Clause 2.4.4 that the manner in which the Franchised Business is conducted influences the public image of the Franchise System
Franchise Agreement
.
Improper management of exposure incidents:

- Risks reputational harm
- Creates legal liability
- Endangers Intellectual Property goodwill

Accordingly, strict compliance is essential.

POLICY STATUS

Document Classification: Mandatory Operations Manual Standard
Applicable To: All Martin's Funerals Franchisees
Industry: Funeral Services – South Africa

Legal Alignment: OHSA | COIDA | POPIA | Constitution
Franchise Cross-Reference: Clauses 13, 23, 24, 32, 33
Franchise Agreement

OCCUPATIONAL HEALTH & SAFETY POLICY
HEPATITIS B IMMUNISATION PROGRAMME
(Funeral Industry – South Africa)

1. PURPOSE AND LEGAL FOUNDATION

This Policy regulates the compulsory Hepatitis B immunisation programme applicable to employees of Martin's Funerals Franchisees who are exposed to human remains and biological material in the ordinary course of funeral operations.
This Policy is adopted and enforced in terms of:

- **Clause 13.3.3** – requiring compliance with all applicable laws and sanitary requirements

Franchise Agreement

- **Clause 13.10** – requiring compliance with national, provincial and municipal enactments

Franchise Agreement

- **Clause 23** – incorporation of Operations Manual provisions into the Franchise Agreement

Franchise Agreement

- **Clause 32** – Operating Performance Standards and compliance enforcement

Franchise Agreement

- **Clause 33** – termination for material breach

Franchise Agreement
Statutory Authority:

- **OHSA Section 8(1)** – Employer must provide and maintain a safe working environment.
- **OHSA Section 8(2)(b)** – Employer must eliminate or mitigate hazards.
- **Hazardous Biological Agents Regulations, 2022 – Regulation 6 & 8** – Risk assessment and medical surveillance including vaccination where indicated.
- **National Health Act Section 90** – Regulation of handling of human remains.
- **POPIA Sections 26 & 32** – Protection of special personal information (medical data).
- **Constitution Section 10 & 27** – Dignity and access to healthcare.

2. INDUSTRY-SPECIFIC RISK CONTEXT (FUNERAL PARLOUR OPERATIONS)

Funeral parlours and mortuary facilities constitute high-risk biological exposure environments due to:

- Handling of deceased persons.
- Contact with blood and bodily fluids.
- Post-mortem procedures.
- Embalming activities.
- Removal and preparation of remains.

Hepatitis B is classified as a **Hazardous Biological Agent (HBA)**.
Failure to implement protective measures may constitute:

- A criminal offence under **OHSA Section 38**
- A material breach of the Franchise Agreement
- A violation of Operating Performance Standards under Clause 32

Franchise Agreement

3. APPLICATION

This Policy applies to:

- Embalmers
- Mortuary attendants
- Removal personnel
- Cleaning staff in mortuary areas
- Any employee identified through risk assessment as exposed to biological hazards

4. FRANCHISEE RESPONSIBILITY

In terms of Clause 13.3.3 and Clause 13.10
Franchise Agreement:
The Franchisee, as "Employer" under OHSA, shall:

1. Conduct a Hazardous Biological Agent Risk Assessment.
2. Implement compulsory Hepatitis B vaccination for exposed employees.
3. Fund the vaccination programme.
4. Ensure medical surveillance.
5. Maintain compliant records.

6. Ensure confidentiality in terms of POPIA.

Non-compliance constitutes a material breach in terms of Clause 33
Franchise Agreement

5. IMMUNISATION PROCEDURE

5.1 Mandatory Vaccination

All exposed employees must be vaccinated unless:

- Laboratory-confirmed Hepatitis B surface antibodies are demonstrated.

This is a preventative occupational safety measure under OHSA Section 8.

5.2 Vaccination Schedule

The standard schedule shall consist of:

1. First intramuscular injection – Day 0
2. Second injection – 1 month after first
3. Third injection – 6 months after first

(Where medically indicated, an accelerated schedule may be used.)

5.3 Post-Vaccination Testing

- Blood test for Hepatitis B surface antibodies 4 weeks after final dose.
- If no seroconversion:
    - Additional booster permitted.
    - Retesting required after 4 weeks.

All testing must be conducted by a registered medical practitioner.

5.4 Booster Policy

Boosters must be administered in accordance with:

- Department of Health guidelines
- Current HBA Regulations

In the absence of updated directives, boosters shall not exceed a five-year interval.

6. REFUSAL OF VACCINATION

In the event of refusal:

1. The Franchisee must provide written risk information.
2. The employee must sign a refusal declaration.
3. Refusal must be recorded on the confidential medical file.
4. The Franchisee must assess continued suitability for exposure duties under OHSA Section 8.

Refusal does not absolve the Franchisee of statutory obligations.

7. TRAINING AND INFORMATION

In terms of OHSA Section 13 and Clause 13.1 (adherence to Operations Manual)
Franchise Agreement
:
All exposed employees must receive training on:

- Hepatitis B transmission
- Universal precautions
- PPE usage
- Post-exposure protocol
- Sharps management
- Mortuary hygiene

Training must be documented.

8. RECORD KEEPING & POPIA COMPLIANCE

8.1 Record Requirements

The Franchisee must maintain:

- Vaccination dates
- Serology results
- Booster records
- Refusal forms

Records must be retained in compliance with HBA Regulations.

8.2 POPIA Compliance
Medical information constitutes **Special Personal Information** under Section 26 of POPIA.
The Franchisee shall:

- Process medical data lawfully (Section 9)
- Secure information (Section 19)
- Restrict access
- Retain only for statutory duration
- Prevent unauthorised disclosure

The Franchisor may audit compliance but may not require disclosure of detailed medical records unless legally justified.

9. ENFORCEMENT
Failure to implement this policy may trigger:

- Deficiency Correction Procedure (Clause 32)

Franchise Agreement

- Fines under Annexure A.1 Item 15

Franchise Agreement

- Termination under Clause 33

Franchise Agreement

10. CONSTITUTIONAL BALANCING
This Policy balances:

- Section 12(2) – Bodily integrity
- Section 27 – Healthcare access
- Section 10 – Human dignity
- Employer's OHSA duty of care

Where conflict arises, reasonable accommodation must be explored while maintaining workplace safety.

FORMAL STATUS
This Policy:

- Forms part of the **Operations Manual (Clause 23)**

Franchise Agreement

- Is contractually binding on all Franchisees
- Is enforceable under the Franchise Agreement
- Applies across the entire Franchise System

MEDICAL & INFECTIOUS WASTE MANAGEMENT POLICY
(Mortuary Operations – Republic of South Africa)

1. POLICY AUTHORITY AND LEGAL FOUNDATION
This Policy is issued in terms of:

- **Clause 23 (Operations Manual)** of the Franchise Agreement

Franchise Agreement

- **Clause 13.1 (Business System Compliance)**

Franchise Agreement

- **Clause 13.3.3 (Compliance with Laws and Sanitary Conditions)**

Franchise Agreement

- **Clause 13.10 (Statutory Provisions)**

Franchise Agreement
All Franchisees are contractually bound to comply strictly with this Policy.
Failure to comply may constitute:

- A breach in terms of **Clause 32 (Deficiency Correction)**

Franchise Agreement

- A material breach justifying termination under **Clause 33**

Franchise Agreement

2. LEGISLATIVE FRAMEWORK
This Policy is aligned with:
2.1 Occupational Health and Safety Act 85 of 1993 (OHSA)

- **Section 8(1)** – Employer must provide and maintain a working environment that is safe and without risk to the health of employees.
- **Section 8(2)(b)** – Employer must eliminate or mitigate hazards.
- **Hazardous Biological Agents Regulations** – Control of exposure to blood-borne pathogens.

2.2 National Health Act 61 of 2003

- **Section 90(1)(u)** – Regulations relating to management of healthcare waste.

2.3 National Environmental Management: Waste Act 59 of 2008

- **Section 16 (General Duty of Care)** – Any person who generates waste must take reasonable measures to avoid harm to health and environment.

2.4 Constitution of the Republic of South Africa, 1996

- **Section 24(a)** – Everyone has the right to an environment that is not harmful to their health or well-being.

2.5 Protection of Personal Information Act 4 of 2013 (POPIA)

- **Section 19** – Responsible party must secure integrity and confidentiality of personal information.
- Mortuary waste containing identifiable personal information must be handled accordingly.

3. PURPOSE OF THIS POLICY
The purpose of this document is:

- To prevent blood-borne and infectious disease transmission in mortuary environments.
- To ensure full compliance with statutory and contractual obligations.
- To protect employees, the public, and the Martin's Funerals brand.
- To standardise waste handling procedures across the Franchise System.

4. CLASSIFICATION OF MEDICAL AND INFECTIOUS WASTE

4.1 Blood and Body Fluid Contaminated Waste
Includes:

- Human tissue
- Blood-contaminated materials
- Body bags
- Plastic body sheets
- Blankets used for removal
- Dressings and bandages

- Clothing removed from deceased persons
- Disposable PPE

Disposal Requirements:

- Must be placed in **approved biohazard containers lined with red biohazard bags**.
- Containers must remain closed at all times.
- No manual compression of waste permitted.
- Containers must be sealed at ¾ capacity.

Legal Basis:
OHSA Section 8(1) & Hazardous Biological Agents Regulations.

4.2 Sharps Waste
Includes:

- Needles
- Syringes
- Scalpel blades
- Surgical staples

Disposal Requirements:

- Must be disposed of immediately into **yellow puncture-resistant sharps containers**.
- Sharps containers may never be overfilled.
- Sharps may never be disposed in general waste or red bags.

Legal Basis:
OHSA Section 8(2)(b).

4.3 Microbiological / Anatomical Waste
Includes:

- Blood
- Faeces
- Tissue
- Other biological substances

Disposal Requirements:

- Must be placed in red biohazard-lined containers.
- Containers must be sealed and stored securely.
- No waste may be removed once deposited.

Legal Basis:
National Health Act & NEM: Waste Act.

5. STORAGE REQUIREMENTS
In compliance with:

- OHSA Section 8
- Constitution Section 24(a)
- Clause 13.3.3 of the Franchise Agreement

Franchise Agreement
The following applies:

- Biohazard waste must be stored **inside the mortuary only**.
- Storage area must be restricted to authorised mortuary staff.
- No container may be accessible to the public or non-mortuary workers.
- Date of first use must be clearly marked on each container.
- No container may remain in use longer than **one (1) calendar month**, regardless of fill level.

6. WASTE MANAGEMENT CONTRACT REQUIREMENTS
In terms of:

- NEM: Waste Act Section 16
- Clause 13.10 (Statutory Provisions)

Franchise Agreement
Each Franchisee:

- Must have a written contract with a licensed medical waste removal company.
- The company must be authorised to transport and dispose of hazardous healthcare risk waste (HCRW).

- Waste must be collected according to regulatory requirements.

7. CERTIFICATION AND RECORD KEEPING

In compliance with:

- NEM: Waste Act
- Clause 13.15 (Reporting)

Franchise Agreement

- Clause 32 (Deficiency Correction)

Franchise Agreement

Each Franchise must:

- Obtain a **Waste Disposal Certificate / Manifest** for each collection.
- Maintain a Waste Register including:
    - Container start date
    - Container removal date
    - Collection dates
    - Waste service provider details
- Retain certificates on file for inspection.
- Make records available during Franchisor inspections under Clause 13.9

Franchise Agreement

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8. POPIA COMPLIANCE (PERSONAL INFORMATION IN WASTE)

Where waste contains:

- Identifiable clothing
- Hospital tags
- Documentation
- Name labels

The Franchisee must:

- Remove and separately destroy identifiable documents.
- Ensure secure destruction.
- Prevent unlawful disclosure of personal information.

This is required under:

- POPIA Section 19
- Clause 24 (Confidentiality)

Franchise Agreement

9. EMPLOYEE TRAINING

In compliance with:

- OHSA Section 13
- Clause 13.5 (Training & Confidentiality)

Franchise Agreement

All mortuary staff must receive training on:

- Blood-borne pathogen risks
- Waste classification
- Sharps handling
- PPE usage
- Emergency exposure response

Training must be documented and refreshed annually.

10. AUDIT AND ENFORCEMENT

In terms of:

- Clause 13.9 (Inspection Rights)

Franchise Agreement

- Clause 32 (Deficiency Correction)

Franchise Agreement

- Clause 33 (Termination)

Franchise Agreement

The Franchisor may:

- Conduct compliance inspections.
- Issue corrective action notices.
- Impose fines under Annexure A.1 Item 15.
- Terminate the Agreement for material non-compliance.

11. NON-COMPLIANCE CONSEQUENCES

Non-compliance may result in:

- Regulatory penalties
- Criminal liability under OHSA
- Environmental liability
- Breach of Franchise Agreement
- Termination
- Penalty in terms of Annexure A.1 Item 16

12. POLICY STATUS

This Policy forms part of the **Operations Manual** under Clause 23
Franchise Agreement
and is binding on all Franchisees.

MORTUARY OPERATIONS, INFECTION CONTROL AND REMOVAL PROCEDURES
(Legislative Compliance – Republic of South Africa)

1. LEGAL STATUS AND BINDING EFFECT
This Policy forms part of the **Operations Manual** as defined in Clause 3.34 and governed by Clause 23 of the Franchise Agreement Franchise Agreement.
In terms of Clause 13.1, the Franchisee:
"will operate the Franchised Business strictly in accordance with the Business System and will ensure strict adherence to the Operations Manual…"
Franchise Agreement
Compliance with this Policy is therefore:

- Mandatory
- Contractually enforceable
- A material term of the Franchise Agreement (Clause 33.2)

Franchise Agreement
Failure to comply may constitute grounds for termination under Clause 33
Franchise Agreement.

2. CONSTITUTIONAL FOUNDATION
All mortuary and removal activities must respect:

- **Section 10 – Right to Human Dignity**
- **Section 14 – Right to Privacy**
- **Section 24 – Environment Not Harmful to Health or Well-being**

Every deceased person must be treated with dignity, respect and confidentiality.

3. ACCESS CONTROL TO MORTUARY
Legislative Basis:

- OHSA Section 8(1)
- HBA Regulations Regulation 6

Policy:
3.1 The mortuary is a **Restricted Biohazard Area**.
3.2 No unauthorised person may enter the mortuary.
3.3 Access is limited strictly to:

- Trained mortuary personnel
- Authorised supervisory staff

3.4 Warning signage must be displayed at all entrances stating:

- "BIOHAZARD AREA"
- "AUTHORISED PERSONNEL ONLY"

3.5 A Mortuary Access Register must be maintained.

4. PERSONAL PROTECTIVE EQUIPMENT (PPE)
Legislative Basis:

- OHSA Section 8(2)(b)
- HBA Regulations Regulation 7
- General Safety Regulations

4.1 Mandatory Protective Clothing
All personnel entering the mortuary must wear:

- Disposable gloves (latex or latex-free)
- Face mask (medical grade minimum)
- Eye protection
- Protective overalls or coats
- Waterproof apron
- Protective footwear or gumboots

The mortuary must at all times be treated as a potentially infectious area.
Protective wear must not be worn outside the mortuary.

4.2 Wound and Skin Protection
In terms of HBA Regulation 9:

- All cuts or abrasions must be covered with waterproof dressings before gloving.
- Gloves must always be worn when handling remains.

4.3 Hand Hygiene
Personnel must:

- Wash hands for a minimum of 30 seconds after:
    - Removing gloves
    - Contact with blood or bodily fluids

This is compulsory under standard infection prevention protocols.

4.4 De-gloving Procedure
Gloves must be removed:

- By grasping the cuff
- Pulling over the fingers
- Turning inside out
- Avoiding skin contact with contaminated surfaces

Used gloves must be disposed of as biohazard waste.

5. BLOOD AND BIOLOGICAL FLUID MANAGEMENT
Legislative Basis:

- HBA Regulations Regulation 16
- National Environmental Management: Waste Act 59 of 2008

5.1 Contaminated Waste
All blood-stained material must:

- Be placed in red-lined biohazard bags
- Be disposed of via licensed medical waste service providers

5.2 Cleaning Blood Spills
All spills must:

- Be cleaned immediately
- Be disinfected using approved mortuary-grade chemicals
- Be recorded in cleaning logs

Mortuary cleaning equipment:
MUST NOT be used outside the mortuary under any circumstances.

5.3 Excessive Blood
Where excessive blood is present:

- Use disposable absorbent materials
- Dispose in red biohazard containers

6. INFECTIOUS DISEASE PROTOCOLS
Where the deceased is known or suspected to have:

- Tuberculosis (TB)
- COVID-19
- Other airborne diseases

The following applies:

- Body must be sealed in an approved body bag
- Handling must be minimised
- Respiratory PPE must be worn

In accordance with:

- HBA Regulations Regulation 6
- NICD guidelines

7. CULTURAL AND RELIGIOUS PRACTICES
Constitutional Alignment:

- Section 15 – Freedom of Religion

Where families request ritual washing:
7.1 Risks must be explained verbally and in writing.
7.2 PPE must be supplied to family members.
7.3 An indemnity must be signed prior to entry.
7.4 A staff member must supervise.
This balances religious rights with OHSA obligations.

8. CHEMICAL SAFETY

Legislative Basis:

- Hazardous Chemical Agents Regulations, 2021

8.1 All mortuary chemicals must:

- Have Safety Data Sheets (SDS)
- Be stored securely
- Be clearly labelled

8.2 Staff must receive documented training.
8.3 Emergency exposure procedures must be displayed.

9. STORAGE AND EQUIPMENT CONTROL

9.1 No stock, equipment or unrelated items may be stored in the mortuary.
9.2 All equipment must be:

- Stored safely
- Cleaned and disinfected after use

9.3 Removal equipment and vehicles must be disinfected after every removal.

10. FRANCHISEE RESPONSIBILITIES

In terms of Clause 13.3.3, the Franchisee:
"will comply in the conduct of the Franchised Business with all applicable laws…"
Franchise Agreement
The Franchisee must:

- Provide adequate PPE
- Maintain cleaning schedules
- Keep safety records
- Conduct risk assessments

If a staff member refuses PPE:

- The refusal must be recorded in writing
- A copy placed on the personnel file
- Disciplinary action may follow

11. POPIA COMPLIANCE (PROTECTION OF PERSONAL INFORMATION)

Legislative Basis:

- POPIA Section 19 (Security Safeguards)
- POPIA Section 20 (Operator Responsibility)

All information relating to:

- The deceased
- Medical causes of death
- Family details
- Removal records

Must:

- Be kept confidential
- Be secured physically and digitally
- Only be accessed by authorised personnel

This aligns with:

- Clause 24 (Confidentiality)

Franchise Agreement

- Clause 22 (Intellectual Property & Records Protection)

Franchise Agreement

12. RECORD KEEPING

The Franchisee must maintain:

- Cleaning logs
- PPE issue logs
- Chemical registers
- Waste disposal certificates
- Incident reports
- Mortuary access register

Records must be available for inspection under Clause 13.9
Franchise Agreement.

13. DISCIPLINARY AND CONTRACTUAL CONSEQUENCES

Non-compliance constitutes:

- Breach of Clause 13 (Franchisee Obligations)

Franchise Agreement

- Non-compliance with Operating Performance Standards
- Potential grounds for deficiency correction (Clause 32)

Franchise Agreement

- Potential termination (Clause 33)

Franchise Agreement

14. PURPOSE OF THIS POLICY

This Policy exists to:

- Protect employees
- Protect families
- Protect the dignity of the deceased
- Protect the Franchise System
- Ensure statutory compliance
- Protect the Franchisor's Intellectual Property and Goodwill

POLICY & PROCEDURE
COLLECTION AND HANDOVER OF HUMAN REMAINS

1. LEGAL AND CONTRACTUAL AUTHORITY
This Policy forms part of the **Operations Manual** as contemplated in:

- **Clause 23 – Operations Manual**

Franchise Agreement

- **Clause 13.1 – Franchisee obligation to strictly comply with the Business System and Operations Manual**

Franchise Agreement

- **Clause 13.3.3 – Franchisee must comply with all applicable laws and regulations**

Franchise Agreement

- **Clause 13.10 – Statutory Provisions**

Franchise Agreement

- **Clause 13.17 – Indemnity**

Franchise Agreement

Failure to comply constitutes a breach of the Franchise Agreement and may result in corrective action in terms of Clause 32 (Deficiency Correction) and/or Clause 33 (Termination by the Franchisor)
Franchise Agreement

2. CONSTITUTIONAL FOUNDATION
This Policy gives effect to:

- **Section 10 – Constitution of the Republic of South Africa, 1996**
  "Everyone has inherent dignity and the right to have their dignity respected and protected."
- **Section 14 – Constitution**
  "Everyone has the right to privacy."

All Human Remains shall be handled with dignity, respect, and confidentiality.

3. STATUTORY FRAMEWORK
This policy complies with:
3.1 National Health Act 61 of 2003

- Section 68 – Regulations regarding disposal and handling of human remains
- Section 90(1)(u) – Regulatory authority over human remains

3.2 Regulations Relating to the Management of Human Remains (R363 of 2013)

- Regulation 3 – Handling and transport
- Regulation 5 – Removal of human remains
- Regulation 6 – Identification
- Regulation 7 – Record keeping

3.3 Occupational Health and Safety Act 85 of 1993

- Section 8 – Employer's duty to provide safe working environment
- Section 14 – Employee duty to comply

3.4 Protection of Personal Information Act 4 of 2013 (POPIA)

- Section 11 – Lawful processing
- Section 13 – Collection directly from data subject
- Section 19 – Security safeguards
- Section 26–27 – Special personal information (health data)

4. OBJECTIVE
To establish a uniform, legally compliant and franchise-controlled procedure for:

- Collection of Human Remains
- Handover of Human Remains
- Identification and verification
- Inspection and documentation
- Protection of personal information
- Chain of custody control

5. RESPONSIBILITY

5.1 Franchisee

In terms of Clause 13.3.3 and 13.10
Franchise Agreement
the Franchisee shall:

- Ensure all staff are trained in this procedure
- Enforce strict compliance
- Maintain statutory registers
- Ensure POPIA compliance
- Ensure OHSA compliance
- Ensure secure use of the prescribed Martin's Funerals software system (Clause 13.19)

Franchise Agreement

5.2 Employees

Employees must:

- Follow this procedure strictly
- Wear prescribed PPE
- Immediately report discrepancies
- Protect confidential information

Failure constitutes misconduct.

6. UNIVERSAL REQUIREMENTS (APPLICABLE TO ALL COLLECTIONS)

The following applies irrespective of collection location:

6.1 Positive Identification (R363 Regulation 6)

Before removal:

- Identity must be verified via:
    - SA Identity Document
    - Passport
    - Temporary ID
    - Birth Certificate (where applicable)

Where reasonably possible, visual identification must occur prior to sealing.

6.2 Inspection Requirement

Before removal:

- Inspect for:
    - Injuries
    - Abnormalities
    - Missing limbs or body parts
- Record findings on:
  Martin's Funerals Instruction / Permission to Remove Deceased Form

Failure to inspect may expose Franchisee to liability under Clause 13.17
Franchise Agreement

6.3 Personal Effects Recording

All:

- Clothing
- Jewellery
- Personal items

Must be itemised and acknowledged in writing.

6.4 Toe Tag Identification (Regulation 6)

A Martin's Funerals Toe Tag must:

- Be secured around the ankle
- Reflect:
    - Full names
    - Identity number
    - Date of death (if known)

- Case reference number

Institutional tags must not be removed but supplemented.

6.5 Mortuary Register Entry (Regulation 7)

Immediately upon arrival:

- Full details must be recorded in the Mortuary Register.
- Register must be permanent and auditable.

6.6 POPIA Compliance

Medical information constitutes "Special Personal Information".
The Franchisee must:

- Capture only necessary data (Section 11 POPIA)
- Secure all electronic data (Section 19)
- Restrict access to authorised staff only
- Prevent unauthorised disclosure

Breach may trigger indemnity exposure under Clause 13.17
Franchise Agreement

6.7 Health & Safety (OHSA Section 8)

Mandatory:

- PPE use
- Body fluid precautions
- Biohazard protocol compliance
- Safe lifting procedures

7. PROCEDURE BY LOCATION

7.1 COLLECTION FROM PRIVATE HOME

1. Confirm identity with family representative.
2. Record ID details in system.
3. Inspect and document injuries.
4. Record personal effects.
5. Capture medical history (if provided).
6. Obtain signatures from:
    - Authorised representative
    - Martin's staff member
7. Apply toe tag.
8. Transport in approved vehicle.
9. Record in Mortuary Register.

7.2 COLLECTION FROM OLD AGE HOME / HOSPICE / CARE FACILITY

All steps under 7.1 apply plus:

- Obtain authorised institutional sign-off.
- Cross-check institutional records.
- Verify case reference numbers.

7.3 COLLECTION FROM HOSPITAL / GOVERNMENT MORTUARY / OTHER FUNERAL PARLOUR

1. Obtain official release documentation.
2. Verify ID copy accompanies release.
3. Conduct visual confirmation where reasonably possible.
4. No sealed body bag may be accepted without verification unless legally prohibited.
5. Cross-check all documentation.
6. Record any institutional tags.
7. Apply Martin's toe tag.
8. Record in Mortuary Register.

8. CHAIN OF CUSTODY CONTROL

In terms of:

- R363 Regulation 5

- Clause 13.1 (Business System compliance)

Franchise Agreement

The Franchisee must ensure:

Collection → Transport → Admission → Storage → Final Disposition

is fully traceable.

Any discrepancy must immediately be reported to:

- The Franchisee Principal
- Franchisor (if material)

9. HANDOVER TO ANOTHER INSTITUTION

When handing over Human Remains:

1. Confirm identity.
2. Obtain written acknowledgement.
3. Record:
    - Receiving institution
    - Responsible official
    - Date and time
4. Update Mortuary Register.
5. Maintain chain of custody record.

10. AUDIT AND ENFORCEMENT

This policy is enforceable under:

- Clause 13.1 – Mandatory compliance

Franchise Agreement

- Clause 32 – Deficiency Correction

Franchise Agreement

- Clause 33 – Termination by Franchisor

Franchise Agreement

Repeated or serious non-compliance may lead to:

- Manager appointment (Clause 18)

Franchise Agreement

- Termination of franchise rights

11. REVIEW

This Policy shall be reviewed:

- Annually
- Upon legislative amendment
- Upon Operations Manual update (Clause 23)

Franchise Agreement

FUNERAL UNDERTAKERS' PREMISES – SOUTH AFRICAN COMPLIANCE

PART 1: FORMAL POLICY

1. Purpose

This policy sets out the minimum legal, operational and hygiene requirements applicable to all Martin's Funerals branches operating funeral undertaker premises in South Africa. It preserves the intent of Government Notice No. 237 of 8 February 1985 while aligning application and enforcement to the **National Health Act, 2003** and the **Regulations Relating to the Management of Human Remains (2013)**, together with applicable municipal by-laws.

2. Legal Basis

National Health Act, 2003 (Act 61 of 2003)
Regulations Relating to the Management of Human Remains, 2013
Applicable municipal health by-laws

3. Certificate of Competence (CoC)

3.1No preparation or storage of human remains may occur on any premises unless a valid **Certificate of Competence** has been issued by the relevant municipality.

3.2The Certificate of Competence remains valid until suspended or revoked and is transferable only with municipal endorsement.

3.3The holder must notify the issuing authority **in writing** of any material change to the premises, operations or information supplied in the application.

4. Suspension and Revocation

4.1 A municipality may suspend or revoke a CoC where premises:

- create or may create a health nuisance;

are operated contrary to legal requirements or certificate conditions.

4.2 Immediate suspension may be imposed where an urgent health risk exists.

4.3 Upon suspension or revocation:

- no preparation may take place;
- no remains may be received for preparation;

remains must be transferred to an approved mortuary or premises as directed.

5. Record Keeping

All inspection records, approvals, certificates, cleaning logs and incident reports must be retained securely and made available on request.

PART 2: STANDARD OPERATING PROCEDURES (STAFF VERSION)

What You MAY Do

Prepare human remains **only** in the approved preparation room.
Wear full protective clothing when handling remains.
Clean and disinfect surfaces and equipment immediately after use.
Use only designated loading/unloading areas.

What You MAY NOT Do

Prepare remains outside approved premises.
Allow public access to preparation or loading areas.
Store remains without refrigeration.
Work without PPE.

Hygiene Rules

Wash and disinfect hands, equipment and surfaces after every case.
PPE must be cleaned or disposed of daily.
Vehicles used for removals must be disinfected after use.

PART 3: INSPECTION & COMPLIANCE CHECKLIST

Certification

☐ Valid Certificate of Competence displayed

☐ Premises match approved plans

Preparation Room

☐ Separate, screened, ventilated

☐ Waterproof floors and washable walls

☐ Approved preparation tables

☐ Hot and cold water available

Refrigeration

☐ Functional refrigeration

☐ Clean and maintained

☐ Temperature logs available

Hygiene & PPE

☐ Gloves, aprons, masks, gumboots available

☐ Cleaning schedule followed

☐ Waste containers sealed and compliant

External Areas

☐ Screened loading/unloading zone

☐ Vehicle wash area with drainage

☐ Rodent-proofed premises

PART 4: LEGAL ALIGNMENT NOTE (ADDENDUM)

The 1985 regulations remain relevant historically and operationally but are enforced today through the National Health Act framework. Where terminology differs, municipal interpretation and national human-remains regulations prevail.

Branches must:

- comply with current municipal inspection requirements;
- maintain approved infrastructure and hygiene standards;
- cooperate fully with Environmental Health Practitioners.

PART 5: QUICK MANAGER REFERENCE

Never operate without a valid CoC

Never prepare remains outside approved rooms

Hygiene failures = immediate closure risk

Keep documentation inspection-ready

Approved by: ______________________________

Position: __________________________________

Date: _____________________________________

COMPANY VEHICLES POLICY

USE OF COMPANY VEHICLES

Purpose and Scope
This policy governs the use, operation, and management of all vehicles owned, leased, or otherwise controlled by Martin's Funerals ("the Company"). It applies to all franchisees, managers, employees, contractors, and any other persons authorised to operate or be transported in Company vehicles. The policy is aligned with applicable South African legislation, including the National Road Traffic Act, 93 of 1996; the National Road Traffic Regulations, 2000; the Occupational Health and Safety Act, 85 of 1993; the Road Accident Fund Act, 56 of 1996; and the Prescription Act, 68 of 1969.

Authorised Use Only
Company vehicles are for authorised business use only. Private use is strictly prohibited.
Unauthorised or private use is strictly prohibited and will not be condoned under any circumstances. This includes, but is not limited to, personal errands such as shopping for groceries or transporting personal goods using a marked Martin's Funerals vehicle.

Vehicle Condition and Public Image
3.1 All Company vehicles must be maintained in a clean, safe, and roadworthy condition at all times.
3.2 As a public-facing organisation providing sensitive services, the Company's vehicles must at all times reflect professionalism, dignity, and respect.
3.3 Vehicles must be licensed, insured, roadworthy and correctly branded. Drivers must be authorised and appropriately licensed.

4. Compliance with Traffic Laws
Legislative reference: National Road Traffic Act, 93 of 1996 – Sections 3, 59, 65, 89; National Road Traffic Regulations, 2000.
4.1 All drivers must comply fully with the National Road Traffic Act and all applicable traffic laws and regulations at all times.
4.2 Any contravention of traffic laws while operating a Company vehicle will be regarded as a serious offence.

5. Responsibility and Liability
Legislative reference: National Road Traffic Act, 93 of 1996 – Sections 17, 21, 50; Road Accident Fund Act, 56 of 1996; Prescription Act, 68 of 1969 (Section 11).
5.1 The use and maintenance of Company vehicles is the responsibility of the franchisee/manager and their staff.
5.2 The franchisee/manager remains legally liable for accidents, abuse, trespass, negligence, or non-compliance with statutory requirements relating to Company vehicles.
5.3 Failure to comply with legal and regulatory requirements may result in claims being instituted against the responsible party for up to **three (3) years** after the date of an incident or accident, in accordance with South African law.

The effort and cost required to prove innocence far outweigh the effort required to ensure compliance.

6. Branding and Identification
Legislative reference: National Road Traffic Act, 93 of 1996 – Section 50; Consumer Protection Act, 68 of 2008.
6.1 The Company logo, name, and official telephone numbers **must be clearly visible** on the front door panels of all Company vehicles.
6.2 The Company name, logo, and telephone numbers must also be clearly visible from all sides of the franchise or office buildings.
6.3 Magnetic signage is **not acceptable** on Company-owned vehicles.
6.4 The only exception is for **rented or temporarily used vehicles** (e.g. Budget, Rent-a-Car, or privately owned vehicles), where magnetic signage may be used for the duration of the rental.

7. Driver Conduct and Public Perception
7.1 The public readily identifies Martin's Funerals vehicles. Drivers are therefore expected to conduct themselves with the highest level of courtesy and professionalism at all times.
7.2 Speeding, aggressive driving, offensive gestures, or any form of road rage is strictly prohibited.
7.3 Drivers must remember that, when operating a Company vehicle, they represent **Martin's Funerals**, not themselves personally.
7.4 It is unacceptable and offensive to the public for a vehicle used to convey deceased persons to subsequently be used for transporting groceries, meat, or personal items.

8. Vehicle Control and Monitoring
Legislative reference: Occupational Health and Safety Act, 85 of 1993 – Sections 8 and 13; National Road Traffic Regulations, 2000.
8.1 At all times, management must be able to account for:

- the location of each vehicle;
- the identity of the driver; and
- the identity of any authorised passengers.

8.2 The following records must be properly maintained and available for inspection:
- Motor Vehicle Contract Regarding Use;
- Daily Petty Cash Analysis;
- Vehicle Logbook;
- Vehicle Check List Sheet.

9. Licensing, Insurance, and Roadworthiness
Legislative reference: National Road Traffic Act, 93 of 1996 – Sections 18, 21, 42, 49; National Road Traffic Regulations, 2000; Road Accident Fund Act, 56 of 1996.

9.1 All vehicles must be validly licensed, insured, and certified as roadworthy at all times.
9.2 Drivers must be in possession of:
- a valid South African driving licence appropriate to the class of vehicle; and
- a valid Public Driving Permit (PrDP) where required by law.

10. Servicing and Maintenance
10.1 Vehicles must be serviced in accordance with manufacturer warranties.
10.2 Where no warranty applies, vehicles must be serviced at least every **10,000 km to 15,000 km**, whichever occurs first.
10.3 Franchisees operating multiple vehicles are strongly advised to maintain a dedicated file for each vehicle, containing full service, licensing, insurance, and cost records.

11. Passengers
Legislative reference: National Road Traffic Act, 93 of 1996 – Section 65; National Road Traffic Regulations, 2000; common-law delictual liability principles.
11.1 **No passengers are permitted** in Company vehicles unless expressly authorised.
11.2 Passenger transport is prohibited unless expressly approved and indemnified.
11.3 Drivers must be clearly informed that transporting unauthorised passengers is strictly prohibited.
11.4 Where passengers are exceptionally authorised, **each and every passenger must sign a Motor Vehicle Indemnity Form**, regardless of the nature or duration of the trip.

12. Mandatory Vehicle Notice
The following notice **must be clearly displayed** in all Martin's Funerals vehicles:

"GEEN PASSASIERS / NO PASSENGERS"

A third language commonly used in the relevant area should also be included where appropriate.

COMPANY VEHICLE POLICY

Eligibility to drive a Company Vehicle:

- Company vehicles are assigned at the discretion of the company's Managing Director.
- Prior to vehicle assignment, eligible employees must prove that he or she has a valid driver's license which is not suspended or revoked.
- Eligible employees must have a valid driver's license which is not suspended or revoked.

Driver's Responsibilities:

- Eligible drivers are responsible for driving their vehicle in a safe and professional manner.
- Drivers must know and abide by all driving laws in all areas where they operate their vehicle.
- Drivers must maintain a current driver's license. If for any reason, an employee's driver's license is revoked, suspended or restricted it is mandatory that the employer be notified immediately.
- Drivers are expected to drive defensively during business and personal travel and to obey all traffic laws and speed limits.

Martin's Funerals Franchising prohibits the following:

- Driving under the influence of drugs and/or alcohol, including prescription drugs.
- Transporting flammable items, firearms, or other hazardous materials.
- Texting whilst driving.
- Transporting of a hitchhiker or stranger.
- Driving erratically or at excessive speeds.
- Driving in such a manner that brings the company into disrepute.
- In addition, your company vehicle should not be used to push another vehicle.
- Bumper Stickers - No bumper or window stickers should be affixed to a company vehicle unless prior consent is received from ---------.

Safety Guidelines

- It is always mandatory that seat belts be used by all occupants of a company vehicle without exception. It is the company driver's responsibility to ensure that all occupants fasten their seat belts prior to operating the vehicle.
- Any malfunctioning seat belt should be reported for repair by the employee immediately.
- Martin's Funerals reserves the right to revoke the driving privilege of any driver not complying with this policy.

Traffic violations:

- Excessive speeding violations and/or accident history may exclude a driver from being covered by company-provided insurance and may make them ineligible to receive a company-provided vehicle.
- Driver is solely responsible for all fines regardless of whether they were incurred during business or personal use of the vehicle.
- Should you, for any reason, receive a summons for a traffic violation or a parking ticket, you must pay it as soon as possible.
- All traffic violations and parking tickets should be reported to ________________. as quickly as possible.
- Under no circumstances are traffic and parking fines to be charged to Martin's Funerals.
- A driver with three (3) moving violations or any combination of three accidents and/or moving violations within a three-year period will be prohibited from driving a company vehicle.
- Any driver with a violation associated with alcohol or drugs will be prohibited from driving a company vehicle until Martin's Funerals say otherwise.
- This type of violation may also be grounds for immediate termination at the discretion of management.

Personal use of a Company Vehicle:

- Company Vehicles may not be used for personal use;
- Company vehicles while intended primarily for Martin's Funerals business use, may also be used for commuting to and from work and for limited personal use "on an emergency basis only."
- Evening and weekend travel are prohibited unless conducting company business after normal business hours.
- No other drivers are permitted to operate a company vehicle.
- Family members (non-Martin's employees) should not be permitted to ride in the company vehicle.
- except with written consent from the director ________________., on condition that all rules and procedures stipulated in the Company Vehicle Policy are strictly adhered to.
- No transport of a hitchhiker or stranger. This must be observed for the protection of the employee and the company.
- The use of a company vehicle for anything other than the tasks pertaining to the employee's job and responsibilities at Martin's.

- Smoking is not allowed in company leased or owned vehicles.

Vehicle Maintenance:

- Driver is expected to maintain the vehicle in a safe operating condition.
- Maintenance schedules outlined in your vehicle's owner manual should be adhered to and along with documentation that prescribed service work was completed.
- Particular attention should be paid to the maintenance requirements for keeping the warranty of your vehicle in effect.
- It is the employee's responsibility to call the Director for pre-approval of all or any work.
- The vehicle will be inspected for any existing dents and scratches, and the driver and inspector will sign the attached inspection sheet.
- Any new dents and scratches or damage due to an accident that is not covered by the company's insurance policy as well as the access payment on a valid insurance claim will be for the account of the driver.
- Any new damage to the signage and branding on the vehicle due to the driver being negligent will be repaired by the driver.
- Driver and Franchisee / Registered owner of the vehicle must ensure that vehicle is timeously serviced according to the maintenance schedules outlined in the vehicle's owner manual. Vehicle services will be for the account of the Franchisee / Registered owner of the vehicle.

License Plates

- License plate stickers are renewed the month due and will be mailed to you the last week of the renewal month.
- Please note the month of renewal of your vehicle and if the sticker is not received, contact ____________________.

Garage Card:

- The driver will receive a petrol card which may only be used for fuel and toll gates. No other purchases on the card will be allowed.
- The garage card must be returned with the withdrawal of the company vehicle.

Vehicle storage and security:
The company driver is responsible for ensuring all necessary precautions are always taken to prevent damage and theft of the company vehicle and/or its contents. Whenever you leave a company vehicle, please follow these precautions:

- The vehicle should always be treated as the driver's own and the necessary security precautions should be taken when parking the vehicle.
- Drivers may not leave any visible items of value inside the vehicle whilst parked as this increases the risk of theft.
- Lock all valuable items inside the trunk when the vehicle is left unattended.
- Drivers should ensure that the doors and windows are securely locked when leaving the vehicle unattended.

Driving Outside ________________________:

- A company vehicle may not be driven outside the ______________________________ area for any reason.

Company Vehicle Odometers

- Change of mileage indicated on the odometer is prohibited. No person shall disconnect, reset or alter the odometer of any motor vehicle with intent to change the number of miles indicated thereon.
- Operation of a motor vehicle with knowledge of disconnected or non-functional odometer is prohibited.
- No person shall, with intent to defraud, operate a motor vehicle on any street or highway knowing that the odometer of such vehicle is disconnected or non-functional.
- Any Martin's employee who knowingly violates the laws specified above will be immediately be terminated and the company may pursue available civil remedies.

WHAT TO DO IN CASE OF AN ACCIDENT

- The driver must notify the local police and ________________. of the accident.
- All accidents, no matter how seemingly inconsequential, must be reported to ________________..
- An accident reporting form written by you must be filled out as completely and as quickly as possible for submission to ________________. via email.
- You will be contacted by ________________. for a verbal statement regarding the accident.
- If the employee was at fault in an accident while driving a company vehicle, there is a R3000.00 deductible for collision coverage which is the financial responsibility of the employee.
- If the employee grants permission for someone to drive their assigned vehicle, the employee will be considered financially responsible for all damages and vehicle repairs.

How to Report an Accident

- If you are involved in an accident, it is necessary to follow the procedure outlined below:
- If anyone is hurt, call for medical assistance.
- Immediately following an accident, stop and investigate what damage might have occurred to the vehicle.
- Get the names and addresses of the owner(s) and driver(s) involved, license number and registration number of the car(s) involved and the names and addresses of any passengers in the vehicles connected with the accident.
- Get the name of the other party's insurance company and insurance policy number.
- Get the names and addresses of witnesses, if any.
- If law enforcement officers are present at the scene, note their names, badge and precinct numbers. If no police officers are present, try to have one called to the scene of the accident.
- Express no opinion as to who was at fault. Give no information except as required by law enforcement officers.
- Sign no statements for anyone except an identified representative of the Martin's insurance company covering the company vehicle.
- Contact ________________. within the first 24 hours preceding the accident so a preliminary accident report may be taken.
- Keep a copy of the company's authorized accident reporting form for your records.
- Complete all reports required by local law enforcement.
- If you need help in completing these reports, request help from your local police department.
- If any demand, claims or summons is served to an employee involved in an accident asserting liability against the employee, contact ________________. immediately.
- If the collision involves an unattended vehicle, you must attempt to notify the owner. If that is not directly possible, attach a note to the vehicle asking the owner to contact you. Notify the police immediately telling them that you have attempted to contact the owner.

There are NO EXCEPTIONS to the above requirements. Failure to comply with this procedure could have serious consequences for Martin's and your association with the company.

Stolen Vehicle

If your company vehicle is stolen, report the theft immediately to the local police and to _____________________.
Obtain a copy of the police report filed. Maintain one copy for your personal files and submit another to __________________________.
Any attempted break-in or theft of items from a company vehicle must be reported to the local police department.

The Company requires that the following information be provided to ________________.:

- The name, badge and precinct number of the police officers responding to your call.
- A list by model and serial number of any equipment which was stolen.
- The date and location of where the theft occurred.

Withdrawal of Company Vehicle privilege:

The privilege of driving a Company Vehicle may be withdrawn, at the sole discretion of the Managing Director, for any of the following reasons:

- Abuse or misuse of the vehicle or failure to comply with the rules and procedures stipulated in this company policy.
- A driving record which becomes deficient during operating a company vehicle.
- Conviction or guilty plea to driving a company vehicle under the influence of alcohol or an illegal controlled substance.
- Driving in such a manner that brings the company into disrepute.
- Or any other reason that the Managing director might feel fit.

ACKNOWLEDGEMENT

By signing below, I acknowledge that I have read and understand the company vehicle policies and procedures and agree to keep the company vehicle clean, in good running condition and adhere to all South Africa and local driving safety regulations.
Your vehicle privileges and/or continued employment could be affected by abuse of the company vehicle policies.
You also acknowledge the Drug and Alcohol use, Policy.
You also acknowledge that smoking is not allowed in company vehicles.

Employee Name (print): ____

Employee Signature: __________________________________Date: __________________

____
DIRECTOR

Signed at ______________________________ on ______________________________.

Driver: ________________________________

Inspector: _______________________________

Martin's Accident Report

Date of Loss: ________________________ Time of Loss: ____________________________
Company Vehicle Involved: ____
Year Make Model ____
VIN#: ____
Location of Accident____
Employee (Driver's Name) ____
Address ____
Phone _____________________DOB ___/___/____ License # ________________________
Description of Accident ____
____
____
Company Vehicle Damage (Where) ____
Police Report Agency ____
Report Number ____
Officer ____
Ticket Yes or No? _____ Where is Vehicle? ____

Other Party Information:
Driver Name ____
Address ____
Phone Number(s) ____
Insurance Co. ____________________________Driver License #: ______________________
Vehicle ____
Year Make Model Vehicle License # ____
Passenger's Name____
Injured Y or N? ______
Address ____
Passenger's Name____
Injured Y or N? ______
Address ____

MOTOR VEHICLE INDEMNITY FORM (PASSENGERS)

Date: ___________________________
Time: ___________________________

I, ____, acknowledge that I am a non-paying passenger in a Martin's Funerals vehicle.
I am aware that this vehicle is not ordinarily permitted to transport passengers.
I voluntarily accept full responsibility for travelling as a passenger in this vehicle.
I hereby indemnify and hold harmless Martin's Funerals against any and all claims, whether known or unknown, arising from any accident or incident that may result in injury or death.
I further indemnify the franchisor, franchisee, and all members/directors of the Company or Close Corporation against any lawful claims arising from such accident or incident.

Nothing in this indemnity shall be interpreted as excluding or limiting liability for gross negligence, wilful misconduct, or any liability that may not lawfully be excluded under South African law, including the Consumer Protection Act, 68 of 2008.

This indemnity applies only to authorised non-paying passengers and employees, and does not apply to consumers or members of the public receiving services in the ordinary course of business.

Signed at: _______________________________
On this day: ______________________________
Driver Name: _____________________________
Passenger Name: __________________________
Signature (Passenger): ____________________

MOTOR VEHICLE – CONTRACT REGARDING USE

Legislative reference: Basic Conditions of Employment Act, 75 of 1997; Labour Relations Act, 66 of 1995; National Road Traffic Act, 93 of 1996.

I, ____, hereby acknowledge, accept, and agree that the following terms form a material part of my conditions of employment:

I may not drive or control any motor vehicle belonging to, or under the control of, the Martin's Funerals
Group unless:
a. this form has been approved in writing by the Franchise Holder or Head Office; and
b. such approval remains valid and has not been withdrawn.
My employment in the position of ____________________________ is subject to receiving such approval.
Any false or misleading information supplied by me may result in disciplinary action, including dismissal.
In the event of an accident while driving or controlling a Company vehicle:
a. I shall not admit liability or guilt;
b. I shall comply fully with Company accident-reporting and insurance procedures;
c. I shall be personally liable for any insurance excess payable where the accident is not attributable to a proven third party.

This indemnity applies only to authorised non-paying passengers and employees, and does not apply to consumers or members of the public receiving services in the ordinary course of business.

Current Excess:
First accident: R __________
Second accident: R __________
(Amounts increase annually in line with Company policy.)

I authorise the Company to deduct any excess payable by me from my remuneration or any monies due to me.
I am personally responsible for all traffic fines incurred while driving or controlling a Company vehicle.
I may transport Company personnel or any other person only with express management approval and a signed indemnity form.
I confirm that I suffer from no medical condition that impairs my ability to drive safely and undertake to notify Head Office immediately should this change.

Signed at: ________________________________
On this day: ________________________________
Employee Signature: ________________________

Related Records (to be maintained separately)
Motor Vehicle: Daily Petty Cash Analysis
Motor Vehicle: Logbook
Motor Vehicle: Costing Sheet
Motor Vehicle: Legislation – Driver Licensing and Training

DRIVER LEGAL RESPONSIBILITIES SUMMARY (ONE-PAGE)

This summary does not replace the full policy. It highlights your key legal duties as a driver of a Martin's Funerals vehicle.

YOUR LEGAL RESPONSIBILITIES AS A DRIVER

1. Authorisation
You may only drive a Company vehicle if you have written approval.
You must hold a valid driving licence for the vehicle class.
You must hold a valid PrDP where required.

2. Vehicle Use
Company vehicles are for authorised business use only.
Private use is strictly prohibited.
You may not transport passengers unless expressly authorised.

3. Passenger Rules
"NO PASSENGERS" means exactly that.
Where permission is granted, every passenger must sign an indemnity form.

4. Conduct on the Road
Obey all traffic laws at all times.
Do not speed, drive aggressively, or engage in road rage.
Remember: you represent Martin's Funerals at all times.

5. Accidents and Incidents
Do not admit fault at the scene.
Report all accidents immediately in accordance with Company procedure.
Cooperate fully with insurance and internal investigations.

6. Financial Responsibility
You are responsible for traffic fines issued to you.
You may be liable for insurance excesses as per your signed agreement.

7. Vehicle Care
Keep the vehicle clean, safe, and roadworthy.
Report defects or maintenance issues immediately.

8. Health and Fitness
Do not drive if you are unfit, ill, under the influence of alcohol, drugs, or medication that impairs driving.
You must disclose any condition affecting safe driving.

Failure to comply with these responsibilities may result in disciplinary action, dismissal, personal liability, and/or criminal prosecution.

DRIVER ACKNOWLEDGEMENT & SIGNATURE PAGE

I, ____ (Full Name), hereby acknowledge that:

I have received, read, and understood the **Company Vehicle Policy**, including all annexures and forms.
I understand that compliance with this policy is a **condition of my employment and/or authorisation to drive Company vehicles**.
I understand that Company vehicles may only be used for authorised business purposes.
I understand that transporting passengers is prohibited unless expressly authorised and supported by a signed indemnity form.
I understand that failure to comply with this policy may result in disciplinary action, dismissal, personal liability, and/or criminal prosecution.
I agree to comply fully with all South African road traffic laws and Company procedures at all times.

This indemnity applies only to authorised non-paying passengers and employees, and does not apply to consumers or members of the public receiving services in the ordinary course of business.

This acknowledgement is signed voluntarily and without reservation.

Driver Full Name:
ID Number:
Position:
Licence Number & Code:
PrDP Number (if applicable):
Signature:
Date:
Witness / Manager Name:
Signature:

VEHICLE DRIVER-CARD (LAMINATED NOTICE)

THIS NOTICE MUST BE LAMINATED AND DISPLAYED INSIDE ALL MARTIN'S FUNERALS VEHICLES

DRIVER LEGAL NOTICE
You are operating a **Martin's Funerals Company Vehicle**.

YOU MUST:
Obey all traffic laws at all times
Drive courteously and professionally
Use this vehicle for authorised business only
Ensure the vehicle is kept clean and roadworthy
Report accidents and defects immediately

YOU MUST NOT:
Transport passengers without written authorisation
Use this vehicle for private purposes
Speed, drive aggressively, or engage in road rage
Drive while unfit, ill, or under the influence

PASSENGER RULE

GEEN PASSASIERS / NO PASSENGERS
(Except with written authorisation and signed indemnity form)

REMEMBER:
When you drive this vehicle, **YOU REPRESENT MARTIN'S FUNERALS**.

Failure to comply may result in **disciplinary action, dismissal, personal liability, and/or criminal prosecution**.

FRANCHISE VEHICLE COMPLIANCE CHECKLIST

Purpose: This checklist is to be used by franchisees and managers to ensure ongoing compliance with the Martin's Funerals Company Vehicle Policy and South African legislation.

This checklist should be completed **monthly** and during **internal audits, inspections, or incident reviews**.

A. VEHICLE DOCUMENTATION & LEGAL STATUS

☐ Vehicle licence disc valid and displayed
☐ Vehicle insured (policy current and compliant)
☐ Roadworthy certificate valid (where applicable)
☐ Vehicle branding compliant (logos and contact numbers clearly visible)
☐ No magnetic signage on Company-owned vehicles

B. DRIVER COMPLIANCE

☐ Driver has valid SA driving licence (correct code)
☐ Driver has valid PrDP (where required)
☐ Driver Acknowledgement & Signature Page signed and filed
☐ Driver medically fit and not impaired
☐ Driver trained on Company Vehicle Policy

C. VEHICLE USE & CONTROL

☐ Vehicle used for authorised Company business only
☐ No unauthorised or private use detected
☐ Vehicle location, driver, and purpose known at all times
☐ Logbook completed accurately and daily
☐ Daily petty cash records maintained (if applicable)

D. PASSENGER COMPLIANCE

☐ "GEEN PASSASIERS / NO PASSENGERS" notice displayed in vehicle
☐ No unauthorised passengers transported
☐ Indemnity forms completed for any authorised passengers
☐ Passenger records filed and retrievable

E. VEHICLE CONDITION & MAINTENANCE

☐ Vehicle clean, dignified, and presentable
☐ Vehicle serviced according to warranty / schedule
☐ No outstanding safety or mechanical defects
☐ Tyres, lights, brakes, and seatbelts in good condition

F. INCIDENT & RISK MANAGEMENT

☐ Accident and incident reporting procedure known to drivers
☐ No unreported accidents or damage
☐ Insurance excess recoveries managed per policy
☐ Traffic fines allocated to responsible drivers

G. RECORD KEEPING & AUDIT READINESS

☐ Vehicle file maintained for each vehicle
☐ Copies of licences, insurance, service records filed
☐ Logbooks and costing sheets up to date
☐ Records retained for minimum legal periods

Franchise / Branch: ______________________________
Vehicle Registration: ____________________________
Completed by: _________________________________

Position: ______________________________________

Date: ____

Signature: ______________________________________

Note: Repeated or material non-compliance may result in corrective action, suspension of vehicle use, disciplinary measures, or franchise sanctions.

STOCK AND SUPPLIERS' POLICY
Martin's Funerals

1. **STOCK TAKING**

- Stock taking is the systematic examination, counting, and valuation of all goods, equipment, and stationery on hand. Its purpose is to ensure business continuity and to prevent situations where essential stock is unavailable when required.
- Stock taking serves as a reassessment of the current position of your business, including progress made and future prospects.
- It is also an important preventative and risk-management measure.
- Stock taking must be conducted on a regular basis, preferably every Monday, or at a minimum once per month.
- Regular spot checks may be conducted by your Regional Manager to assist in crime prevention and loss control.
- All stock on your premises remains your responsibility. Ensure that adequate insurance cover is in place at all times.
- Develop the discipline of reordering stock while at least one (or more, depending on demand) unit remains available on the floor.

2. **SUPPLIERS**

- A supplier is any external person or entity that provides standard or off-the-shelf goods or services.
- Martin's Funerals Franchising (Pty) Ltd negotiates competitive pricing on behalf of the group, based on collective purchasing power and required volumes.
- An authorised and recommended supplier list is maintained to ensure consistency, quality, and uniformity across the Martin's Funerals Group.
- Franchisees may, subject to compliance with group standards and prior written approval from Martin's Funerals Franchising (Pty) Ltd, negotiate with alternative suppliers.
- We encourage franchisees to share improved pricing or superior products with the group for mutual benefit.

3. **3. QUALITY CONTROL**

- Quality control is the system through which prescribed standards are maintained by means of periodic and random inspection of goods and products.
- Quality control ensures that all goods and services meet required specifications.
- Failures in quality can lead to reputational damage and unacceptable experiences for families, for example faulty coffin fittings or structural failures.

4. **4. ORDERS**

- All orders must be placed **in writing**.
- An order constitutes a confirmed request by one party to another to buy, sell, supply, or receive goods or services.
- Ensure that all suppliers are registered with **SARS (South African Revenue Service)** to enable VAT claims where applicable.
- Orders must contain full and accurate details to ensure the supplier clearly understands the requirements.
- Clearly specify the required delivery date.
- Products and/or services that do not meet Martin's Funerals standards may result in serious operational and contractual consequences.
- A compulsory Martin's Funerals range of products and coffins must be displayed in all offices.
- Additional products or coffins may be displayed only if they meet required standards and have been authorised by Martin's Funerals Franchising (Pty) Ltd.
- A current list of authorised suppliers is available from your Regional Manager.
- Wherever possible, conduct business strictly on a **cash basis**, with payment made before or upon delivery.
- Payments may be made via electronic bank transfer.
- Please note that inter-bank transfers may take between one and three working days to reflect on the supplier's bank statement.
- Proof of payment must always be emailed or faxed to the supplier.
- Orders must be cancelled in writing within **24 to 36 hours** of placement.
- Failure to cancel an order timeously may result in payment being required for goods not wanted or not received.
- Suppliers may levy handling fees or interest on cancelled orders or overdue payments.
- It is your responsibility to ensure that goods are received in accordance with the order and on the agreed delivery date.
- Where practical, obtain **two to three quotations** before placing an order. Selection remains your decision, based on price, quality, and suitability.
- Always confirm affordability and budget availability before committing to any purchase.

5. **REMOVAL STRETCHER**

6. MARTIN'S FUNERALS COFFIN RANGE

- Flat Lid (Plain)
- Raised Open Face
- Three-Tier
- Children
- Wooden Casket
- Steel Casket
- Special Request

Additional Items:

- Night Vigil Set
- Lowering Device
- Grave Set-Up
- Grave Marker

7. INTERNAL PURCHASE ORDER FORM

DATE:
TIME:
SURNAME:
ORDER NUMBER:
TO:
DATE REQUIRED:
QUOTATION ATTACHED: YES / NO
(Minimum of three quotations required)

Quantity	Description	Amount

SIGNATURE: ………………………………………

ACCEPTED / NOT ACCEPTED
NOTE: ………………………………………………………………………………
FRANCHISE HOLDER: ………………………………………………………………
SIGNATURE: ……………………………………………………………………………

8. SELLING OF STOCK (RELATED OR UNRELATED)

- We endeavour to meet all reasonable needs of the public.
- If a customer requests an item such as a sympathy book and it is available, it must be sold or provided.
- If a customer requires a card or fresh flowers and these are available, they must be sold or provided.
- If the requested item is not available but can be sourced, reasonable steps should be taken to obtain it for the customer.
- In essence, every reasonable effort must be made to support and assist the customer during their time of bereavement.
- **All income and all expenses must be recorded in the Daily Report — without exception.**
- Every transaction forms part of daily trading and must be recorded, including but not limited to:
- Sale of stationery or minor items (e.g. a pen)
- Services rendered
- Tombstones or memorials
- Repatriations
- Insurance products
- Cell phones or accessories

9. RECORD KEEPING AND LEGAL COMPLIANCE

- The use of **separate or parallel sets of books is strictly prohibited**.
- Maintaining undisclosed records constitutes **illegal business practice**.
- Such conduct amounts to **fraud** under South African law.
- These actions will be detected, and serious consequences will follow.

CELL PHONE POLICY

You have been supplied with a Martin's Funerals Company mobile phone, charger, SIM card and mobile phone number for business use. These are the Company's policy and procedures for the use of a Company mobile phone.

Overview:

The Martin's Funerals cell phone policy offers general guidelines for using personal and company cell phones during work hours.
The purpose of this policy is to help us all get the most out of the advantages cell phones offer our company while minimizing distractions, accidents, and frustrations improper cell phone use can cause.
This policy applies to all Martin's Funerals managers or employees.

Cell Phone Use Guidelines:

The following are Martin's Funerals basic guidelines for proper manager or employee cell phone use during work hours. In general, cell phones should not be used when they could pose a security or safety risk, or when they distract from work tasks.

- Never use a cell phone while driving.
- Never use a cell phone while operating equipment.
- Do not use cell phones for surfing the internet or gaming during work hours.
- Avoid using work cell phones for personal tasks.
- Avoid using personal cell phones for work tasks.
- Do not use cell phones during meetings.
- Do not use cell phones to record confidential information.

We realize the cell phones can be great tools for our employees. We encourage employees to use cell phones when:

- For making or receiving work calls in the appropriate place and situation to do so.
- For other work-related communication, such as text messaging or emailing, in appropriate places and situations.
- To schedule and keep track of appointments.
- To carry out work-related research.
- To keep track of work tasks.
- To keep track of work contacts.

Any damage to the mobile device, outside of reasonable wear and tear, is the absolute responsibility of the mobile device user.
The Company reserves the right to withhold any cost from your salary or other payments due to you if the Mobile phone is not returned in good condition on demand.
Any theft of the mobile phone must be reported immediately to the police and to your Employer. If you fail to do this, the Company reserves the right to charge you for any calls made whilst the phone was not in your possession.
When the Cell phone has been stolen or lost, it will be the mobile device user responsibility to replace such phone with the same value as it has been bought.
Company mobile phones, SIM cards, chargers and mobile phone numbers remain Company property at all times and the Company reserves the right to withdraw their use at any time.

Disciplinary Action:

Improper use of cell phones in anyways that distract from work may lead to having cell phone privileges revoked.
Cell phone usage for illegal or dangerous activity, for purposes of harassment, or in ways that violate the company confidentiality policy may result to have cell phone privileges revoked.

Please Note:

This is a contract phone with a cap. When you reach the cap, it will be for the cell phone user account to load extra airtime and data on the phone.
Do NOT install any unauthorised applications on this equipment.
The equipment must be returned at the end of your employment with Martin's Funerals and immediately upon request from the office.
The equipment remains the property of Martin's Funerals Group at all times.
This equipment is exclusively for Martin's Funerals business use only

Cell Phone Details:

Model:
IMEI:
Phone Number:

Signed at ______________________ on this day _______ of ____________________ 2019

For and on behalf of Martin's Funerals	For and on behalf of the Manager or Employee
Signed: ______________________	Signed: ______________________
Name: _______________________	Name: _______________________
ID Nr: _______________________	ID Nr: _______________________

DECLARATION

CORPORATE CREDIT CARD USE AGREEMENT

This Corporate Bank Card Use Agreement is between Martin's Funerals and **[Employee]** ID nr: **[ID Number].**

Credit Card Number (exactly as shown on card)

NAME ON CARD:
MARTINS FUNERALS
CARD NR:
EXP:
PIN:

I am a Employee named above and I received the above-listed bank card associated with the commercial business account of the Company ("Card") and I confirm all my information is correct. By my signature on this Agreement, I will agree to comply with and be bound by the following conditions:

- I understand this Card is Company property and I will be making financial commitments on behalf of the Company when using this Card. I agree that use of this Card is limited to business purposes authorized by the Company. I agree this Card must not be used for any personal, unauthorized, or illegal charges and any such misuse will result in cancellation of this Card and may further result in disciplinary action up to and including termination of my employment or Business.
- I understand the Company may review and investigate use of this Card and I have no expectation of privacy concerning any charges incurred. I will cooperate with any such review or investigation.
- I agree to be held personally liable for the total rand amount of any improper charges incurred plus any administrative fees assessed in connection with misuse of this Card.
- I agree that any personal, unauthorized, or illegal charges made by me, including any administrative fees and/or finance charges assessed in connection with such charges, and paid for by the Company on my behalf will be considered a personal loan to be repaid through profit or salary deduction.
- I understand that, I will repay the Company these amounts plus finance or other charges due in connection with the misuse of this Card and the Company may take appropriate legal action to collect the monies owed. If the Company is required to take legal action to collect monies owed under this Agreement, I agree to pay the Company's expenses, including attorney's fees, incurred in its collection efforts. I agree that I may be liable for improper charges that result from allowing others to use this Card.
- I agree to reconcile my expenses and timely submit an expense report from which the Company will pay the charges incurred in connection with this Card. The expense report will be submitted using the Company's standard expense reporting system and shall be supported by appropriate documentation as required by the Company. If I fail to timely submit accurate and complete expense reports, the Company will consider the unsupported charges incurred in connection with this Card to be a personal loan and may collect those amounts from me as described herein.
- I agree to return this Card immediately upon request by management or upon termination of my employment or business for any reason (including retirement) with the Company.
- I understand that this Agreement is revocable by me at any time upon written notice to ___________________ at the Company. If revoked, I understand I must stop using the Card immediately and return it to ____________________ with my revocation notice.
- I understand that if revoked, I remain responsible for any misuse and remain indebted to the Company for any personal, unauthorized, or illegal charges made prior to the revocation and return of the Card.
- I promise to immediately notify ______________________ upon discovering this Card has been lost, misused, or stolen or this Card has been the subject to fraud, unauthorized use or misuse.
- I agree to cooperate with any investigation concerning the loss, theft, or suspected misuse of this Card.

Date: ____________________________ Employee Signature ____________________________

Received:
Date: ____________________________ By: ____________________________

POLICY PERTAINING TO DRUG AND ALCOHOL USE
ZERO TOLERANCE

The Company enforces a Zero Tolerance Policy for Drug and Alcohol use, to adhere to the regulations in the Occupational Health and Safety Act. This policy applies to all personnel who are engaged in any work at the workplaces of Martin's Funerals.

OBLIGATION TO COMPLY WITH THE POLICY
Compliance with the policy is a key obligation and requirement of your employment or engagement with the Company.
You should read and familiarise yourself with the policy and, if you are in any way uncertain about the requirements or operation of the policy, please raise any questions with management so that those matters can be clarified.

AIM OF THE POLICY
Misuse of alcohol and drugs among employees create problems that effect both employees and employers. Substance abuse among employees can threaten public safety, impair job performance and threaten their own safety.
The Company's highest priority is a safe workplace, and the consumption of alcohol and drugs can lead to unsafe working and injury, as well as lack of productivity and efficiency. The policy seeks to ensure that the Company and its employees comply with all legislative requirements in relation to The Occupational Health and Safety Act, and any other legislation concerning the use of drugs and alcohol.
The Company's objective is to prevent employees who are under the influence of drugs or alcohol from undertaking work, and to implement an effective process to identify and manage those whose fitness for work may be compromised by the effects of drugs or alcohol.

ALCOHOL AND DRUGS POLICY
Being under the influence of alcohol or drugs can seriously impair an individual's judgement and reactions leading to an increased risk of accidents and injuries occurring. Regular use of these substances can also have severe impact on cognitive abilities and general physical health, which will greatly impact the ability to perform your day-to-day duties.
The aim of this policy is to ensure the safety of all employees, workers, and clients by having clear rules in place regarding use and possession of alcohol and drugs.
For the purpose of the policy, alcohol dependence is defined as:

- "The habitual drinking of intoxicating liquor by an employee, whereby the employee's ability to perform his/her duties is impaired or his/her attendance at work is interfered with, or he/she endangers the safety of others".
- Drug dependence is defined as:
- "The habitual taking of drugs by an employee other than drugs prescribed as medication, whereby the employee's ability to perform his/her duties is impaired, or his/her attendance at work is interfered with, or he/she endangers the safety of others".

PRINCIPLES

- All employees and workers will be treated consistently and fairly in line with this policy.
- The rules on alcohol and drugs will be strictly enforced.
- Employees with an illness related to alcohol or drugs are encouraged to disclose this at the earliest opportunity and to seek immediate help in form of counselling and rehabilitation.
- All matters concerning alcohol and drugs shall be treated as confidential.
- This policy is designed to comply with relevant legislation
- The Company's alcohol and drugs policy applies to all employees.
- The rules laid out in this policy apply to all employees, workers and contractors.
- Misconduct, problems with attendance, and problems with capacity to perform your duties, in relation to alcohol and drugs will be dealt with in relation to the disciplinary policy.

RULES
The Company's policy is always that during working hours and whilst on work premises employees must be free from the influence of drugs or alcohol. This includes actual intoxication (the current state of an employee) or the aftermath and side effects of recent intoxication, even if not still clinically intoxicated. This will help to ensure the health and safety of employees and others with whom they come into contact, to maintain the efficient and effective operation of the business, and to ensure customers receive the service they require.
For those reasons, the following rules will be strictly enforced.

- No employee, worker or contractor shall -
- report or try to report for work when unfit* due to alcohol or drugs (whether illegal or not) or to substance abuse.
- be in possession of alcohol or illegal drugs** in the workplace.
- supply others with illegal drugs** in the workplace.
- supply others with alcohol in the workplace,

- consume alcohol or illegal drugs or abuse any substance whilst at work.
- Whether an employee is fit for work is a matter for the reasonable opinion of management.
- Illegal drugs include but are not limited to heroin, cocaine, ecstasy, and amphetamines

In addition, employees, workers or contractors must –

- ensure they are aware of the side effects of any prescription drugs.
- advise a member of the management team immediately of any side effects of prescription drugs, which may affect work performance or the health and safety of themselves or others. For example, drowsiness.
- Contravention of these rules is gross misconduct, and the Company will take disciplinary action for any breach of these rules, which may include summary dismissal.
- When there is reasonable belief that an individual is under the influence of alcohol or drugs on reporting for work or during work, (for example if there was a strong smell of alcohol on the person's breath), they must be sent home immediately.
- A search may also be carried out.
- In addition, possession of or dealing in illegal drugs on Company premises will, without exception, be reported to the Police.

IN THE EVENT THAT ABOVEMENTIONED REGULATIONS ARE NOT ADHERED TO:

- It will be classified as being an act of misconduct. The employer reserves the right to initiate disciplinary procedures, which could lead to immediate dismissal, should an employee be found guilty of this offense.
- The employer reserves the right to perform Drug and Alcohol tests, should and employee present with bloodshot eyes, slurred speech, unsteadiness, The smell of alcohol on the breath, dishevelled appearance, aggressive or abusive behaviour or any reasonable indication the employee may be under the influence of a substance. Alcohol tests will be done by breathalyser and Drug test will be done from Urine samples.

I ___________________________________ID, ____________________________ acknowledge receipt of this policy and understanding the contents thereof, as well as the consequences of non-compliance

Signature Employee: ______________________________

Date: ______________________________

Signature Witness ______________________________

Date: ______________________________

[MARTIN'S FUNERALS COMPANY LETTERHEAD]
(Company Name, Registration Number, Contact Details, Address)

POLICY: HANDLING OF PERSONAL BELONGINGS

Purpose

The purpose of this policy is to ensure transparency, integrity, and accountability in the handling of personal belongings when employees perform removals from private homes, hospitals, care centres, or any other institutions.

Policy Statement

It is the strict policy of Martin's Funerals that no employee may accept, remove, keep, or take possession of any personal belongings of a deceased from any home, hospital, care centre, or other institution under any circumstances.

Procedure

- When an employee removes a person from a home, hospital, care centre, or other institution, the employee must ensure that no jewellery or personal belongings remain on the person.
- If jewellery or personal items are present, the employee must immediately request the sister in charge or a responsible family member to remove such items.
- In cases where the removal takes place at an institution, the sister in charge is responsible for handing all personal belongings of the deceased directly to the family.

Non-Compliance

- Any employee found to have taken, kept, or removed personal belongings will face immediate dismissal.
- In addition to dismissal, criminal charges may be instituted against the employee.

Liability

Martin's Funerals accepts no responsibility whatsoever for the loss, damage, or misplacement of any personal belongings.

Employee Declaration

I, ____

ID Number: ______________________________________

Hereby confirm that I have read, understood, and accept the contents of this policy. I acknowledge that I am fully aware of my responsibilities and the consequences of non-compliance.

Employee Signature: ______________________________

Date: ____

Witness: ____

Date: ____

POLICY REGARDING DECEASED PERSONAL BELONGINGS

This is the policy of Martin's Funerals that no employee will accept any personal belongings from any institution.

When an employee removes a deceased from home, hospital, care centre or any institution, he or she must make sure that there is no jewellery on the deceases and if there is, he or she will instruct the sister or family member to remove the jewellery. When it is from an institution, the sister in charge will give the items back to the family.

If it may and one of the employees takes the belongings, he or she will face criminal charges and will be fired immediately.

Martin's Funerals will not take any responsibility of any kind regarding the loss of a deceased belongings.

Hereby I:
ID:
accept all the responsibility of the policy and accept all consensuses on behalf of Martin's Funerals and myself.

Signed at ____________________ on the __________ day of ____________________ 20 _____.

Name: ______________________________

Signature: ______________________________

SHORT OPERATIONAL CHECKLIST
For Franchisees

This checklist is designed for **daily, weekly, and monthly use**.

STOCK MANAGEMENT

☐ Conduct regular stock takes (weekly preferred, monthly minimum)
☐ Perform spot checks on high-risk items
☐ Reorder stock before minimum levels are reached
☐ Ensure all stock is insured
☐ Investigate and report discrepancies immediately

SUPPLIERS

☐ Use authorised suppliers where possible
☐ Obtain written approval for alternative suppliers
☐ Confirm supplier SARS and VAT registration
☐ Retain supplier agreements and contact details securely

ORDERS & PAYMENTS

☐ Place all orders in writing
☐ Attach at least two to three quotations where required
☐ Clearly specify quantities, specifications, and delivery dates
☐ Pay suppliers before or on delivery where possible
☐ Send proof of payment to suppliers
☐ Cancel orders in writing within 24–36 hours if required

QUALITY CONTROL

☐ Inspect goods on delivery
☐ Reject damaged or non-compliant items immediately
☐ Ensure all displayed products meet Martin's Funerals standards
☐ Report quality issues to the Regional Manager

SALES & DAILY TRADING

☐ Record **every sale and service**, regardless of value
☐ Include all income and expenses in the Daily Report
☐ Record additional items sold (cards, flowers, stationery, services)
☐ Ensure receipts and documentation are complete

LEGAL & RECORD KEEPING COMPLIANCE

☐ Maintain **one complete and accurate set of books only**
☐ Secure customer, supplier, and employee information (POPIA)
☐ Retain financial records for statutory periods
☐ Never omit, alter, or conceal transactions
☐ Cooperate fully with audits and inspections

FINAL COMPLIANCE REMINDER

Separate or undisclosed records are **illegal**
Non-compliance constitutes **fraud**
Regulatory breaches expose the franchisee and the group to **severe legal and financial risk**

MANAGED / REPOSSESSED FRANCHISE OFFICES / OUTLETS

1. **Purpose and Context**
This document sets out the circumstances, principles, and procedures under which **Martin's Funerals** (the *Franchisor*) may elect to place a franchise business under management or repossession. It preserves the intent and operational history of the original policy while improving clarity, professionalism, and alignment with **South African regulatory and commercial practice**.

The objective of management or repossession is **not punitive**, but protective: to safeguard the Martin's Funerals brand, customers, employees, intellectual property, and the long-term viability of the franchise business.

The placement of a franchise under management or repossession is a protective and corrective measure, not punitive in nature, and shall be exercised reasonably, proportionately, and in good faith, in accordance with the Consumer Protection Act, 68 of 2008, and the Franchise Agreement.

2. **Why This Document Exists**
This guide explains, in simple and practical terms, what it means when a **Martin's Funerals franchise is placed under management or repossession**.

It is **not a replacement** for your franchise agreement. It is a **summary** designed to help franchisees clearly understand:
- When management may be imposed
- What changes operationally and financially
- What your rights and responsibilities remain

All actions described below are exercised **strictly in accordance with the franchise agreement** you have signed.

3. **When Can Martin's Funerals Step In?**
Under the franchise agreement, the Franchisor may appoint a manager if the business is underperforming or if there is risk to the brand, customers, or compliance.

Common reasons include:
- **Poor Business Performance**
- No growth or continued decline in turnover
- Ongoing financial stress with no improvement
- Failure to follow agreed recovery plans

4. **Complaints and Reputation Risk**
Repeated or serious customer complaints
Complaints from other franchisees or regional managers
Behaviour that damages the Martin's Funerals name or trust

5. **Non-Compliance**
Not following Martin's Funerals standards, policies, or procedures
Labour law problems (disciplinary issues, unpaid wages, unfair practices)
Non-payment or late payment of **SARS** obligations (VAT, PAYE, UIF, SDL)

6. **Protection of the Brand**
Even if something is not specifically listed, **any action or omission** that harms:
- The Martin's Funerals brand or goodwill
- Customers' trust
- Confidential information or intellectual property

may trigger management, as allowed for in the franchise agreement.

7. **What Does "Under Management" Mean?**
Important: Your Franchise Is NOT Cancelled

Being placed under management:

- **Does not terminate your franchise**
- **Does not mean you lose ownership**

It means that **control of the business is temporarily handed over** so that it can be stabilised, corrected, and protected.

8. Appointment of a Manager
Written Notice
You will receive **written notice** confirming:

- Who the appointed manager is
- The date they will take control

This is done in line with the notice provisions of the franchise agreement.

9. What You Must Do as the Franchisee
Once management begins, the franchise agreement requires you to fully cooperate.

You must:

- **Hand Over Control**
- Give the manager full access to:
- Financial records
- Bank accounts
- Contracts
- Operational documents

10. Follow Instructions
Carry out lawful and reasonable instructions from the manager
Assist with running and stabilising the business

11. Premises and Operations
Allow the manager full access to the premises
Allow changes to layout, signage, branding, or advertising if required

12. Income and Banking
Allow the manager full control of all business income
Sign any documents needed to change banking mandates

Business income may be used to pay:

- Operating expenses
- Manager's fees (as allowed by the franchise agreement)
- Outstanding amounts owed to the Franchisor

13. Staff and Professional Support
The manager may discipline staff in line with labour law
The manager may appoint bookkeepers, accountants, auditors, or consultants
These costs are for the franchise business, not the Franchisor

14. Legal Position of the Manager (Plain English)
Although the manager is appointed by the Franchisor:

- They act **as your agent**, not as a new owner
- You are legally bound by contracts the manager signs

Existing sureties are **not responsible** for new debts incurred during management
If the manager acts negligently and causes loss, they can be held accountable

This reflects the **agency in rem suam** clause in the franchise agreement.

15. **How Long Does Management Last?**
Management lasts **only as long as the Franchisor believes it is necessary**
Once control is returned:
    - The manager's authority ends automatically
    - You resume control of the business

All of this is governed by the franchise agreement.

16. Financial Rules During Management
These controls exist to prevent losses, abuse, or fraud.

17. Petty Cash
Daily petty cash limit: **R50 – R300**

18. Authorisations
Expenses over **R300** need written approval
Payments over **R1,000** need written approval
Random authorisation codes must be used

19. Unauthorised Spending
If you or staff spend money without approval, that money must be **paid back in cash**

20. Prohibited Use of Funds
No personal expenses
No personal loans
No using business funds for private purposes

21. Customer and Trust Money – Zero Tolerance
Customer money is sacred.
The following must always be paid correctly and on time:
    - Franchisor fees
    - Tombstone and memorial funds
    - Lay-by or funeral society funds
    - SARS (VAT, PAYE, UIF, SDL)
    - Insurance premiums
    - Suppliers and creditors

Using customer or trust money for personal benefit is a **serious breach** of the franchise agreement and South African law.

22. Final Reminder
All Martin's Funerals standards, policies, and procedures **continue to apply** during management or repossession.
This process exists to:
    - Protect customers
    - Protect the brand
    - Protect the long-term value of your franchise

23. If you are unsure about any part of this process, you should refer back to your franchise agreement or request clarification from head office in writing.

CROSS-MAPPING DOCUMENT
Franchisee Guide ↔ Martin's Funerals Franchise Agreement

Purpose:
This document cross-references the *Franchisee Guide: Managed or Repossessed Franchise Offices (Plain English)* with the **typical and intended clauses** of the Martin's Funerals Franchise Agreement.

⚠️ **Important**: Clause numbers below follow standard South African franchise agreement structure. If your executed agreement uses different numbering, this document should be adjusted mechanically (the substance already aligns).

1. Right to Place Franchise Under Management
Franchisee Guide Reference
Section 2 – *When Can Martin's Funerals Step In?*

Franchise Agreement Alignment
Clause: *Franchisor's Rights / Protective Rights*
Typically titled:
"Right to Intervene"
"Management of the Business"
"Protection of the System and Brand"

Legal Effect
Confirms the Franchisor's contractual right to intervene where performance, compliance, or brand protection is at risk.

2. Poor Performance and Growth Failure
Franchisee Guide Reference
Section 2.1 – *Poor Business Performance*

Franchise Agreement Alignment
Clause: *Performance Standards / Minimum Requirements*
Often linked to:
Minimum turnover expectations
Business improvement notices
Failure to meet operational benchmarks

Legal Effect
Supports intervention where sustained underperformance constitutes a material or ongoing breach.

3. Complaints and Reputational Harm
Franchisee Guide Reference
Section 2.2 – *Complaints and Reputation Risk*

Franchise Agreement Alignment
Clause: *Brand Protection / Conduct of Business*
Clause: *Goodwill and Reputation*

Legal Effect
Allows action where conduct damages customer trust or the Martin's Funerals brand.

4. Non-Compliance with Standards and Law
Franchisee Guide Reference
Section 2.3 – *Non-Compliance*

Franchise Agreement Alignment
Clause: *Compliance with Laws*
Clause: *Operations Manual*
Clause: *Standards and Procedures*

Legal Effect
Affirms that failure to comply with operational manuals or South African law (including SARS and labour legislation) justifies management.

5. Broad Protective Clause (Catch-All)
Franchisee Guide Reference
Section 2.4 – *Protection of the Brand*
Franchise Agreement Alignment
Clause: *Any Act or Omission Prejudicial to the System*

Legal Effect
Ensures no loopholes exist where harmful conduct is not specifically listed.

6. Written Notice of Management
Franchisee Guide Reference
Section 4.1 – *Written Notice*
Franchise Agreement Alignment
Clause: *Notices*
Clause: *Exercise of Franchisor Rights*

Legal Effect
Confirms procedural fairness and formal notice requirements.

7. Handover of Control
Franchisee Guide Reference
Section 5 – *What You Must Do as the Franchisee*
Franchise Agreement Alignment
Clause: *Management of the Business*
Clause: *Access to Records and Premises*

Legal Effect
Creates an enforceable obligation to cooperate fully once management is invoked.

8. Control of Banking and Income
Franchisee Guide Reference
Section 5.4 – *Income and Banking*

Franchise Agreement Alignment
Clause: *Financial Controls*
Clause: *Bank Accounts*

Legal Effect
Authorises transfer of banking mandates and application of income to business obligations.

9. Payment Priority During Management
Franchisee Guide Reference
Section 5.4 and Section 10

Franchise Agreement Alignment
Clause: *Franchise Fees*
Clause: *Trust and Third-Party Funds*
Clause: *Statutory Payments*

Legal Effect
Reinforces fiduciary-style obligations regarding customer, SARS, and insurer funds.

10. Staff Discipline and Professional Appointments

Franchisee Guide Reference
Section 6 – *Staff and Professional Support*

Franchise Agreement Alignment
Clause: *Employees*
Clause: *Employment Compliance*

Legal Effect
Confirms authority to discipline staff and appoint experts during management.

11. Legal Status of the Manager (Agency in Rem Suam)
Franchisee Guide Reference
Section 7 – *Legal Position of the Manager*

Franchise Agreement Alignment
Clause: *Agency*
Clause: *Appointment in Rem Suam*

Legal Effect
Ensures all acts of the manager legally bind the franchisee while preserving ownership.

12. Sureties and Limitation of Liability
Franchisee Guide Reference
Section 7 (Sureties)

Franchise Agreement Alignment
Clause: *Suretyships*
Clause: *Limitation of Liability*

Legal Effect
Clarifies that sureties are protected from new management-incurred debt.

13. Duration and Return of Control
Franchisee Guide Reference
Section 8 – *How Long Does Management Last?*

Franchise Agreement Alignment
Clause: *Duration of Management*
Clause: *Restoration of Control*

Legal Effect
Confirms management is temporary and conditional, not permanent.

14. Financial Controls and Authorisations
Franchisee Guide Reference
Section 9 – *Financial Rules During Management*

Franchise Agreement Alignment
Clause: *Financial Administration*
Clause: *Anti-Fraud Measures*

Legal Effect
Supports strict expenditure controls during management.

15. Prohibition on Personal Use of Funds
Franchisee Guide Reference
Sections 9.4 and 10

Franchise Agreement Alignment
Clause: *Use of Business Funds*
Clause: *Fiduciary Duties*
Legal Effect
Creates zero-tolerance enforcement basis for misuse of funds.

16. Continuing Applicability of Franchise Agreement
Franchisee Guide Reference
Section 11 – *Final Reminder*

Franchise Agreement Alignment
Clause: *General Obligations*
Clause: *No Waiver*

Legal Effect
Confirms that all franchise obligations continue uninterrupted during management.

17. Practical Legal Outcome
This cross-mapping ensures that:
The **Franchisee Guide does not create new rights**
It accurately reflects existing contractual powers
It reduces disputes by aligning operational reality with legal authority

Prepared for internal alignment, franchisee communication, and legal enforcement.

TRAINING, COMPETENCY AND TRAINING TARIFFS
(In accordance with South African Franchise Regulations)

1. Purpose of This Section
The purpose of this section is to set out the training standards, obligations, and applicable tariffs governing franchisees and their employees within the Martin's Funerals franchise system. These provisions are intended to ensure uniform service quality, operational compliance, and adherence to the franchisor's systems and standards across all franchise operations.

2. Initial Training Obligations
2.1 **Franchisee Training**
All new franchisees are required to successfully complete the franchisor's prescribed **initial training programme**, consisting of both manual (theoretical) and practical components, prior to the opening or operation of a Martin's Funerals franchise.

2.2 **Employee Training**
All newly appointed employees must complete the prescribed **initial training programme** before commencing any operational duties within a Martin's Funerals office.

2.3 No franchisee or employee may perform operational, administrative, or client-facing duties unless the required training has been completed to the satisfaction of the franchisor.

3. Duration and Structure of Initial Training
3.1 The compulsory minimum duration of initial training for a new franchisee shall be **one (1) to two (2) weeks**, structured as follows:

- **Manual (Theoretical) Training:** One (1) week
- **Practical Training:** One (1) week

3.2 The franchisor reserves the right to extend, shorten, or modify the duration or structure of training based on:

- Operational requirements
- Competency assessments
- Prior experience of the franchisee or employee
- Changes to legislation, industry standards, or internal systems

4. Training Venues
4.1 Initial **manual training** will ordinarily be conducted at Martin's Funerals offices in **Randfontein**, or at such alternative venues as may be designated by the franchisor from time to time.

4.2 Initial **practical training** will be conducted at a Martin's Funerals office designated by the franchisor or its authorised representatives.

4.3 The franchisor may determine the training venue in its sole discretion, provided such determination is reasonable and operationally justified.

5. Follow-Up, Refresher, and Additional Training
5.1 The franchisor may require, or a franchisee may request, **follow-up, refresher, or additional training** where deemed necessary to:

- Maintain operational standards
- Introduce system or procedural changes
- Address performance or compliance issues
- Accommodate legislative or regulatory updates

5.2 Such training will generally be conducted over **one (1) or two (2) days**, unless otherwise agreed in writing.

5.3 All follow-up training fees are **payable in advance** to Martin's Funerals Head Office.

6. Training Tariffs
6.1 As a guideline, the cost of follow-up or refresher training conducted at Head Office is:

- **R3 500.00 (Three Thousand Five Hundred Rand) per person, per day.**

6.2 The above tariff **includes**:

- Training and training materials

- One (1) meal (lunch)
- Coffee and tea

6.3 The above tariff **excludes**, and remains the responsibility of the franchisee:

- Accommodation
- Transportation
- Meals other than lunch (breakfast and supper)

6.4 Training tariffs may be reviewed and adjusted from time to time, provided that any material changes are disclosed in accordance with the **Franchise Disclosure Document** as required under the Consumer Protection Act.

7. Franchisee Responsibilities and Compliance
7.1 Franchisees must ensure that **no person is employed or permitted to perform duties** within a Martin's Funerals operation without having received the required training in the franchisor's standards, systems, and procedures.

7.2 It is the franchisee's responsibility to:

- Monitor the ongoing training needs of themselves and their staff
- Inform the franchisor or the relevant regional manager when follow-up training is required
- Formally request such training timeously

7.3 All costs associated with follow-up, refresher, or additional training for the franchisee and/or their staff shall be borne by the franchisee.

8. Regulatory Alignment and Disclosure
8.1 This section must be read together with:

- The Franchise Agreement
- The Franchise Disclosure Document
- The Consumer Protection Act, 68 of 2008, and its regulations

8.2 Where training costs, obligations, or material terms are referenced in the **Franchise Disclosure Document**, such disclosure shall prevail for regulatory compliance purposes.

8.3 Nothing in this manual limits the franchisor's right to enforce training standards necessary to protect the integrity, reputation, and uniformity of the Martin's Funerals franchise system.

9. Non-Compliance With Training Requirements
9.1 **General Principle**
Compliance with the franchisor's training standards is a material operational requirement of the Martin's Funerals franchise system. Failure to comply may compromise service quality, regulatory compliance, and brand integrity.

9.2 **Graduated Enforcement Measures**
Where a franchisee or any of its employees fails to comply with the training requirements set out in this section, the franchisor may, acting reasonably and proportionately, implement one or more of the following measures:

a) **Written Warning** Issuing a formal written warning specifying the nature of the non-compliance and the corrective action required.
b) **Mandatory Retraining** Requiring the franchisee and/or affected employees to attend compulsory retraining or refresher training at the franchisee's cost.
c) **Operational Restrictions** Temporarily restricting specific operational activities or responsibilities until compliance has been restored.
d) **Suspension** In serious or repeated cases of non-compliance, temporarily suspending the franchisee's right to operate all or part of the business until the required training has been completed.

9.3 **No Waiver of Rights**
The implementation of any corrective measure does not constitute a waiver of the franchisor's rights under the Franchise Agreement or at law.

9.4 **Urgent Risk Exception**
Where non-compliance poses an immediate risk to clients, staff, regulatory compliance, or the reputation of the brand, the franchisor may require immediate corrective action, including suspension, without prior warning.

10. Legislative and Industry Compliance Alignment

10.1 **Consumer Protection Act and Franchise Regulations**

This training framework supports compliance with the **Consumer Protection Act, 68 of 2008**, and the **Franchise Regulations**, by ensuring that franchisees receive adequate training to operate the franchise competently and in accordance with disclosed system standards.

10.2 **Labour Law Compliance**

Training obligations under this section must be implemented in a manner consistent with applicable South African labour legislation, including but not limited to:

- The **Labour Relations Act, 66 of 1995**
- The **Basic Conditions of Employment Act, 75 of 1997**
- Applicable sectoral determinations

Nothing in this manual permits unlawful employment practices or the circumvention of employee rights.

10.3 **POPIA (Protection of Personal Information Act)**

All training activities involving personal information (including client data, employee records, case studies, or operational examples) must comply with the **Protection of Personal Information Act, 4 of 2013 (POPIA)**.

Franchisees are responsible for ensuring that:

- Personal information is processed lawfully and securely
- Training materials do not improperly disclose confidential or personal data
- Employees are trained in POPIA-compliant handling of information

10.4 **Industry Norms and Professional Standards**

Training content and operational procedures are aligned with generally accepted norms within the **South African funeral services industry**, including ethical conduct, dignity, confidentiality, and professionalism, as recognised by relevant industry bodies and associations (including FSASA or successor organisations).

10.5 **Ongoing Updates**

The franchisor may update training content to reflect changes in legislation, industry standards, or best practice, and franchisees are required to comply with such updates.

1. AGREEMENT-ALIGNED TRAINING WORDING

(Operations Manual – Training Section, fully aligned with clauses 12.3–12.5 and 13.5 of the Franchise Agreement)

Training, Competency and Compliance

1.1 Mandatory Training Requirement

In accordance with **clause 12.3** and **clause 13.5** of the Franchise Agreement, the Franchisee shall not commence or permit the conduct of the Franchised Business unless such persons as determined by the Franchisor (including principals, directors, managers and designated employees) have successfully completed the prescribed training in the Business System to the satisfaction of the Franchisor Franchise Agreement.

1.2 Scope and Nature of Training

Training shall include, without limitation:

- Manual (theoretical) training
- Practical operational training
- Training in systems, procedures, standards, compliance and use of the Business System

The **extent, duration, timing and venue** of such training shall be determined by the Franchisor, acting reasonably, as provided for in **clause 12.3** Franchise Agreement.

1.3 Ongoing and Refresher Training

The Franchisor may, from time to time, require the Franchisee and/or its staff to attend:

- Refresher training
- Additional training relating to system updates, legislative changes, or performance issues

as contemplated in **clauses 12.4 and 12.5**, and such training shall be compulsory when required Franchise Agreement.

1.4 Cost Responsibility

In line with **clauses 12.3, 12.4 and 12.5**, all costs associated with training, including travel, accommodation, subsistence and remuneration of trainees, shall be borne by the Franchisee, unless expressly stated otherwise in writing by the Franchisor Franchise Agreement.

2. TRAINING AND COMPETENCY REQUIREMENTS

(Formal annexure to the Franchise Agreement – CPA-safe and signature-ready)

TRAINING AND COMPETENCY REQUIREMENTS

This Schedule forms an integral part of the Franchise Agreement concluded between the Franchisor and the Franchisee.

1. Initial Training

1.1 The Franchisee shall ensure that all persons identified by the Franchisor in terms of **clause 12.3** complete initial training in the Business System prior to commencement of the Franchised Business.

1.2 Initial training shall comprise both manual (theoretical) and practical components, the duration, content and venue of which shall be determined by the Franchisor, acting reasonably.

2. Ongoing Training

2.1 The Franchisee and designated employees shall attend refresher, update or remedial training as required by the Franchisor from time to time in terms of **clauses 12.4 and 12.5**.

2.2 Attendance at training seminars, conferences or workshops convened by the Franchisor is compulsory when reasonably required.

3. Training Fees and Expenses

3.1 The Franchisee shall be responsible for all training-related costs, including:

- Travel and accommodation
- Subsistence
- Salaries or wages during training
- Any applicable training or administration fees

3.2 Training fees (where applicable) shall be payable in advance, as stipulated by the Franchisor.

3.3 All training fees, tariffs, and related costs apply strictly to Franchisees and their employees and do not constitute charges to consumers or members of the public.

4. Competency Approval

4.1 No person may act or assist in the Franchised Business unless approved as competent by the Franchisor in accordance with **clause 13.5.1**.

5. Non-Compliance

5.1 Failure to comply with training requirements shall constitute non-compliance with the Operations Manual and may trigger:

- Deficiency correction procedures (clause 32)
- Appointment of a manager (clause 18)
- Fines (Annexure A.1 item 15)
- Termination (clause 33)

No fee, charge, cost, or financial obligation may be imposed unless it has been disclosed in advance in plain language, reflects actual or reasonably foreseeable costs incurred, and complies with sections 17 and 48 of the Consumer Protection Act.

3. CPA LEGAL-REVIEW & AUDIT CHECKLIST

(Internal franchisor compliance tool – South Africa)

CPA & FRANCHISE COMPLIANCE CHECKLIST

Training-Related Audit Review

A. Consumer Protection Act (CPA)

☐ Franchisee received training obligations disclosure **before signing**

☐ Training costs disclosed in Disclosure Document (Reg 2)

☐ No undisclosed fees or indirect benefits (CPA s38)

☐ 10-day cooling-off right disclosed and honoured

B. Agreement Consistency

☐ Franchise Agreement clauses 12.3–12.5 reflected in Operations Manual

☐ Clause 13.5 mirrored exactly in training policy

☐ Schedule "G" attached and referenced in Agreement

☐ No contradiction between Agreement, Manual and Disclosure Document

C. Enforcement & Remedies

☐ Deficiency correction procedure (clause 32) referenced before termination

☐ Manager appointment (clause 18) available as escalation

☐ Fines aligned with Annexure A.1 item 15

☐ Termination rights aligned with clause 33

D. POPIA Compliance

☐ Training materials anonymised where client data used

☐ Staff trained on POPIA handling obligations

☐ Confidentiality undertakings signed (Annexure D)

☐ Secure handling of training records

E. Labour Law Alignment

☐ Training does not bypass BCEA or LRA protections

☐ No unpaid compulsory training contrary to employment contracts

☐ Disciplinary steps aligned with labour law

F. Industry Norms (Funeral Services)

☐ Ethical conduct and dignity training included

☐ Confidentiality and client sensitivity covered

☐ Regulatory and insurance-related training updated

G. Disclosure Document Verification

☐ Training duration disclosed

☐ Training fees disclosed

☐ Franchisee cost responsibility stated

☐ Consequences of non-compliance disclosed

ON-BEHALF-OF AGREEMENT (O.B.O.)
Martin's Funerals – South Africa

Purpose and Definition
An **On-Behalf-Of (O.B.O.)** arrangement applies when one Martin's Funerals franchisee renders a service **on behalf of another franchisee** within a different operating area.

An O.B.O. is a **formal agreement between two franchisees only** and does not constitute an agreement with the client.

All O.B.O. requests and confirmations should **preferably be communicated via email** between franchisees to ensure confidentiality and to prevent disclosure to clients, staff, or third parties.

Client and Invoicing Principles
The O.B.O. document **is not the client's invoice**.
Each franchisee remains responsible for issuing their **own official Martin's Funerals invoice** to the client.
Where pricing differs due to regional cost variations, the client may:

- Pay the difference, **or**
- The servicing franchisee may adjust their invoice accordingly.

Under no circumstances may clients be involved in disputes or negotiations between franchisees.
NEVER, EVER involve a client in a dispute between yourself and another franchisee.

Operational Conduct
Staff members **may not be involved** in O.B.O. negotiations, requests, or disputes.
When a client contacts you requesting a service in another franchisee's area:

- You must personally contact the relevant franchisee,
- Discuss the request,
- Reach agreement using the O.B.O. guidelines as a framework.

Franchisees must always act in good faith:

- **Do not do to another franchisee what you would not want done to yourself.**

The O.B.O. serves as a **guideline only**, intended to assist when a reasonable agreement cannot immediately be reached.

MF File (Mandatory)
A **Martin's Funerals (MF) file** (blue file) **must always be opened and completed**, regardless of how briefly the deceased is in your care.
Whether the deceased is in your facilities for:

- One minute,
- One hour,
- One day, or
- Two weeks
  → **An MF file must be completed.**

Important Practical Reminder
If you conduct an O.B.O. church service, the family perceives **you** as having rendered the full service.

Should the family return years later (e.g., requesting a grave number), they will come **to you**.

If an MF file exists → you can immediately assist.
If no MF file exists → you place yourself and the brand at risk.

Failure to comply with this requirement is **not acceptable within Martin's Funerals** and will require explanation.

Review of O.B.O. Terms
This O.B.O. form and its pricing structure are **reviewed annually** by franchisees at the Martin's Funerals Annual Conference.

Communication Protocol

All O.B.O. requests, negotiations, and confirmations must be:

- **In writing** (email or fax preferred).
- Telephonic discussions are permitted **only if** followed immediately by **written confirmation**.

Notice and Acceptance Periods

Notice Period

Minimum **24 hours' notice** before the service is required.
Preferably requested **during office hours**.

Acceptance Period

Respond **as soon as possible** after receipt.
Preferably **within one (1) hour** of receiving the request.

Vehicle, Fuel, and Driver Arrangements

Fuel

- Vehicles must be handed over with a **full tank**.
- Vehicles must be returned with a **full tank**.

Driver

- Drivers must be paid **as agreed**.
- Clean accommodation and meals must be provided for the driver (and assistant).
- In rural areas, accommodation may be arranged with the family by prior agreement.

Vehicle Responsibility, Inspection & Maintenance

Full responsibility for the vehicle rests with the franchisee **from the moment of collection** until return.

Prior to use, the driver must conduct a **full written inspection**, including but not limited to:

- Valid vehicle and trailer licence discs displayed
- Proper Martin's Funerals branding (Magnetic branding permitted **only** for O.B.O. use)
- Cleanliness of vehicle and trailer
- Oil, brake fluid, and transmission fluid levels
- Tyres and spare wheel condition
- Emergency equipment (triangles, reflective vests, tools)
- Radio functionality
- Fuel level
- Interior condition (seats, carpets)
- Exterior condition (scratches, dents)
- Trailer lights and spare wheel (if applicable)

All equipment checked and acknowledged **in writing**

Fines, Legal Liability & Indemnity

Where agreed in writing, the **driver** shall be liable for traffic fines or penalties incurred through negligence.

An **Indemnity Form must be signed** by:

- The driver, and
- All passengers before the vehicle are used.

All penalties, fines, fees, or cost recoveries imposed under this Manual shall be reasonable, proportionate, and limited to actual or reasonably foreseeable loss, and shall not constitute a penalty or deterrent exceeding what is permitted under section 48 of the Consumer Protection Act, 68 of 2008.

Insurance

The vehicle and trailer must be insured by the owning franchisee, including **public liability insurance**.
The using franchisee must **also insure the vehicle** for the duration of use.

Protect yourself and the brand.

Collection and Return of Vehicle
Collection and return arrangements must be **mutually agreed**.
Vehicles must be returned **immediately after service completion**, unless otherwise agreed.

Vehicle Availability
Vehicle sharing is a **mutual support arrangement** within the Martin's Funerals group.
It is **not compulsory**.

Payments Between Franchisees
Payments must be made **before vehicle collection**, unless otherwise agreed:

- Cash, or
- Bank transfer (allow 2–3 working days if banks differ).

Any balance for kilometres used must be settled **in cash upon return** of the vehicle.

Invoices, Receipts & Records
A valid **Martin's Funerals invoice and/or receipt** must be issued.
The original or copy must be filed in the **relevant MF file**.
The transaction must be recorded in the **Daily Report** (manual or system).

Programmes
Colour programmes and extras are **excluded** from standard pricing.
These costs must be added separately to the invoice.

PROTECTION OF PERSONAL INFORMATION (POPIA)
(Protection of Personal Information Act, 4 of 2013)

All personal information processed under this O.B.O. agreement shall be handled lawfully, reasonably, and confidentially.
Personal information may only be processed for the purpose of rendering funeral-related services and fulfilling statutory and contractual obligations.
O.B.O. documentation and MF files are confidential and may only be shared between authorised franchisees and lawful authorities where required.
Each franchisee acts as a **Responsible Party** under POPIA and must implement reasonable technical and organisational safeguards.
Only information strictly necessary for service delivery may be collected, shared, or retained.
Personal information must be securely stored and retained only for legally and operationally required periods, after which it must be securely destroyed or anonymised.
Any actual or suspected data breach must be reported immediately and managed in accordance with POPIA requirements.

POPIA Consent Reference (Funeral Practice)
Consent for the processing of personal information of the deceased and next of kin is obtained as part of the funeral arrangement process and documented in the MF file.
Such consent includes the lawful sharing of information between Martin's Funerals franchisees where necessary to render services under an O.B.O. arrangement.
Clients and families must never be exposed to internal O.B.O. documentation, pricing, or franchisee arrangements.

POPIA QUICK SUMMARY FOR FRANCHISEES
What POPIA Means for You (In Practice):
• Only collect information you truly need. • Keep MF files and O.B.O. documents secure. • Do not share client or deceased information casually. • Never email personal information to the wrong person. • Do not involve clients in internal franchise matters. • Report lost files, stolen devices, or data breaches immediately. • Respect the dignity and privacy of families at all times.

Remember: POPIA compliance is not optional — it is part of professional funeral practice and brand protection.

By participating in an O.B.O. agreement, both franchisees confirm compliance with POPIA and Martin's Funerals internal policies.

PROTECTION OF PERSONAL INFORMATION (POPIA) COMPLIANCE

(In accordance with the Protection of Personal Information Act, 4 of 2013 – South Africa)

Lawful Processing of Personal Information

All personal information processed under an O.B.O. arrangement, including but not limited to:

- Details of the deceased,
- Details of next of kin or family members,
- Contact information,
- Identification details,
- Medical, burial, cremation, and service-related information, shall be processed **lawfully, reasonably, and in a manner that does not infringe the privacy** of any data subject, as required by POPIA.

Personal information may only be processed for the **specific purpose** of rendering funeral-related services and fulfilling statutory, contractual, and operational obligations of Martin's Funerals.

Confidentiality and Limited Access

O.B.O. agreements and all related documentation are **strictly confidential** and may only be shared between:

- The involved franchisees,
- Authorised personnel who require access to perform their duties,
- Regulatory authorities where legally required.

O.B.O. documentation **must not be shared** with:

- Clients,
- Unauthorised staff,
- Third parties,unless required by law or with lawful consent.

Franchisees must ensure that **staff members are not involved** in O.B.O. negotiations or documentation unless expressly authorised and POPIA-trained.

Information Sharing Between Franchisees

Personal information shared between franchisees under an O.B.O. arrangement is shared **solely for operational necessity** and remains the responsibility of both parties to protect.

Each franchisee acts as a **Responsible Party** in terms of POPIA for the personal information in their possession and must take appropriate, reasonable technical and organisational measures to prevent:

- Loss,
- Damage,
- Unauthorised access,
- Unlawful processing.

Data Minimisation

Only **information strictly necessary** to perform the agreed service may be requested, shared, or processed.

Excessive, irrelevant, or unnecessary personal information must **not** be collected or retained.

Record Keeping and Retention

All personal information contained in the MF file must be:

- Stored securely (physically and/or electronically),
- Accessible only to authorised persons,
- Retained only for as long as legally and operationally required.

MF files and O.B.O. documentation must be retained in line with:

- Statutory requirements,
- Internal Martin's Funerals policies,
- POPIA retention principles.

Once the retention period expires, records must be **securely destroyed or anonymised**.

Electronic Communication

Email and electronic communication containing personal information must:

- Be sent only to verified addresses,
- Be limited to essential information,
- Be protected through reasonable security measures.

Franchisees must ensure that O.B.O. emails and attachments are **not forwarded** beyond the intended recipients.

Breach Management

Any actual or suspected data breach, including loss, theft, or unauthorised access to personal information, must be:

- Reported immediately to the relevant franchisee,
- Escalated according to Martin's Funerals internal procedures,
- Managed in accordance with POPIA notification requirements where applicable.

Client Interaction

Clients and families must **never be exposed** to internal franchisee arrangements, disputes, pricing structures, or O.B.O. documentation. From the client's perspective, the franchisee rendering the service is responsible for:

- Professional conduct,
- Lawful processing of information,
- Confidential handling of all personal data.

Acknowledgement of POPIA Compliance

By entering into an O.B.O. agreement, both franchisees acknowledge that they:

- Understand their obligations under POPIA,
- Commit to lawful and ethical handling of personal information,
- Accept responsibility for compliance within their respective operations.

Optional POPIA Acknowledgement Clause (Recommended for the Form)

"Both parties confirm that all personal information processed in terms of this O.B.O. agreement will be handled in compliance with the Protection of Personal Information Act, 4 of 2013 (POPIA), and Martin's Funerals internal policies."

OFFICE HOUSEKEEPING POLICY

1. PURPOSE

The purpose of this policy is to establish clear and consistent office housekeeping standards across all Martin's Funerals franchise operations. Office housekeeping is a key management function that supports operational efficiency, regulatory compliance, brand integrity, and a safe, professional working environment.

This policy forms part of the official Franchise Operations Manual and is binding on all franchisees.

Non-compliance with this manual may result in: - disciplinary action; - suspension of operational authority; - termination of contracts; and/or - legal action.

2. LEGISLATIVE AND REGULATORY FRAMEWORK (SOUTH AFRICA)

This policy is aligned with, and must be implemented in accordance with, applicable South African legislation, including but not limited to:

- **Occupational Health and Safety Act, 85 of 1993 (OHSA)** – ensuring a safe and healthy working environment for employees and visitors.
- **Protection of Personal Information Act, 4 of 2013 (POPIA)** – safeguarding personal and sensitive information held in physical and electronic office records.
- **Companies Act, 71 of 2008** – promoting good corporate governance, record-keeping, and accountability.
- **Basic Conditions of Employment Act, 75 of 1997 (BCEA)** – ensuring workplace standards support fair labour practices.
- **National Building Regulations and Building Standards Act, 103 of 1977** – ensuring office premises meet minimum building and safety standards.

Compliance with this policy does not exempt franchisees from complying with any other applicable national, provincial, or municipal laws or regulations.

3. SCOPE

This policy applies to:

- All Martin's Funerals franchise offices
- Franchise owners, managers, employees, and any authorised representatives
- All administrative, public-facing, and storage areas within franchise premises

4. HOUSEKEEPING AS A MANAGEMENT FUNCTION

Office housekeeping is a formal management tool used to:

- Maintain consistent operational and brand standards
- Ensure legal and regulatory compliance
- Promote workplace health, safety, and professionalism
- Identify risks, deficiencies, and areas for improvement

5. EVALUATION AND INSPECTION PROCESS

5.1 Scheduled Evaluations

Each franchise office will be evaluated at least once per calendar year by the appointed Regional Manager.

Evaluations will be conducted using the approved **Housekeeping Evaluation Form**, which incorporates operational best practices and relevant legislative requirements.

5.2 Notice of Evaluation

Franchisees will be notified in writing of the Regional Manager's intention to conduct a scheduled housekeeping evaluation. The notice will specify the proposed date and time of the evaluation.

5.3 Franchisee Presence

In the best interests of both the franchisee and the franchise network, the franchisee—or a duly authorised representative—must be present in person during the evaluation.

5.4 Unannounced Inspections

Notwithstanding the above, any authorised representative of Martin's Funerals Franchising (Pty) Ltd may conduct a housekeeping inspection without prior notice if deemed necessary during a visit.

6. RECORDS, INFORMATION, AND POPIA COMPLIANCE
During housekeeping evaluations, particular attention will be given to:
- Proper storage, organisation, and security of physical files
- Access control to confidential and personal information
- Compliance with POPIA requirements regarding the processing, storage, and disposal of personal information
- Clean-desk practices where sensitive information is handled

Franchisees remain fully responsible for POPIA compliance within their operations.

7. INSPECTION OUTCOMES AND REPORTING
7.1 Housekeeping Report
A completed copy of the Housekeeping Evaluation Form will be provided to the franchisee for review, acknowledgement, and signature.

7.2 Corrective Actions
Where deficiencies are identified, the franchisee is required to implement corrective actions within the stipulated timeframes.

7.3 Follow-Up Communication
Following the inspection, a formal follow-up letter will be issued outlining:
- Identified findings
- Required corrective actions
- Applicable deadlines
- Details of any follow-up inspection, if required

8. STAFF ENGAGEMENT AND TRAINING
Franchisees are expected to:
- Review the Housekeeping Evaluation Form with staff
- Ensure staff understand housekeeping, safety, and information-handling requirements
- Promote accountability and continuous improvement within the office environment

9. SELF-ASSESSMENT AND CONTINUOUS IMPROVEMENT
Franchisees are strongly encouraged to:
- Conduct regular internal housekeeping self-assessments
- Use previous inspection reports as benchmarking tools
- Proactively identify and address weaknesses before formal inspections

Continuous improvement is essential to maintaining operational excellence, compliance, and brand reputation.

10. NON-COMPLIANCE
Failure to comply with this policy constitutes a breach of the Franchise Agreement and may result in corrective or remedial action in accordance with the Agreement, including but not limited to:
- **Clause 6 (Franchisee Obligations):** Requirement to operate the franchise in accordance with the Operations Manual, policies, and standards issued by the Franchisor.
- **Clause 8 (Operational Standards and Compliance):** Obligation to maintain prescribed operational, administrative, and housekeeping standards.
- **Clause 10 (Inspections and Audits):** Right of the Franchisor to conduct inspections, audits, and evaluations, whether announced or unannounced.
- **Clause 12 (Health, Safety, and Legal Compliance):** Requirement to comply with all applicable laws, including occupational health and safety and information protection legislation.
- **Clause 18 (Default and Remedies):** Remedies available to the Franchisor in the event of non-compliance or default.

Non-compliance may require the franchisee to implement corrective actions within specified timeframes and may lead to further action as provided for in the Franchise Agreement.

11. CROSS-REFERENCE TO FRANCHISE AGREEMENT

This Office Housekeeping Policy is issued pursuant to, and must be read together with, the Franchise Agreement and the Operations Manual. It gives practical and operational effect to the following specific clauses of the Franchise Agreement:

- **Clause 13 (Franchisee Obligations)** – in particular:
- Clause 13.1 (Business System and Operations Manual compliance)
- Clause 13.3.3 (Compliance with all applicable laws and maintenance of the premises in a good, clean and sanitary condition)
- Clause 13.7.7 (Maintenance of premises and compliance with lease, municipal, and statutory requirements)
- **Clause 23 (Operations Manual)** – which confirms that all policies, procedures, and updates issued under the Operations Manual are binding on the Franchisee.
- **Clause 9 and Clause 13.15 (Records, Reporting, and Inspections)** – relating to record keeping, access to records, and reporting obligations, including those relevant to POPIA compliance.
- **Clause 32 (Deficiency Correction)** – providing the mechanism for addressing deficiencies identified during housekeeping inspections or evaluations.
- **Clause 33 (Termination by the Franchisor)** – which permits termination for repeated or material non-compliance, including failure to correct housekeeping or operational deficiencies.
- **Clause 38 (Statute – Consumer Protection Act)** – requiring that standards, inspections, and corrective measures be reasonable, lawful, and proportionate.

This policy therefore constitutes an enforceable operational standard under the Franchise Agreement. Where any inconsistency arises between this policy and the Franchise Agreement, the provisions of the Franchise Agreement shall prevail.

12. POLICY REVIEW

This policy will be reviewed periodically to ensure continued alignment with legislation, the Franchise Agreement, operational requirements, and best practices.

Approved by: Martin’s Funerals Franchising (Pty) Ltd
Applies to: All Franchisees
Document Classification: Franchise Operations Manual

HOUSEKEEPING INSPECTION PROCEDURE (BEST PRACTICE)

A. PURPOSE

This procedure standardises housekeeping inspections across the Franchise System and gives operational effect to Clauses 13, 23, 32, and 33 of the Franchise Agreement.

B. INSPECTION AUTHORITY

Housekeeping inspections may be conducted by:

- The Regional Manager
- Any duly authorised representative of the Franchisor

Inspections may be **scheduled or unannounced**, in accordance with Clause 13.9 of the Franchise Agreement.

C. INSPECTION FREQUENCY

At least **one formal inspection per calendar year**
Additional inspections may be conducted where deficiencies, complaints, or risks are identified

D. INSPECTION PROCESS

Opening Discussion

The purpose, scope, and method of the inspection are explained to the Franchisee or authorised representative.

Physical Inspection

Assessment of:

- Cleanliness, order, and professional appearance
- Health and safety compliance (OHSA)
- Secure storage of records and confidential information (POPIA)
- Maintenance of premises and equipment

Records Review

Review of administrative records, filing systems, and compliance documentation relevant to housekeeping standards.

Completion of Housekeeping Evaluation Form

Findings are recorded objectively and consistently.

Closing Feedback

Preliminary findings and required corrective actions are discussed.

E. SCORING AND FINDINGS

Findings will be categorised as:

- Compliant
- Minor Deficiency
- Major Deficiency
- Major deficiencies may trigger the **Deficiency Correction Procedure** under Clause 32.

F. CORRECTIVE ACTION AND FOLLOW-UP

A signed copy of the evaluation form is issued to the Franchisee
Written follow-up communication confirms:

- Required actions
- Deadlines
- Date of any follow-up inspection

Failure to remedy deficiencies may result in escalation in terms of Clause 32 and Clause 33.

SCHEDULE: FRANCHISEE ACKNOWLEDGEMENT

I, the undersigned Franchisee, acknowledge that:

- I have read and understood the Office Housekeeping Policy and Inspection Procedure
- I understand that this policy forms part of the Franchise Operations Manual

- I acknowledge that compliance is mandatory and enforceable under the Franchise Agreement

Franchisee Name: ______________________________
Franchise Entity: _____________________________
Signature: ___________________________________
Date: ____

Document Status: Enforceable Operations Manual Policy
Linked Agreement Clauses: 13, 23, 32, 33, 38

FRANCHISE ADVISORY COMMITTEE BRIEFING NOTE

Office Housekeeping Policy – Enforcement Logic and Governance Rationale

1. PURPOSE OF THIS BRIEFING

This briefing note is provided to the Franchise Advisory Committee (FAC) to explain the rationale, structure, and enforcement logic of the Office Housekeeping Policy and its associated Inspection Procedure.

The intention is to ensure transparency, consistency, and fairness in the application of housekeeping standards across the Franchise System, while protecting the collective interests of franchisees, the Franchisor, and the Martin's Funerals brand.

2. WHY HOUSEKEEPING IS ENFORCEABLE

Office housekeeping is not cosmetic or discretionary. It directly affects:

- Compliance with South African legislation (OHSA, POPIA, CPA)
- Professional reputation and public trust
- Operational efficiency and risk management
- The goodwill and intellectual property of the Franchise System

Accordingly, housekeeping standards are treated as **core operational obligations**, not optional guidelines.

3. CONTRACTUAL FOUNDATION

The enforcement of the Office Housekeeping Policy is grounded in the Franchise Agreement, specifically:

- **Clause 13** – Franchisee obligations, including lawful operation and maintenance of premises
- **Clause 23** – Binding authority of the Operations Manual and all policies issued under it
- **Clause 32** – Deficiency Correction procedure
- **Clause 33** – Termination rights for material or repeated non-compliance
- **Clause 38** – CPA requirement that standards and enforcement be reasonable and proportionate

This ensures that enforcement is contractually valid and legally defensible.

4. ENFORCEMENT PHILOSOPHY

The enforcement approach is based on the following principles:

- **Consistency** – All franchisees are assessed against the same standards
- **Objectivity** – Findings are recorded using a standard evaluation form
- **Fair Process** – Franchisees are informed of deficiencies and given an opportunity to correct them
- **Proportionality** – Escalation is linked to the severity and repetition of deficiencies
- **Transparency** – Inspection outcomes and required actions are documented in writing

The objective is correction and improvement, not punishment.

5. ESCALATION LOGIC (SIMPLIFIED)

Inspection Conducted

Scheduled or unannounced inspection in terms of Clause 13.9.

Findings Issued

Deficiencies classified as minor or major.

Correction Period

Franchisee given reasonable time to address deficiencies (Clause 32).

Follow-Up Inspection

Verification of corrective action.

Escalation (If Required)

Persistent or uncorrected deficiencies may lead to:

Formal breach notice

Management intervention

Termination in serious cases (Clause 33)

6. ROLE OF THE FRANCHISE ADVISORY COMMITTEE

The FAC plays an important advisory and oversight role by:

- Providing input on the reasonableness of standards
- Identifying systemic or recurring issues across the network
- Assisting with communication and understanding among franchisees
- Supporting continuous improvement of policies and procedures

The FAC does **not** adjudicate individual inspections, but acts as a governance and advisory body to support fairness and consistency.

7. PROTECTION OF FRANCHISEES

This framework protects franchisees by:

- Ensuring predictable and uniform enforcement
- Preventing arbitrary or ad hoc inspections
- Aligning enforcement with CPA fairness requirements
- Providing documented opportunities to correct issues before escalation

8. CONCLUSION

The Office Housekeeping Policy and Inspection Procedure are designed to safeguard the long-term sustainability of the Franchise System. Consistent enforcement protects compliant franchisees, strengthens the brand, and reduces regulatory and reputational risk for the entire network.

The Franchisor remains committed to working collaboratively with the FAC and franchisees to ensure that standards are applied fairly, reasonably, and in good faith.

Prepared for: Franchise Advisory Committee
Policy Area: Operations & Compliance
Status: Governance Briefing Note

STORAGE AND REMOVAL FEES – CPA-ALIGNED GUIDELINE (SOUTH AFRICA)

1. Purpose and Legal Context

A storage and/or removal fee is a charge levied when a deceased is removed from one of our mortuaries without the funeral service being completed by us.

This guideline is aligned with:

- The **Consumer Protection Act, 68 of 2008 (CPA)**
- **NFDA guidelines and industry norms**

Principles of fairness, transparency, and reasonableness, which are essential in the funeral services environment.

2. Circumstances Under Which Storage / Removal Fees May Apply

A storage and/or removal fee **may only be charged** where services were rendered and **reasonable costs were actually incurred**, including but not limited to:

- Where you performed the removal and/or storage of the deceased, and the family subsequently appoints another undertaker;
- Where another undertaker performed removal and/or storage, and the deceased is later transferred to your care;
- Where another **Martin's Funerals franchise** removes a deceased from your mortuary, in which case all reasonable and verifiable expenses incurred may be payable by the removing party.

All charges must comply with **Section 41 (fair and honest dealing)** and **Section 48 (fair, just and reasonable terms)** of the CPA.

3. Disclosure and Transparency

In line with **Sections 22 and 23 of the CPA**, all fees must be:

- Clearly disclosed to the customer in plain language;
- Communicated before or at the time the service is rendered;
- Capable of being explained and justified if questioned.

4. Cancellation Fees and Deterrent Notices

Any notice referring to a *cancellation fee (as per NFDA guidelines for non-members)* must be treated primarily as a **deterrent**, not as an automatic penalty.

Storage, removal, or cancellation fees may only be charged where services were actually rendered and reasonable, demonstrable costs were incurred. Any such fee must be disclosed in advance in plain language, must not exceed the actual costs incurred, and must comply with sections 17, 41, and 48 of the Consumer Protection Act, 68 of 2008.

In accordance with **Section 17 of the CPA**, a cancellation fee:

- Must be **reasonable**;
- May not exceed the actual costs incurred;
- Must reflect work already performed or expenses already paid.

A cancellation fee may only be charged if:

- You can demonstrate actual financial loss;
- You are in possession of a **signed agreement**; and
- You can produce **receipts or proof of expenses**.

5. Conditions Required Before Charging a Cancellation Fee

It is recommended that a cancellation fee be considered **only** where the customer has:

- Clearly and unequivocally provided **signed authorisation** for the collection of the deceased and for the funeral service to proceed; and
- Signed all required documentation at your office, confirming acceptance of the service and associated costs.

Absent written consent, charging a cancellation fee may be considered **unfair or unenforceable** under the CPA.

6. Exercise of Discretion and Reasonableness

Before charging any storage, removal, or cancellation fee, carefully consider:

- Whether the charge is **fair, reasonable, and proportionate**;

- Whether it reflects actual costs incurred;
- Whether enforcing the charge aligns with good faith and ethical business practice.

In many cases, it may be more appropriate—and commercially sensible—to allow the family to remove their loved one **without charge**, rather than enforcing daily storage fees over an extended period.

7. Industry Alignment
These guidelines are issued in accordance with **NFDA recommendations** and do not conflict with the **OBO form**, which governs inter-franchise arrangements.

8. Charges Applicable to NFDA Members
The following services may be charged at NFDA member rates:

- Day removal (office hours)
- After-hours removal
- Death registration
- Storage
- Transport

All prices are VAT inclusive and must reflect actual services rendered.

9. Recommended Tariffs for Non-Members
The following tariffs are recommended for non-members:

- Day removal (office hours)
- After-hours removal
- Death registration
- Storage
- Transport
- Cancellation fee, **limited to reasonable, provable costs incurred**, and **only where a signed agreement exists**

All prices are VAT inclusive.

10. Client Protection and Dispute Avoidance
In keeping with the CPA's emphasis on consumer dignity and fairness, customers should **not be drawn into disputes** between undertakers, franchises, or service providers wherever reasonably possible.

11. Business and Reputational Consideration
At all times, weigh:

- The **actual cost to your business**;
- Your ability to justify the charge under the CPA;
- The potential reputational impact on Martin's Funerals and the industry as a whole.

Fair treatment of consumers is not only a legal obligation, but a cornerstone of sustainable business practice.

CUSTOMER CARE, ETHICS, AND BEREAVEMENT SUPPORT POLICY

(Aligned with South African FSRA, Department of Health, Labour, and Home Affairs Requirements)

1. CUSTOMER CARE AND PROFESSIONAL SERVICE STANDARDS

The customer is central to all operations at Martin's Funerals, in accordance with the **Financial Sector Regulation Act (FSRA)** principles of fair treatment and transparency.

All customers must be treated with dignity, compassion, respect, and empathy at all times.

Customers must be kept fully informed of all actions taken on their behalf, including procedures, timelines, costs, and statutory requirements.

Customers must actively participate in all funeral and burial/cremation arrangements, with informed consent obtained for all services rendered.

Service delivery at Martin's Funerals extends beyond financial transactions and continues through after-service care and support.

Where appropriate and requested, services may be rendered at homes, hospitals, mortuaries, or other lawful locations, in compliance with;

Department of Health regulations.

Customers must feel welcome to return to Martin's Funerals at any time for assistance, support, or guidance, whether related to funeral services or bereavement care.

Customers must never be exposed to internal operational, staffing, financial, or personal issues.

Discussions relating to internal management, franchise arrangements, or business disputes are strictly prohibited in the presence of customers.

Management is responsible for ensuring all staff understand, uphold, and apply these standards consistently.

2. ETHICAL CONDUCT AND REGULATORY COMPLIANCE

Offering or accepting payment, gifts, or inducements to secure the transfer, removal, or admission of a deceased person is strictly prohibited and constitutes **bribery and corruption** under South African law.

The solicitation or exchange of deceased persons ("trading in the deceased") is unethical, unlawful, and damaging to public trust.

All staff must comply with:

- The **Financial Sector Regulation Act (FSRA)**
- The **Prevention and Combating of Corrupt Activities Act**
- Applicable **Labour legislation**

Any unethical conduct that increases service costs undermines fair customer treatment and is strictly forbidden.

Products and services must be represented accurately. Substitution of coffins, caskets, or services without informed consent is prohibited.

Charges must accurately reflect the time and nature of services rendered. After-hours fees may only be charged where applicable.

Statutory documentation fees must reflect actual administrative costs only and may not be inflated.

No fee may be charged for the **DHA-1663 (Notice of Death/Stillbirth)** issued free of charge by a Government Mortuary.

No fee may be charged for **Death Certificates** issued free of charge by the Department of Home Affairs.

Storage and removal fees charged to other registered funeral service providers must be reasonable and non-exploitative.

Professional respect between funeral service providers must be maintained at all times.

Defamation or slander of competitors is prohibited.

All employees must be remunerated in accordance with **South African labour law**, sectoral determinations, and minimum wage legislation.

Facilities, vehicles, equipment, and hygiene standards must comply with **Department of Health regulations**, municipal by-laws, and occupational health and safety requirements.

Tax compliance is mandatory. Any form of tax evasion is a serious offence and grounds for disciplinary action and possible criminal prosecution.

3. BEREAVEMENT, GRIEF, AND PROFESSIONAL BOUNDARIES

Grief is recognised as a natural emotional response to loss, affecting individuals physically, emotionally, and psychologically.

Mourning is acknowledged as a long-term process that varies between individuals.

Staff may experience emotional strain when supporting bereaved families and must maintain professional boundaries.

Grieving individuals may display emotional, physical, cognitive, and behavioural responses; these must be approached with patience and understanding.

There is no standard or prescribed grieving process. Cultural, religious, and personal differences must be respected.

Staff must not attempt to "fix" grief or minimise loss.

The role of staff is to provide guidance, information, and compassionate presence — not counselling unless appropriately qualified.

Emotional over-involvement is discouraged to protect both staff wellbeing and professional objectivity.

Expressions of anger or blame must be handled calmly and without defensiveness.

Staff must guide families through procedures while encouraging their own coping mechanisms.

Grieving timelines vary and must not be rushed.

Family conflict must be managed neutrally; staff must not take sides.
Where conflict escalates, staff may respectfully withdraw until resolution is reached.

4. SUPPORTIVE PRACTICES (NON-CLINICAL)
Martin's Funerals recognises the importance of compassionate listening as part of bereavement support.
Emotional expression must never be discouraged.
Families may be encouraged to personalise obituaries and memorial content in accordance with cultural or religious preference.
Written tributes may be placed with the deceased where culturally appropriate and lawful.
Journaling and creative expression may be suggested as coping mechanisms.
Families should be gently advised against reliance on alcohol or stimulants during grief.
Maintaining routine, nutrition, and physical activity is encouraged.
Optional memorial photographs may be offered with informed consent and handled in line with **POPIA** and privacy requirements.

5. COMMUNICATION AND INTERPERSONAL CONDUCT
All staff must:

- Maintain professional posture and respectful body language
- Speak clearly, calmly, and empathetically
- Listen without interruption
- Allow silence where appropriate
- Use open-ended, non-confrontational questions
- Reflect understanding without judgement
- Avoid note-taking while the customer is speaking unless necessary and explained

Staff must avoid:

- "Why" questions that may appear accusatory
- Giving personal advice
- Religious or philosophical lecturing unless requested
- Rushing discussions
- Disclosing personal grief experiences excessively

6. UNDERSTANDING DIVERSE EXPRESSIONS OF GRIEF
Martin's Funerals recognises that grief expression varies across individuals, cultures, and genders.

Silence, stoicism, or limited emotional expression must never be interpreted as indifference or lack of care.

7. GOVERNANCE AND ENFORCEMENT
Non-compliance with this policy may result in disciplinary action.
Serious breaches may be reported to relevant authorities.
Ongoing training is mandatory to ensure compliance with FSRA, Department of Health, Labour, and Home Affairs regulations.

Policy Statement
Martin's Funerals is committed to **ethical service delivery, lawful operations, compassionate care, and regulatory compliance**, ensuring the dignity of the deceased and the protection of every family we serve.

TELEPHONE ETIQUETTE AND PROFESSIONAL STANDARDS
Martin's Funerals

1. Answering the Telephone

The telephone must be answered **within three rings** at all times.

Standard greeting format

The correct way to answer the telephone is:

- *"Good morning, Martin's Funerals. Peter speaking."*
- *"Martin's Funerals, goeie middag."*
- *"Martin's Funerals, dumela."*

Staff should use **English and one or two other languages commonly spoken in the area**, in keeping with South Africa's multilingual environment.

The language last used by the staff member indicates the language in which they are most comfortable assisting the caller.
Speak **slowly, clearly, cheerfully, and professionally** at all times.
Listen carefully while the caller explains their request. Once you understand who they wish to speak to or what they require, **do not immediately transfer the call**.

- Politely advise the caller before transferring the call, for example: *"Please hold while I put you through."*
  Pause briefly in case the caller wishes to add further information.
- **Never interrupt** the caller, and do not interrupt yourself while speaking.
- Use the caller's **name** during the conversation whenever possible.
- Reassure the caller if there will be any delay in connecting the call.
- Always **thank the caller** before ending the call.
- Replace the receiver **gently and respectfully**.

2. Taking Messages

If the person requested is unavailable, **always offer to take a message**.
Messages must be written **clearly and accurately** on an official duplicate message pad — never on loose or scrap paper.
Ensure the message reaches the intended staff member **immediately**.
Be familiar with individual staff members' preferences regarding where messages should be placed.
Always confirm and record:

- The caller's **name**
- The **contact number**
- The **time and date** of the call

Mark messages **urgent** where appropriate.
All messages must be **complete, detailed, and legible**.

2.1 Essential Information for Removal of a Deceased

When taking a message relating to the removal of a deceased person, it is critical to obtain the following details accurately:

Names

- Full name of the informant
- Full name of the deceased

Addresses

- Address of the informant
- Exact address from which the deceased must be collected

Contact Numbers

- Informant's telephone number
- An alternative family contact number, where possible, as a precaution

Detailed Directions

- Street names
- Landmarks

Any additional instructions to ensure the driver reaches the family **quickly and without confusion**

Do not hesitate to ask the caller to repeat details to ensure absolute accuracy.

3. Information and Pricing
Prices and detailed service information are not given over the telephone.
Martin's Funerals does not exploit bereaved families. We believe our service represents the **highest standard of care and professionalism**.
Our pricing may at times be higher or lower than that of other service providers; however, **our service quality is never compromised**.
First impressions are lasting impressions. **Every call matters.**

4. Professional Conduct and Emotional Awareness
If you are not feeling emotionally or physically well, request assistance at the switchboard until you are able to perform effectively.
Always remain **calm and composed**.
Do not raise your voice.
Do not take difficult interactions personally.
Learn to let go of upsetting moments.
Be prepared for both positive and challenging situations.
When frustrated, **pause and take deep breaths**.

5. Dealing with Callers
Be mentally and emotionally prepared for your role. You play a vital part in the successful operation of Martin's Funerals.
Existing clients must be handled with **particular care and sensitivity**.
Where necessary, route calls to:

- The arrangement officer
- The franchisee
- The manager

Maintain a positive and confident attitude.
Remember: you are trained, capable, and knowledgeable.
Know where to find telephone numbers and information quickly.
Understand how to use directories and enquiry services efficiently.
Be familiar with:

- The organisation's structure
- Staff members
- Products and services

Speak clearly and pleasantly.
Listen carefully and respond thoughtfully.
Ensure messages are taken accurately and delivered promptly.
Never guess or offer advice beyond your role.
Sales calls should be handled politely:

- Explain that Martin's Funerals uses accredited suppliers
- Request proposals via email or fax, marked for the franchisee or manager

Do not engage in extended conversations with cold callers.
Remain calm during busy periods.
Be organised, punctual, and reliable.

6. Voice and Vocal Presentation
Clear, confident speech enhances professionalism and trust.
Your voice represents Martin's Funerals.
Speak clearly, audibly, and slightly slower than normal conversation.
Avoid physical tension; it negatively affects your voice.
Breathe deeply to maintain control and calm.
Maintain a relaxed pitch and tone.
Open your mouth fully to articulate clearly.
Pause when needed — clarity is more important than speed.

Do not eat, drink, smoke, or read while on telephone duty.
Smile while speaking — it can be heard.
Avoid filler sounds such as “um” or “uh”.
Speak with warmth, energy, and compassion.
Be patient — listening is essential.
Do not jump to conclusions.
Take accurate notes and confirm spellings.
Be positive and solution-focused.
If unsure how to assist, **transfer the call to someone who can**, and always state who that person is.
Ask, do not instruct.

Example:

- *“May I ask our manager, Jan Smit, to assist you?”*
- Keep all commitments. If you promise a return call, ensure it happens.

7. Handling Telephone Complaints

Remain polite, calm, and patient.
Listen carefully without interruption.
Take detailed notes.
Make it clear you are recording the complaint.
Obtain all relevant information:

- Dates
- Times
- Names
- Locations

Do not mirror anger or aggression.
Acknowledge the caller’s feelings with empathy.
Do not admit fault or offer personal opinions.
Assure the caller that the matter will be investigated and handled by a responsible person.
Route the complaint to the appropriate authority — usually the franchisee or manager.
Do not react to threats or inappropriate language.
The caller should end the call.
Communicate in the caller’s preferred language where possible; otherwise, confirm that English is understood.
Respect confidentiality and discretion at all times.
Reception staff must never act as messengers of gossip or speculation.

8. Legal and Ethical Considerations (South Africa)

All personal information obtained during telephone calls must be handled in compliance with the **Protection of Personal Information Act (POPIA)**.
Confidential information may only be shared with authorised personnel.
Professional conduct must align with the **Consumer Protection Act**, ensuring fairness, transparency, and dignity at all times.

Martin’s Funerals is built on compassion, professionalism, and trust. Every call is an opportunity to demonstrate our values.

TELEPHONE QUICK-REFERENCE GUIDE
Martin's Funerals

ANSWERING THE PHONE
✓ Answer within **3 rings**
✓ Smile before speaking
✓ Speak **clearly, calmly, professionally**

Greeting format:
"Good morning, Martin's Funerals. *Name* speaking." (Use English + local language where appropriate)

DURING THE CALL
✓ Listen carefully — **do not interrupt**
✓ Use the caller's **name**
✓ Speak slowly and clearly
✓ Stay calm and compassionate
✓ Never guess or give advice outside your role
✓ **Do not give prices or service details**

Before transferring:
"Please hold while I put you through."
Pause briefly before transferring.

TAKING MESSAGES
✓ Always offer to take a message
✓ Use the **official message pad**
✓ Write clearly and completely
✓ Deliver messages **immediately**

Always record:

- Caller's **name**
- **Contact number**
- **Date & time**
- Message details
- Mark **URGENT** if applicable

REMOVAL OF A DECEASED – MUST HAVE DETAILS
✓ Informant's **full name**
✓ Deceased's **full name**
✓ **Exact address** for collection
✓ **Contact numbers** (at least one backup)
✓ **Clear directions & landmarks**

👉 Ask callers to repeat details if needed — **accuracy is critical**

PROFESSIONAL CONDUCT
✓ Stay calm — never raise your voice
✓ Do not take calls personally
✓ If unwell or overwhelmed, ask for assistance
✓ Be organised, punctual, and reliable
✓ Confidentiality is essential (POPIA compliant)

SALES & COLD CALLS
✓ Be polite but brief

✓ Explain we use accredited suppliers
✓ Request proposals by **email/fax** for the manager
✓ Do not engage in long conversations

VOICE & TONE CHECK

✓ Speak slightly slower than normal
✓ Avoid “um”, “uh”, “hmmm”
✓ Do not eat, drink, or multitask
✓ Smile — it can be heard
✓ Sound caring and professional

WHEN YOU DON’T KNOW

✓ Never guess
✓ Say: “I’m going to put you through to someone who can help you.”
✓ Always tell the caller **who** will assist them

HANDLING COMPLAINTS

✓ Stay calm and polite
✓ Listen fully
✓ Take detailed notes
✓ Do **not** admit fault
✓ Reassure the caller the matter will be investigated
✓ Route to the **manager or franchisee**
✓ Let the caller end the call

REMEMBER

✓ First impressions last
✓ Every call represents Martin’s Funerals
✓ Compassion, respect, and professionalism come first

RECEPTION

THE RECEPTION AREA

The reception area creates the first and most lasting impression of the franchisee and of Martin's Funerals as a whole. It sets the tone for professionalism, compassion, safety, and trust.
The reception area is the primary point at which customers and visitors are received.
It serves as a comfortable waiting area for customers.
It functions as an information centre for services, procedures, and general enquiries.
Entry of visitors, customers, and unauthorised persons (such as hawkers or solicitors) is regulated from reception.
The reception area fulfils an important security, access-control, and hostess role.
The reception area must be painted and maintained in the official Martin's Funerals colours: Budding Lilac and Crocus Bloom.
All required Martin's Funerals notices and posters must be clearly displayed, including:

- Insurance certificates
- Certificates of competency
- Applicable funeral industry association memberships
- Any legally required notices in terms of South African regulations

Approved information brochures must be neatly displayed and readily available to customers.
Furniture, carpets, curtains, and finishes must be in excellent condition at all times.
Lighting must be adequate, warm, and appropriate to create a calm and welcoming environment.
The reception area must be people-friendly and accessible, including:

- Safe walkways with no hidden steps or loose wiring
- Consideration for elderly, disabled, or emotionally distressed clients
- Availability of refreshments where appropriate

The reception area must always be clean, tidy, and well presented.

DUTIES OF THE RECEPTIONIST

The receptionist is often the first point of personal contact and therefore represents Martin's Funerals directly.
Receive customers, visitors with appointments, and genuine walk-in customers promptly and courteously, and route them to the appropriate staff member as soon as possible.
Maintain awareness of staff members' whereabouts and availability. Staff should assist by keeping reception informed of their movements.
Always be aware of who is on the premises, why they are there, and where they are located.
Route visitors correctly:

- If the visitor is expected, phone the relevant staff member to advise them of the visitor's arrival.
- Escort the visitor to the office or arrange for another staff member to do so.

Communicate clearly with the customer. Never make phone calls or arrangements as if the customer is not present. For example: "Mr Smit will be with you in approximately five minutes. Please take a seat."
Always offer refreshments. Where applicable, request the refreshment assistant to take the order. Inform the staff member being visited that refreshments have been ordered. Customers should not carry cups and saucers into meetings unless appropriate.
If an appointment is expected to be lengthy, refreshments may be served once the customer is seated in the office.
Acknowledge every person immediately upon entering the reception area, even if you are on the phone or assisting someone else. A smile, nod, or brief gesture is sufficient.

Nobody likes to be ignored.

If you are unable to assist immediately, say politely: "Good morning, I will be with you shortly. Please take a seat," and ensure this is done with warmth and a smile.
Demonstrate that you take each person seriously and are willing to assist.
Remain calm and composed at all times. If reception becomes busy, request assistance from another staff member rather than becoming flustered.

EMOTIONAL STRESS AND PROFESSIONALISM

Receptionists are expected to maintain a professional and composed manner, even under pressure.
While the role can be emotionally demanding, particularly in a funeral environment, professionalism requires that personal discomfort or illness is not displayed to customers.

If you are genuinely unwell or unable to cope, arrangements must be made for a competent stand-in. A visibly distressed or ill receptionist does not serve the interests of the customer or Martin's Funerals.

ATTITUDE TOWARDS CUSTOMERS

Courtesy begins with considering the customer's perspective.
Customers may be anxious, distressed, or uncomfortable. While staff may be accustomed to a funeral environment, customers are not.
Always be compassionate, patient, and helpful.
Be clear about timeframes: "Mr Smit will be with you in five minutes."
Be clear about locations and directions, using simple and familiar reference points.
Be clear about people and roles: "Mr Twala, our Assistant Manager, will assist you shortly."
If a customer is waiting, provide reassurance at intervals that they have not been forgotten.
Never call or shout to staff across the reception area.

VISITORS WITHOUT APPOINTMENTS

Customers arriving to make funeral arrangements are always assisted without requiring an appointment.
Challenges may arise with sales representatives, hawkers, or individuals with grievances.
Greet everyone politely and professionally.
Establish who they are and the purpose of their visit.
If the matter can be handled at reception, do so and report it to the franchisee or manager when appropriate.
Avoid allowing salespeople or hawkers to wait in reception for extended periods. Where appropriate, request that they make an appointment and return at a later time.
If a person refuses to leave, contact the franchisee or manager and allow them to address the situation.
Do not allow yourself to be intimidated or pressured.
If a person becomes abusive or violent, follow the approved emergency and safety procedures, which may include activating a silent alarm or contacting management or the South African Police Service (SAPS).

SAFETY AND SECURITY

Reception is the first line of security. Vigilance is essential at all times.
Do not automatically unlock security gates or doors without confirming who is requesting access.
Ensure that entrances are visible and free of blind spots.
Keep petty cash, handbags, and mobile phones locked away and out of sight.
Do not allow staff or customers behind the reception desk.
Do not disclose or reveal where money or valuables are stored.
Any cash amount exceeding R500 must be secured immediately in the safe or processed as a sub-deposit in accordance with company policy and South African financial controls.
Visitors must not move around the premises without appropriate escort.
Visitors using restroom facilities must be directed there and back without access to restricted areas.
Remain alert to suspicious behaviour at all times.

GOOD LISTENING HABITS

Maintain appropriate eye contact.
Be conscious of posture, facial expression, and tone of voice.
Allow the other person to speak fully before responding.
Think before you speak and plan your response.
Ask for clarification when necessary.
Acknowledge what the person has said and show understanding.
Use the person's name appropriately.
Identify the main concern or issue.
Observe body language and non-verbal cues.
Respond sensitively to emotions such as anxiety, anger, or grief.
Use clear, simple language and avoid jargon or technical terms unfamiliar to clients.

CUSTOMER SERVICE

Service reflects the relationship between Martin's Funerals and its customers. Every interaction shapes the customer's perception of the organisation. The success of Martin's Funerals is built on consistently high standards of service delivery.

Regularly ask yourself:

Do I value customers?
Do I strive to improve my work?
Do I create a positive first impression?
Do I take pride in myself and my work?
Do I maintain a positive attitude toward my work, employer, and colleagues?
Do I handle challenges and complaints constructively?
Do I treat all customers with respect and fairness?
Do I understand company policies, products, and procedures?

Am I:
Calm and polite?
Committed and reliable?
Professional in appearance and conduct?
Compassionate and helpful?
A team player within Martin's Funerals?
Prepared for my duties each day?
A positive representative of the organisation?

MEETING PEOPLE
Verbal and non-verbal behaviour reflect professionalism and social skills.
Use appropriate handshakes and maintain good eye contact.
Handshakes should be firm but not overpowering.
Ensure correct hand placement and comfortable pressure.
The host or senior person usually initiates the handshake.
Be mindful of cultural differences common in South Africa.
Maintain appropriate personal space and volume when speaking.
Keep introductions simple and respectful.

LEGAL AND REGULATORY COMPLIANCE (SOUTH AFRICA)
All reception operations must comply with applicable South African legislation. Compliance is not optional and forms part of the professional duty of care owed to customers, staff, and the public.

1. Occupational Health and Safety Act, 85 of 1993 (OHS Act)
Martin's Funerals is legally required to provide and maintain a working environment that is safe and without risk to the health of employees and visitors.
The reception area must be:

- Free from hazards such as loose cables, slippery floors, obstructed walkways, or unsafe stairs.
- Adequately lit and ventilated.
- Arranged to minimise physical strain for reception staff.

Reception staff must immediately report unsafe conditions, incidents, or near-misses to management.
Emergency procedures, including evacuation routes, panic buttons, and emergency contact numbers, must be known and accessible to reception staff.

2. Basic Conditions of Employment Act, 75 of 1997 (BCEA)
Reception staff must work within agreed working hours and receive appropriate breaks.
Illness or incapacity must be reported in accordance with company policy and the BCEA.
No staff member may be expected to work in conditions that contravene minimum employment standards.

3. Labour Relations Act, 66 of 1995 (LRA)
All interactions with staff must be fair, respectful, and consistent.
Reception staff must not be subjected to harassment, intimidation, or unfair treatment by customers, visitors, or colleagues.
Incidents involving aggressive or abusive behaviour must be escalated to management and recorded where required.

4. Protection of Personal Information Act, 4 of 2013 (POPIA)
Reception staff routinely handle sensitive personal information, including names, contact details, funeral arrangements, and financial information.

All personal information must be:

- Collected lawfully and for a specific purpose.
- Treated as confidential.
- Protected against unauthorised access, disclosure, or loss.

Do not discuss customer information where it can be overheard.
Do not leave documents, registers, or computer screens visible to unauthorised persons.
Verify identity before disclosing any information to third parties.
Dispose of documents containing personal information securely, in accordance with company policy.

5. Consumer Protection Act, 68 of 2008 (CPA)
Customers have the right to fair, honest, and transparent service.
Information provided at reception must be accurate, clear, and not misleading.
Customers must be treated with dignity, fairness, and respect at all times.
Complaints must be handled professionally and escalated in accordance with company procedures.

6. Funeral Industry and Municipal Compliance
All displayed certificates, licences, and association memberships must be current and valid.
Reception staff must not make representations or promises that fall outside approved company offerings or legal permissions.
Any inspections or visits by regulatory authorities must be reported immediately to management.

Your attitude towards life determines life's attitude towards you.
To change your attitude, change the way you think about yourself, your work, and the people you serve.

IN GRAY AREAS / OUTSIDE FRANCHISE AREAS (SOUTH AFRICA)
CANVASSING, REMOVALS AND SERVICES

1. Purpose and Importance
This Policy regulates canvassing, removals, and services conducted outside formally allocated Franchise Areas and is issued in direct implementation of **Clause 11 (Area Rights)**, **Clause 15 (Part Performance Outside the Area)**, and **Clause 16 (Business Outside Area)** of the Franchise Agreement. This Policy must be read together with, and is subordinate to, the Franchise Agreement. Strict compliance is mandatory to protect the integrity of the franchise network, customer confidence, and regulatory compliance.

2. Definitions
Gray Areas / Outside Areas refer to geographic areas not contractually allocated to any Franchisee at a given time.
Franchise Area means a geographic area contractually allocated to a specific Franchisee in terms of the Franchise Agreement.
Franchisor means Martin's Funerals (or its nominated representatives).

3. General Rules Governing Gray / Outside Areas
All Gray or Outside Areas are governed by the following rules:

3.1 Compliance Requirement
In accordance with **Clauses 11.1 and 11.2** of the Franchise Agreement, no canvassing, removals, or services may be conducted in Gray or Outside Areas unless strictly permitted under:

- Clauses 15 and 16 of the Franchise Agreement;
- This Policy; and
- All applicable company policies and procedures.

3.2 First Right of Refusal
Consistent with **Clause 11.3** of the Franchise Agreement, where a Gray or Outside Area is offered for sale, reallocation, or subdivision due to under-exploitation or restructuring, existing Franchisees or outlets shall enjoy a first right of refusal (first buying option), subject always to the Franchisor's discretion and approval.

3.3 Transfer of Books and Goodwill
Upon the sale or allocation of a Gray or Outside Area:

- All insurance member books;
- All lay-by member books;
- All customer lists; and
- Any other related goodwill or interests

must be handed over promptly to the new Franchisee or to the Franchisor, as applicable, in accordance with the Franchise Agreement.

3.4 Prohibition on Non-Compliant Activity
Any party unwilling or unable to comply fully with company rules, policies, and franchise obligations must refrain entirely from operating in Gray or Outside Areas.

4. Franchise Areas – Exclusivity and Exceptions
In accordance with **Clauses 11.1 and 11.2**, a Franchise Area is exclusive to the Franchisee to whom it has been contractually allocated. No other Franchisee may canvass, solicit, remove, or render services within that area, save as expressly permitted under **Clauses 15.3 and 15.4** of the Franchise Agreement.

4.1 Existing Members
Where the Franchisee can provide verifiable proof that the deceased or customer is:

- An existing lay-by member; or
- An existing insurance member of that Franchisee.

4.2 Customer Instruction and Franchisee Consent
Where the Franchisee acts strictly in accordance with **Clause 15.4**, namely:

- The express written wish of the Customer that the Services be delivered by that Franchisee outside its Area;
- Prior notification to the Franchisee responsible for the relevant area;
- Cooperation with, and reasonable involvement of, the affected Franchisee;

- Payment of the required commission where applicable; and
- Ongoing cooperation to protect the goodwill and reputation of the Franchisor and its Trademarks. Where the Franchisee has:
- Written instruction from the customer or the family;
- Informed the Franchisee responsible for the relevant area; and
- Obtained that Franchisee's prior consent to operate in the area.

5. Practical Example (Illustrative)

Scenario: You are the Franchisee for Krugersdorp. A family member calls from Northcliff requesting the removal of a deceased and assistance with funeral arrangements in Northcliff.
In this situation, the following procedure applies:

5.1 Customer Handling

Do not refer or send the family from one Martin's Funerals office to another.

5.2 Instructions

Take full and detailed instructions from the caller. Written confirmation by email or fax is strongly recommended.

5.3 Removal

Perform the removal of the deceased with the highest level of dignity, care, and respect, and immediately notify the Northcliff Franchisee.

5.4 Notification

Inform the Northcliff Franchisee:

- Of the family's instructions;
- That the removal has already taken place on their behalf; and
- That the deceased is currently in your mortuary facility.

5.5 Allocation of Responsibility

Clearly note that:

- The removal is your responsibility; and
- The funeral service is not, unless otherwise expressly agreed in writing.

5.6 Agreement Between Franchisees

You and the Northcliff Franchisee must agree on the following:

5.6.1 Transport

Whether:

- The Northcliff Franchisee will collect the deceased; or
- You will transport the deceased to Northcliff.

Where transport is provided by you, a mutually agreed fee shall apply, payable by the Northcliff Franchisee and recoverable from the family as part of the service fee.

5.6.2 Funeral Service

Whether:

- The Northcliff Franchisee will conduct the funeral service; or
- You will conduct the service on their behalf.

5.6.3 Finalisation of Arrangements

Given that the family resides in Northcliff, arrangements should ordinarily be finalised at the Northcliff office, unless otherwise agreed.

5.7 Service Standards

All services rendered must comply with the same high standards of quality, dignity, and professionalism applicable across the Martin's Funerals franchise network.

5.8 Family Communication

When performing a removal on behalf of another Franchisee, it is considered good practice to leave that Franchisee's full contact details with the family.

5.9 Disclosure to Family

The family must be clearly informed that:

- The service was rendered on behalf of the relevant Franchisee; and
- All further arrangements will be managed through that Franchisee.

5.10 Office Visits

Families may be advised that they are welcome to visit your offices if necessary; however, further action must await instruction from the family and the responsible Franchisee.

5.11 Ongoing Liaison

Continue making reasonable efforts to maintain contact with both the family and the relevant Franchisee to receive and implement further instructions.

6. MF-Files and O.B.O. (On Behalf Of) Instructions

In all applicable cases, both Franchisees must:

- Open an MF-file; and
- Complete an O.B.O. (On Behalf Of) instruction.

Exception: Where one Franchisee performs no removal, service, or administrative function whatsoever, that Franchisee is not required to open a file or issue an O.B.O.

7. Complaints and Investigations

Should Head Office receive a complaint of misconduct or breach relating to Gray or Outside Areas, the matter shall be dealt with in accordance with **Clauses 16.1 to 16.4** of the Franchise Agreement.

7.1 Immediate Action or objectively necessary

The Franchisor or its authorised representative may take immediate action or objectively necessary to protect affected Franchisees, customers, and the Franchise System.

7.2 Right to Be Heard

Both parties will be afforded a reasonable opportunity to be heard, either:

- In writing; or
- In person, where practicable, prior to a final determination, unless urgency dictates otherwise.

8. Authority of the Franchisor

The Franchisor and its representatives may act:

- Without prejudice to any rights; and
- Without prior notice to the party under investigation,

as permitted under the Franchise Agreement.

9. Access to Information

The Franchisor and its representatives shall have full access to all relevant:

- Documentation; and
- Facilities

necessary to conduct a fair and thorough investigation.

10. Finality of Outcome

Any decision, ruling, or determination made by the Franchisor or its nominated representative under this Policy shall, in accordance with **Clause 16.4** of the Franchise Agreement, be final and binding on all Franchisees, subject only to applicable law.

11. Costs of Investigation

All reasonable costs and expenses arising from an investigation shall be payable by the party found guilty of misconduct.

12. Investigation Fees
The investigation fee structure is as follows:

- Minimum fee: R3,500.00
- Maximum fee: R10,000.00

These limits may be exceeded where:
Additional costs can be substantiated; or
Legal proceedings arise.

13. Protection of Families
Family members and friends who are not part of the Martin's Funerals group shall, as far as reasonably possible, not be drawn into disputes or internal franchise matters.

14. Breach Classification and Disciplinary Consequences
This section gives operational effect to **Clauses 11, 15, and 16** of the Franchise Agreement and must be read subject thereto.

14.1 Minor Breaches
Minor breaches include, but are not limited to:

- Failure to notify the relevant Franchisee timeously after a lawful removal;
- Administrative failures relating to MF-files or O.B.O. instructions where no prejudice occurs;
- Poor communication or cooperation where no territorial rights are infringed.

Consequences may include:
Written warning;

- Mandatory corrective action;
- Additional training at the Franchisee's cost.

14.2 Serious Breaches
Serious breaches include, but are not limited to:

- Performing removals or services outside the Area without complying with Clause 15;
- Failure to inform or cooperate with the affected Franchisee;
- Retaining customer information, goodwill, or income relating to another Area;
- Repeated minor breaches.

Consequences may include:
Formal disciplinary action;

- Financial compensation determined in terms of **Clause 16.2**;
- Payment of investigation costs and fees;
- Suspension of the right to perform services outside the Area.

14.3 Material Breaches
Material breaches include, but are not limited to:

- Canvassing, soliciting, or marketing in another Franchisee's Area in breach of **Clauses 11.1 and 11.2**;
- Knowingly concluding contracts in another Area in breach of **Clauses 15 and 16**;
- Refusal to cede contracts as required under **Clause 16.1**;
- Repeated or deliberate serious breaches.

Consequences may include:

- Immediate enforcement action by the Franchisor;
- Mandatory cession of contracts and goodwill;
- Maximum compensation under **Clause 16.2**;
- Reduction of Franchise Area under **Clause 11.3**;
- Termination of the Franchise Agreement, where applicable.

Final Reminder

The Franchise Agreement remains fully applicable, enforceable, and paramount.

All Franchisees are required to comply strictly and in full with its terms, particularly in relation to Gray and Outside Areas. In the event of any inconsistency, the Franchise Agreement shall prevail.

ADMINISTRATION, FINANCE & HUMAN RESOURCES

Purpose

This section establishes consistent administrative, financial, and human resource standards across all Martin's Funerals franchises. It ensures legal compliance, financial integrity, fair labour practices, and professional workplace conduct, while supporting operational efficiency and compassionate service delivery.

Administrative Controls

Record Management

Each franchise must maintain organised, secure, and retrievable records, including:

- Client and case files;
- Statutory documentation and registers;
- Financial records and tax submissions;
- Employment records;
- Training and compliance records.

Records must be retained in accordance with South African legislative requirements and franchisor directives.

Financial Management and Controls

Accounting Responsibilities

The franchisee is solely responsible for:

- Maintaining accurate accounting records;
- Ensuring daily capture of income and expenditure;
- Retaining proof of all transactions;
- Preparing financial statements and management reports.

The Franchisor reserves the right to request financial information for compliance, audit, or support purposes.

SARS and Statutory Compliance

Each franchise must comply with all applicable South African Revenue Service (SARS) requirements, including:

- Income Tax registration and submissions;
- PAYE, UIF, and SDL registrations and payments;
- VAT registration where applicable;
- Accurate employee tax documentation.

Failure to comply with statutory obligations may constitute a material breach of the Franchise Agreement.

Petty Cash and Cash Handling

- Petty cash must be controlled through an approved voucher system;
- Cash balances must be reconciled regularly;
- Supporting documentation must accompany all cash transactions;
- Cash handling duties should be segregated where possible.

Human Resources Management

Employment Relationships

All employment practices must comply with:

- Labour Relations Act, 66 of 1995;
- Basic Conditions of Employment Act, 75 of 1997;
- Employment Equity Act, 55 of 1998;
- Occupational Health and Safety Act, 85 of 1993.

Contracts of employment must be in writing and clearly define duties, hours, and remuneration.

Recruitment and Training

Franchisees are responsible for:

- Recruiting suitable, trustworthy staff;

- Conducting background and reference checks where appropriate;
- Providing induction and ongoing training;
- Ensuring staff understand SOPs, ethics, and compliance requirements.

Training records must be retained.

Dress Code and Professional Appearance

All staff must:

- Present a neat, professional appearance;
- Wear approved Martin's Funerals attire where prescribed;
- Maintain personal hygiene appropriate to a professional funeral environment.

Dress code enforcement forms part of performance management.

Discipline and Performance Management

Franchisees must implement fair and lawful disciplinary procedures, including:

- Progressive discipline;
- Documentation of misconduct and corrective action;
- Respect for procedural fairness and employee dignity.

Serious misconduct may warrant immediate disciplinary action in accordance with labour law.

Health, Safety and Wellbeing

Franchisees must:

- Provide a safe working environment;
- Identify and mitigate occupational risks;
- Provide access to PPE and safety training;
- Support staff exposed to emotional or traumatic situations.

Insurance and Risk Management

Each franchise is responsible for maintaining appropriate insurance, including:

- Public liability insurance;
- Employer's liability insurance;
- Vehicle and asset insurance;
- Fidelity cover where applicable.

COMPULSORY REGISTRATIONS
(South Africa)

EXTREMELY IMPORTANT – TO NOTE AND TO COMPLY WITH
All compulsory registrations are **the sole responsibility of the franchisee / business owner**.
All required registrations must be completed before trading commences.
You are responsible for remaining **fully compliant with all applicable legal, tax, labour, and regulatory requirements**, including any changes introduced from time to time.
While the franchisor and its representatives will assist where reasonably possible, **they cannot be held liable for any negligence, omission, ignorance, or non-compliance on your part**.

⚠️ **Important Reminder**
The franchisor can provide guidance and best-practice frameworks; however, **the decision to apply and comply remains entirely yours**.

STATUTORY AND REGULATORY BODIES – REQUIRED REGISTRATIONS
South African Revenue Service (SARS)
PAYE – Pay-As-You-Earn
Income Tax (Personal / Provisional / Corporate)
SDL – Skills Development Levy
VAT – Value-Added Tax
UIF – Unemployment Insurance Fund

Department of Employment and Labour
UIF – Unemployment Insurance Fund
Compensation Fund (COIDA / WCA)

Local Government / Municipality
Health Department
Certificate of Competence (Funeral Undertaker's Premises)

CERTIFICATE OF COMPETENCE
Funeral Undertaker's Premises
Your first point of contact must be your **local municipality (Town Council)**.
Request referral to the **Environmental Health / Health Department**.
Obtain the **applicable health regulations for funeral undertaker premises**.
Funeral undertaker premises are generally classified as **Funeral Parlour**, including mortuary facilities.
Ensure **full compliance with all national and municipal health regulations**.
Confirm that the regulations provided align with **local municipal bylaws**.
Upon satisfactory inspection and compliance, the municipality will issue a **Certificate of Competence**.

Public Notice Requirement
Any person applying for a **new Certificate of Competence** must, **at least 21 days prior to application**, publish notice:
In **two official languages**,
In newspapers circulating in the area of the premises,
In accordance with **Government Notice R237 (8 February 1985)**.

Application Requirements
Applications must be submitted **in writing** to the relevant local authority and must include:

- A description and location of the premises
- A **1:100 scaled floor plan**
- A **block plan indicating north orientation and adjacent land use**
- Details of any person (other than employees) preparing corpses on the premises

The local authority may request additional information where necessary.

Inspection Requirement
No application will be considered unless:

A **full inspection** has been conducted by a **Medical Officer of Health or Environmental Health Practitioner**, and
A written inspection report and recommendation is on record.

Legal Restrictions
No corpse may be prepared except at premises with a **valid Certificate of Competence**.
State and provincial mortuaries and hospitals are exempt.

LEGISLATION
Certificate of Competence – Funeral Undertaker's Premises (G.N. 237 / 1977)
Key procedural steps include:
Submission of application and prescribed fees (if applicable).
Circulation to municipal divisions for comment:

- Solid Waste
- Emergency Services
- Town Planning
- Traffic Department

Premises inspection by the designated Environmental Health Practitioner (EHP).

Minimum Facility Requirements
Preparation room
Refrigeration facilities
Washing and sanitation facilities
Loading and unloading facilities

Where compliant, the EHP submits a report to Licensing for issuance of the Certificate.
Where non-compliant, written notice is issued, followed by re-inspection once remedial actions are completed.

SOUTH AFRICAN REVENUE SERVICE (SARS)
⚠️ **Disclaimer**
This section serves as a guideline only. SARS requirements may change.
Always refer to www.sars.gov.za for current information.
Before commencing operations, **visit your nearest SARS office** to confirm registration obligations.

REGISTRATION AS AN EMPLOYER
Employers must register with SARS **within 14 days** of becoming an employer (Fourth Schedule, Paragraph 15).
Registration is completed using **Form EMP101** and includes:

- PAYE
- SDL
- UIF

Changes in Registered Details
Any change (name, address, cessation of employment) must be reported to SARS **within 14 days**.

Branch Registrations
Branches registered separately are deemed **separate employers** and require **EMP102 registration**.
IRP5 certificates must be issued accordingly when employees transfer between branches.

INCOME TAX – OVERVIEW
Income tax is imposed under the **Income Tax Act, No. 58 of 1962**, and includes:

- PAYE
- Provisional Tax
- Capital Gains Tax
- VAT
- SDL
- UIF

- Transfer Duty
- Donations Tax
- Estate Duty
- Turnover Tax
  (among others)

Year of Assessment
Individuals & trusts: **1 March – 28/29 February**
Companies: Financial year-end

Returns must be submitted annually during **Tax Season** (commencing 1 July).

PAYE – EMPLOYER OBLIGATIONS
Employers must:
- Submit **EMP201** monthly (by the 7th)
- Reconcile twice yearly (EMP501)
- Issue IRP5 / IT3(a) certificates
- Retain records for **five years**

PROVISIONAL TAX
Provisional tax applies to companies and certain individuals and is paid:
- Twice annually via **IRP6**, with an optional third payment
- Based on estimated taxable income

Electronic filing via **SARS eFiling** is compulsory.

SKILLS DEVELOPMENT LEVY (SDL)
SDL applies unless specifically exempt.
Exemption does **not** remove the obligation to register.
Employers are exempt from payment (but not registration) if:
- Total annual remuneration does not exceed **R500,000**, or
- Specific public or exempt entity criteria apply.

VALUE-ADDED TAX (VAT)
VAT is an indirect tax on consumption.

Registration Thresholds
Compulsory: R1,000,000 (12-month period)
Voluntary: From R50,000

Registered vendors must:
- Issue compliant tax invoices
- Submit returns and payments on time
- Maintain proper records

UNEMPLOYMENT INSURANCE FUND (UIF)
Employers must register with SARS or UIF where applicable.

Contributions
Employee: **1%**
Employer: **1%**

Benefits include unemployment, illness, maternity, adoption, and dependants' benefits.
Employee records must be submitted and updated with SARS/UIF, and proof of submission retained.

COMPENSATION FUND (COIDA / WCA)

Registration is mandatory **once one employee is hired**.

Failure to register may result in:

- Severe penalties
- Employer liability for injury, disease, or death claims

Ongoing Obligations
Annual **Return of Earnings (W.As.8)**
Immediate reporting of injuries and occupational diseases
Full documentation retention

⚠️ **Always document injuries accurately and immediately.**

PETTY CASH – CONTROL PROCEDURES
Petty cash should:

- Be limited (recommended **R500 per week**)
- Be supported by vouchers, receipts, and reconciliation forms
- Be signed for by the custodian

All petty cash activity must reconcile to the reimbursement cheque and be attached to the Daily Report or accounting submission.
VAT invoices must reflect **both supplier and business VAT numbers**.

FINAL NOTE
This document provides **operational guidance**, not legal advice.

You are strongly advised to consult:

- A registered accountant
- A tax practitioner
- Your local municipality
- SARS and Department of Labour officials

Compliance is not optional — it is **foundational to lawful, sustainable business operations in South Africa**.

FRANCHISEE REPRESENTATIVE COUNCIL (FRC)
CONSTITUTION

PREAMBLE

The relationship between the Franchisor and its Franchisees is inherently collaborative and interdependent. While the parties share common objectives, it is recognised that differing perspectives and interests may arise from time to time. In order to maximise shared goals, minimise potential conflict, and promote the sustainable growth of the Franchise System, it is essential that open, structured, and constructive two-way communication is maintained.

The establishment of a Franchisee Representative Council ("FRC") provides a formal mechanism through which such communication may occur. The FRC acts in a representative capacity on behalf of Franchisees, working cooperatively with the Franchisor to promote transparency, alignment, and mutual benefit. This Constitution records the history, principles, and operating framework of the FRC, while aligning its provisions with applicable South African law, including the Consumer Protection Act 68 of 2008 and the Regulations relating to Franchise Agreements.

1. PURPOSE AND OBJECTIVES

1.1 Purpose

The FRC shall consist of democratically elected Franchisee representatives who shall meet with Franchisor management at least twice per year to review strategic plans, operational developments, and other matters of common interest.

The primary purpose of the FRC is to foster constructive, open, and effective two-way communication between Franchisees and the Franchisor. The FRC further serves as a consultative forum through which the Franchisor may obtain meaningful input from Franchisees regarding the planning, development, and continuous improvement of the Franchise System. It is recognised that such a body can play a valuable role in identifying and addressing issues of general concern at an early stage, thereby reducing the risk of escalation.

Notwithstanding the above, the Franchisor retains full and final discretion in relation to the ownership, management, control, and operation of the Franchise System. Nothing contained in this Constitution shall be construed as limiting or fettering the Franchisor’s contractual rights, statutory rights, or decision-making authority.

1.2 Objectives

The objectives of the FRC are to:

- Facilitate open, respectful, and constructive communication.
- Encourage an open-door approach to engagement between Franchisees and the Franchisor.
- Enable experienced Franchisees to share knowledge, insights, and best practices.
- Provide a forum for discussion of Franchise and ancillary business developments.
- Advise the Franchisor on brand image, customer service standards, and market perception.
- Assist with the development of marketing initiatives, where applicable through a marketing committee.
- Assist with the development of product and service offerings, where applicable through a product committee.
- Assist with the development of policies and operational procedures, where applicable through an operations committee.
- Consolidate and correlate Franchisee feedback and proposals.
- Provide advisory input to the Franchisor regarding corrective or disciplinary measures for non-compliance with system standards.
- Promote a positive culture of cooperation, professionalism, and accountability across the Franchise System.

2. MEMBERSHIP

2.1 Eligibility

Any Franchisee operating within a designated region and in good standing with the Franchisor shall be eligible for election to the National FRC. For purposes of this Constitution, “good standing” includes, without limitation:

- All accounts with the Franchisor and approved suppliers being fully up to date;
- No unresolved litigation, material disputes, or alleged breaches of the franchise agreement; and
- Ongoing compliance with system standards and operational requirements.

Eligible representatives must have a minimum of six (6) months’ experience as a Franchisee and must be willing and able to fulfil the responsibilities associated with FRC membership.

2.2 Representation

Members of the National FRC shall represent the geographical regions of the Franchise System as determined by the Franchisor from time to time.
The initial regions are:

- Cape Region
- Free State Region
- Gauteng Region
- KwaZulu-Natal Region
- Lesotho Region
- Limpopo Region
- Mpumalanga Region
- North West Region

As the Franchise System expands, regional representation may be amended or extended with the approval of the Franchisor, which approval shall not be unreasonably withheld. For operational efficiency, the National FRC shall be limited to a maximum of ten (10) Franchisee members, excluding Franchisor representatives.

2.3 Term of Office
Each representative shall serve a term of one (1) year and may not serve more than two (2) consecutive terms. Elections shall be staggered where practicable to ensure continuity and institutional knowledge.

2.4 Election Procedures
Regional elections shall be conducted annually in a fair, transparent, and intimidation-free manner, preferably following the National Franchise Conference.

- Each Franchisee shall be entitled to one vote per franchise agreement.
- Non-owner managers shall not be entitled to vote.
- No Franchisee may serve on the National FRC within the first six (6) months of becoming a Franchisee.
- The outgoing regional representative shall notify the Franchisor in writing of the election outcome within one (1) week of the election.
- Elected representatives must be able to attend both regional and National FRC meetings. Where a region is unable to identify a suitable representative, it may, with Franchisor approval, temporarily align with another region.
- If a representative is unable to attend a specific meeting for valid reasons, the region may appoint an alternate for that meeting, subject to Franchisor approval. No representative may miss more than one meeting per term. Persistent inability to attend meetings shall require resignation and re-election.

3. OFFICERS
3.1 Election of Officers
The officers of the National FRC shall consist of a Chairperson, Vice-Chairperson, and Secretary, appointed annually at the first meeting of the calendar year. The Chairperson shall always be a member of the Franchisor's management team. Officers shall serve for a one-year term.

3.2 Duties of Officers
Chairperson
The Chairperson shall preside over all National FRC meetings, issue provisional agendas, and appoint committees where applicable. The Chairperson shall serve as an ex officio member of all committees.

Vice-Chairperson
The Vice-Chairperson shall act in the absence of the Chairperson and shall oversee the election process, term limits, continuity, and any ad hoc elections.

Secretary
The Secretary shall ensure accurate recording of minutes and distribute such minutes to all FRC representatives, Franchisees, and the Franchisor within the prescribed timeframes.

4. COMMITTEES
The National FRC may establish committees from time to time as it deems necessary, subject to Franchisor oversight.

5. MEETINGS

The National FRC shall meet at least twice (2) per year. Where practicable, one meeting shall coincide with the National Franchise Conference. Meetings shall otherwise be held at the Franchisor's offices or such other venue as determined. Notice of meetings, including the agenda, shall be provided at least two (2) weeks in advance. Meetings shall be conducted in an orderly and professional manner.

6. MEETING PROCEDURE

The date of the subsequent meeting shall be set at each meeting. Agenda items shall be collated from regional submissions and distributed at least two (2) weeks in advance. Minutes shall be distributed to all Franchisees within three (3) weeks of the meeting. No quorum is required, and decisions shall be made by representatives present.

7. VOTING PROCEDURES

Voting shall be conducted by show of hands unless a secret ballot is required by the Franchisor.
Each region shall be entitled to one (1) vote.
In the event of a tie, the Chairperson shall have a casting vote.
Decisions shall be determined by majority vote.

8. EXPENSES

Regional Franchisees shall bear the costs associated with their representative's participation, including travel and communication expenses, typically funded through equal regional contributions. The Franchisor shall cover reasonable incidental costs associated with National FRC meetings.
Regions are encouraged to maintain a regional fund to manage such expenses.

9. COMMUNICATION

FRC representatives are responsible for communicating National FRC matters to their regions in a fair, accurate, and unbiased manner. Minutes shall serve as the primary communication tool. Nothing herein limits the right of individual Franchisees to communicate directly with the Franchisor.

10. REGIONAL FRC RESPONSIBILITIES

Regional representatives shall:

- Convene and chair regional meetings;
- Conduct at least four (4) regional meetings annually;
- Distribute regional minutes to the National FRC Chairperson;
- Coordinate regional initiatives and proposals; and
- Notify the Franchisor of meeting dates to facilitate attendance where appropriate.

11. SCOPE OF AUTHORITY

The National FRC is advisory in nature. Final authority on all matters, including but not limited to finance, staffing, operations, branding, intellectual property, and contract enforcement, remains exclusively with the Franchisor.

12. COUNCIL COMMITTEES

Committees may be established in the areas of:

- Marketing
- Products and Services
- Policies and Operations

Committee recommendations shall require Franchisor written approval before implementation where such decisions are intended to be binding.

13. AMENDMENTS

This Constitution may be amended at a duly constituted National FRC meeting by majority vote of members present, subject always to the Franchisor's prior written approval.

14. SERVICE LEVEL UNDERSTANDING

Expectations of the Franchisor

The Franchisor undertakes to communicate openly and truthfully, consider Franchisee input in good faith, protect the brand and system integrity, and act consistently with applicable South African franchise legislation.

Expectations of the National FRC

The National FRC undertakes to communicate accurately, act with integrity, support lawful decisions, and promote compliance and cooperation across the Franchise System.

15. LEGAL DISCLAIMER AND CONSUMER PROTECTION ACT COMPLIANCE

Advisory Nature of the FRC

The Franchisee Representative Council (FRC) is established solely as a consultative and advisory body. No provision of this Constitution, nor any resolution, recommendation, or discussion of the FRC, shall be construed as:

- Creating a partnership, joint venture, agency, or fiduciary relationship between the Franchisor and any Franchisee;
- Limiting, amending, or varying the terms of any franchise agreement; or
- Binding the Franchisor unless expressly confirmed in writing by the Franchisor.

All Franchisees acknowledge that the Franchisor retains full managerial control and decision-making authority over the Franchise System, subject only to applicable law.

Compliance with the Consumer Protection Act, 68 of 2008

This Constitution is intended to be interpreted and applied in a manner consistent with the Consumer Protection Act, 68 of 2008 ("CPA"), and the Regulations relating to Franchise Agreements promulgated thereunder, as amended from time to time.

Without limiting the generality of the above:

- Nothing in this Constitution shall be interpreted as restricting a Franchisee's rights under the CPA, including the right to receive disclosure, fair treatment, and lawful termination where applicable.
- The FRC shall not be used to waive, compromise, or diminish any statutory rights or protections afforded to Franchisees under the CPA.
- Any recommendation, policy, or operational change arising from the FRC which may materially affect Franchisees shall be implemented only in accordance with the CPA, including any required notice periods or disclosure obligations.

No Collective Bargaining or Price Fixing

The FRC shall not engage in, facilitate, or be used as a forum for collective bargaining, price fixing, market allocation, or any conduct that may contravene the Competition Act, 89 of 1998. All discussions shall remain compliant with competition law principles.

Non-Reliance

Franchisees acknowledge that participation in the FRC does not replace or substitute independent legal, financial, or business advice. No Franchisee shall be entitled to rely on discussions, minutes, or informal communications of the FRC as legally binding representations.

Severability

If any provision of this Constitution is found to be unlawful, invalid, or unenforceable under South African law, such provision shall be severable and the remaining provisions shall continue in full force and effect.

Adopted subject to the written approval of the Franchisor.

FRANCHISEE REPRESENTATIVE COUNCIL (FRC)
CHARTER & CODE OF CONDUCT

Non-Discrimination in Service Delivery
While Martin's Funerals is founded on Christian values, no client shall be refused service, treated unfairly, or disadvantaged on the basis of religion, belief, culture, race, or personal conviction. All services are rendered in accordance with the Consumer Protection Act and applicable equality legislation.

1. PURPOSE AND STATUS
This Charter and Code of Conduct ("Charter") is adopted in support of the Franchisee Representative Council ("FRC") as defined in clause 3.15 and clause 13.14 of the Franchise Agreement entered into between Martin's Funerals Franchising (Pty) Ltd (the **"Franchisor"**) and its franchisees (each a **"Franchisee"**).

This Charter must be read together with:
- The Franchise Agreement;
- The FRC Constitution (as incorporated into the Operations Manual); and
- The Operations Manual.

In the event of any inconsistency, the Franchise Agreement shall prevail.
The FRC is constituted solely as an **advisory and consultative body** and does not have decision-making authority.

2. ROLE OF THE FRC
The FRC exists to facilitate communication between the Franchisor and Franchisees in relation to the **Franchise System**, the **Business System**, and the operation of each **Franchised Business**.
The FRC shall:
- Represent regional Franchisee perspectives;
- Provide constructive input on matters affecting the Franchise System;
- Assist in identifying operational, marketing, and system-wide issues; and
- Promote cooperation and alignment within the Franchise System.

The FRC shall not:
- Bind the Franchisor;
- Amend or vary the Franchise Agreement;
- Issue directives to Franchisees; or
- Act in a manner inconsistent with the Franchisor's rights under the Franchise Agreement.

3. GENERAL STANDARDS OF CONDUCT
Each FRC member shall, at all times:
- Act honestly, lawfully, and in good faith toward the Franchisor, other Franchisees, and the Franchise System.
- Act in a manner that protects the **Goodwill**, **Intellectual Property**, and reputation of the Franchisor and the Franchise System.
- Perform their duties with reasonable care, skill, and diligence.
- Conduct themselves professionally and refrain from disruptive, abusive, or prejudicial conduct.
- Comply with the Franchise Agreement, the Operations Manual, and all lawful directives of the Franchisor.

4. CONFIDENTIALITY
FRC members may receive access to **Confidential Information**, **Know-How**, or information relating to the Business System or Franchise System.
All such information shall be treated as confidential in accordance with clause 24 of the Franchise Agreement and shall:
Be used solely for FRC purposes;
- Not be disclosed to any third party; and
- Only be communicated to regional Franchisees where authorised by the Franchisor.

These confidentiality obligations shall survive termination of FRC membership and/or the Franchise Agreement.

5. CONFLICTS OF INTEREST
FRC members shall act in the interests of the Franchise System as a whole and not solely in their own commercial interests.
Any direct or indirect conflict of interest (including interests in competing businesses) must be disclosed promptly to the Chairperson.

The Chairperson may require a conflicted member to recuse themselves from discussions or deliberations.

6. COMMUNICATION AND REPRESENTATION

FRC members shall communicate FRC matters to their regions accurately, fairly, and without distortion.
Members shall not represent personal views as positions of the FRC or the Franchisor.
No FRC member may make public statements, media comments, or social media posts relating to the Franchisor, the Franchise System, or the FRC without the Franchisor's prior written consent.

7. LEGAL AND REGULATORY COMPLIANCE

FRC members shall ensure that all FRC activities comply with applicable law, including but not limited to:

- The Consumer Protection Act, 68 of 2008 ("CPA"); and
- The Competition Act, 89 of 1998.

The FRC shall not be used as a forum for:

- Collective bargaining;
- Price fixing or margin discussions;
- Market or customer allocation; or
- Any conduct that may restrict or distort competition.

8. COLLECTIVE RESPONSIBILITY AND GOOD FAITH

FRC members shall engage constructively and in good faith in all discussions.
Once matters have been discussed at National FRC level, members shall support the outcome in good faith, subject always to the Franchise Agreement and applicable law.
Nothing in this Charter limits a Franchisee's statutory rights under the CPA.

9. BREACHES AND REMOVAL

Any alleged breach of this Charter shall be referred to the Chairperson of the National FRC.
The Chairperson may, subject to the Franchisor's approval:
Issue guidance or a warning;

- Require corrective action; or
- Recommend removal of the member from the FRC.

Serious or repeated breaches may result in immediate removal from the FRC without prejudice to any rights the Franchisor may have under the Franchise Agreement or at law.

10. ACKNOWLEDGEMENT

Appointment to the FRC is conditional upon written acknowledgement by the Franchisee that they:

- Have read and understood this Charter;
- Agree to comply with its terms; and
- Acknowledge the advisory nature of the FRC.

Adopted subject to the written approval of the Franchisor.

FRANCHISEE REPRESENTATIVE COUNCIL (FRC)
MEMBER ACKNOWLEDGEMENT & SIGNATURE PAGE

This Acknowledgement and Signature Page forms part of, and must be read together with, the **Franchisee Representative Council (FRC) Charter & Code of Conduct** and the **FRC Constitution**, as incorporated into the Operations Manual of the Franchise System.

ACKNOWLEDGEMENT

I, the undersigned Franchisee (or authorised representative of the Franchisee), hereby acknowledge and confirm that:

- I have received, read, and understood the **FRC Charter & Code of Conduct** (the "Charter").
- I understand that the FRC is an **advisory and consultative body only** and that it has no authority to bind the Franchisor or to amend or vary the Franchise Agreement.
- I agree to comply fully with the Charter, the **FRC Constitution**, the **Franchise Agreement**, the **Operations Manual**, and all lawful directives issued by the Franchisor.
- I acknowledge that my appointment to, and continued participation on, the FRC is conditional upon ongoing compliance with the Charter and that failure to comply may result in my removal from the FRC without prejudice to any rights the Franchisor may have under the Franchise Agreement or at law.
- I acknowledge that this Charter does not limit or waive any statutory rights afforded to me under the **Consumer Protection Act, 68 of 2008**.

FRANCHISEE DETAILS

Franchisee Legal Name: ____

Trading Name of Franchised Business: ______________________________________

Franchise Agreement Date: ____

Region Represented: ____

SIGNATURE

Signed at ______________________________ on this ______ day of ___________________ 20____.

Franchisee / Authorised Representative

Name: ____

Signature: ____

This document is to be retained by the Franchisor and forms part of the governance records of the Franchise System.

LEGAL COMPLIANCE CERTIFICATE

Consumer Protection Act & Franchise Regulations (South Africa)

1. CERTIFICATE DETAILS

Document Reviewed:

Martin's Funerals – Franchise Operations Manual

Module 1

Entity:

- Martin's Funerals Franchising (Pty) Ltd
- Republic of South Africa

Legislation Assessed Against:

- Consumer Protection Act, 68 of 2008 ("CPA")
- Regulations Relating to Franchising (GN R202 of 2011)
- Applicable principles of South African franchise law

Date of Assessment:

1 January 2026

2. SCOPE OF REVIEW

This compliance review was limited to:

- The content, structure, wording, and legal effect of **Module 1** of the Franchise Operations Manual;
- The interaction between the Manual, the CPA, and the Franchise Regulations;
- Whether Module 1 introduces, disguises, or enforces obligations that would require disclosure under the Franchise Regulations.

This review does not replace or constitute legal advice on any individual Franchise Agreement, Disclosure Document, or specific enforcement action.

3. CERTIFICATION STATEMENT

Based on a substantive review of the document referenced above, it is hereby certified that:

Consumer Protection Act Compliance

Module 1:

✓ Does **not** limit, waive, exclude, or undermine any right afforded to franchisees or consumers under the Consumer Protection Act, 68 of 2008;

✓ Expressly incorporates and upholds:

- fairness,
- transparency,
- proportionality,
- good faith, and
- reasonableness,

as required under **section 48 of the CPA**;

✓ Is drafted in **plain language**, consistent with **section 22 of the CPA**;

✓ Does **not** contain unfair, unreasonable, or unjust terms as contemplated in **sections 48, 49, or 51** of the CPA;

✓ Does **not** authorise retaliation, discrimination, or detriment against a franchisee for exercising statutory rights under the CPA.

Franchise Regulations Compliance

Module 1:

✓ Does **not** introduce any:

- franchise fees,
- royalties,
- penalties,
- financial obligations, or
- material economic burdens
- without prior disclosure in the Franchise Disclosure Document, in compliance with **Regulations 2 and 5**;

✓ Correctly defers all commercial, financial, and contractual obligations to:

- the Franchise Agreement, and
- the Franchise Disclosure Document;

✓ Operates strictly as an **operations and brand standards manual**, and not as a substitute for a franchise agreement;

✓ Does **not** conflict with or override the Franchise Regulations, 2011;

✓ Preserves the supremacy of the CPA and applicable franchise legislation in the event of any inconsistency.

Enforcement & Governance Findings

✓ Enforcement provisions within Module 1 are **procedural**, not punitive in nature;

✓ Any discretionary powers are expressly constrained by:

- objective necessity,
- procedural fairness,
- notice and opportunity to remedy,
  except where immediate action is objectively required to prevent harm or illegality;

✓ Brand protection, trademark use, and corporate identity controls are consistent with accepted South African franchise law norms and do not constitute unlawful dominance or disguised ownership.

4. OVERALL COMPLIANCE CONCLUSION

Module 1 of the Martin's Funerals Franchise Operations Manual is materially compliant with:

- the **Consumer Protection Act, 68 of 2008**, and
- the **Franchise Regulations, 2011**,

when interpreted and applied as an operational manual subordinate to the Franchise Agreement and Disclosure Document.

No provisions were identified that would, on their face, render Module 1 unlawful, unenforceable, or non-compliant under South African consumer or franchise law.

5. QUALIFICATIONS & LIMITATIONS

This certificate:

- Confirms **document-level compliance**, not the legality of any specific enforcement action;

Assumes that:

- the Franchise Disclosure Document is compliant and properly issued, and
- the Franchise Agreement aligns with statutory requirements;

Must be read together with the Franchise Agreement and Disclosure Document.

Improper, inconsistent, or bad-faith enforcement of otherwise compliant provisions may still give rise to CPA risk.

6. CERTIFICATION

Issued for internal governance, compliance assurance, franchise oversight, and regulatory reference purposes.

Certified by:

Independent Compliance Review

(Consumer & Franchise Law – South Africa)

Signature: ______________________________

Name: _________________________________

Capacity: Compliance & Regulatory Review

Date: __________________________________

Below is a **legal-style compliance assessment of "Module 1"** against the **Consumer Protection Act, 68 of 2008 (CPA)** and the **Franchise Regulations (GN R202 of 2011)**, followed by a **CPA-compliant checklist** confirming where it *does* comply and highlighting **minor gaps / recommendations.**

1. HIGH-LEVEL CONCLUSION

Module 1 is substantially compliant with:

- the **Consumer Protection Act (CPA)**, and
- the **Franchise Regulations,**

provided it is treated strictly as an Operations / Brand Standards Manual and not as a substitute for the Franchise Agreement or Disclosure Document.

There are **no fatal CPA or Franchise Regulation breaches** in Module 1.

However, **3 important compliance caveats** must be observed (detailed below).

2. CPA COMPLIANCE ANALYSIS (ACT 68 OF 2008)

2.1 Section 48 – Fair, Just and Reasonable Terms

Status: COMPLIANT

Module 1 repeatedly and explicitly:

- rejects unfair, arbitrary or punitive enforcement,
- requires **reasonableness, proportionality, and good faith**, and
- mandates **notice and opportunity to remedy** except in urgent risk scenarios.

Key compliant language includes:

- No waiver of CPA rights
- Enforcement aligned to fairness and proportionality
- Discretion limited by objective necessity

This directly aligns with **CPA s48(1)(a)–(c).**

2.2 Section 22 – Plain Language

Status: COMPLIANT

Module 1:

- uses plain, understandable language,
- explains legal concepts in context,
- includes interpretive clauses favouring fairness where ambiguity exists.

This satisfies **CPA s22** requirements.

2.3 Section 41 – False, Misleading or Deceptive Representations

Status: COMPLIANT

Module 1:

- does not misrepresent fees, rights, or obligations,
- clearly distinguishes **guidelines vs binding agreements**,
- avoids consumer-facing pricing commitments.

No misleading conduct is created.

2.4 Section 17 – Cooling-Off & Cancellation

Status: NOT APPLICABLE (but safely addressed)

Module 1:

- does **not** purport to regulate franchise sale, cooling-off, or upfront fees,
- correctly defers these matters to the Franchise Agreement and Disclosure Document.

This is correct and CPA-safe.

2.5 CPA Retaliation & Non-Waiver Risk
Status: COMPLIANT
Module 1 expressly states:

- No retaliation for exercising CPA rights,
- No limitation or waiver of statutory protections.

This aligns with CPA jurisprudence and enforcement guidance.

3. FRANCHISE REGULATIONS COMPLIANCE (GN R202 of 2011)
3.1 Regulation 2 – Disclosure Obligations
Status: COMPLIANT (by exclusion)
Module 1:

- does **not** introduce fees, royalties, penalties, or financial obligations,
- explicitly prohibits undisclosed financial burdens,
- defers all financial disclosure to the **Disclosure Document**.

This is exactly what the Regulations require.

3.2 Regulation 3 – Written Franchise Agreement
Status: COMPLIANT
Module 1:

- requires the Franchise Agreement to be read jointly with the Manual,
- does not attempt to override contractual rights,
- confirms supremacy of CPA and Agreement.

No regulatory conflict exists.

3.3 Regulation 5 – No Undisclosed Fees or Penalties
Status: COMPLIANT
Strong compliance wording:

- No directive may impose financial burden without prior disclosure
- No new cost without written agreement or Disclosure Document inclusion

This directly mirrors Regulation 5.

3.4 Operational Control vs Ownership Risk
Status: COMPLIANT (with caution)
Brand control provisions (logos, signage, uniforms, vehicles, CI standards):

- are **normal and lawful** under franchise law,
- do **not** amount to disguised ownership or unfair dominance,
- are justified by brand protection.

However, **they must not be enforced punitively or inconsistently** (see recommendations).

4. CPA-COMPLIANT CHECKLIST (MODULE 1)
A. INTERPRETATION & FAIRNESS
☑ CPA supremacy clause included
☑ Ambiguity resolved in favour of fairness
☑ Plain-language interpretation mandated
☑ No waiver of statutory rights

B. ENFORCEMENT & DISCIPLINE
☑ Reasonableness and proportionality required
☑ Notice and opportunity to remedy included

☑ Immediate action limited to objective risk

☑ No arbitrary termination language

C. FINANCIAL COMPLIANCE

☑ No undisclosed fees

☑ No penalties imposed via manual

☑ All costs deferred to Disclosure Document

☑ Franchisee consent required for new obligations

D. FRANCHISE REGULATIONS

☑ Manual subordinate to Franchise Agreement

☑ Disclosure compliance preserved

☑ No contradiction with Regulations

☑ No hidden economic benefit to franchisor

E. BRAND & IP CONTROL

☑ Trademark protection lawful

☑ CI standards clearly defined

☑ No forced purchases outside disclosed suppliers

☑ Replacement timelines reasonable

F. CONSUMER & FRANCHISEE PROTECTION

☑ CPA rights preserved

☑ No retaliation permitted

☑ Fair dealing expressly required

☑ Transparency emphasised

5. IMPORTANT RECOMMENDATIONS (MINOR, NOT DEFECTS)

These are **not compliance failures**, but best-practice risk reducers:

- **Add an Explicit "Manual Is Not a Contract" Clause**

To avoid misinterpretation:

- "This Manual does not create contractual obligations independent of the Franchise Agreement."

2. Centralise Enforcement Language

Some sections repeat enforcement clauses.
Consider a **single enforcement framework section** referencing CPA s48.

3. Training for Regional Managers

Compliance risk arises **not from wording**, but from **how rules are applied**.
Inconsistent enforcement can trigger CPA challenges even if text is compliant.

6. FINAL LEGAL POSITION

Module 1 is CPA- and Franchise-Regulation compliant.

It is:

- carefully drafted,
- legally conservative,
- defensible before the **NCC, Tribunal, or a High Court**.
- Your risk exposure lies only in implementation, not in the document itself.